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**TRANSPARENCY AND EXCHANGE OF
INFORMATION FOR TAX PURPOSES**

**Peer Review on Transparency and Exchange of
Information on Request**

NAMIBIA

2026 (Second Round)

Global Forum on Transparency and Exchange of Information for Tax Purposes: Namibia 2026 (Second Round)

Peer Review on Transparency and Exchange of Information on
Request

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Abbreviations and acronyms

Abbreviation	Definition
AML	Anti-Money Laundering
AML/CFT	Anti-Money Laundering / Countering the Financing of Terrorism
BIPA	Business and Intellectual Property Authority
CC Act	Close Corporations Act
CDD	Customer Due Diligence
DTC	Double Taxation Convention
EOI	Exchange of Information
EOIR	Exchange of Information on Request
EUR	Euro, official currency of the 20 Member States of the European Union that are part of the Economic and Monetary Union
FATF	Financial Action Task Force
FIA	Financial Intelligence Act
FIC	Financial Intelligence Centre
Global Forum	Global Forum on Transparency and Exchange of Information for Tax Purposes
ITA	Income Tax Act
MOHC	Master of the High Court
Multilateral Convention	Convention on Mutual Administrative Assistance in Tax Matters, as amended in 2010
NAD	Namibian Dollar
NAMFISA	Namibia Financial Institutions Supervisory Authority
NamRA	Namibia Revenue Agency
SADC AATM	Southern African Development Community Agreement on Assistance in Tax Matters
TAA	Trust Administration Act
TCSP	Trust and Company Service Provider
VAT	Value Added Tax

Executive summary

1. This report presents the Global Forum's analysis of Namibia's compliance with the standard on transparency and exchange of information on request (the standard) and concludes that Namibia is rated as overall **Largely Compliant** with the standard. This conclusion is based on an assessment of Namibia's legal and regulatory framework in force as of 6 May 2026 and its practical implementation, including in respect of exchange of information (EOI) requests sent and received during the review period from 1 April 2022 to 31 March 2025. Namibia joined the Global Forum in 2019. Hence, the current report is the first assessment of the legal and regulatory framework for transparency and exchange of information on request in Namibia and its implementation in practice.

Determinations and ratings

	Element	Determination	Rating
A.1	Availability of ownership and identity information	In place but needs improvement	Largely Compliant
A.2	Availability of accounting information	In place	Largely Compliant
A.3	Availability of banking information	In place but needs improvement	Largely Compliant
B.1	Access to information	In place	Compliant
B.2	Notification and appeals	In place	Compliant
C.1	EOIR instruments	In place	Compliant
C.2	Network of EOIR relationships	In place	Compliant
C.3	Confidentiality	In place but needs improvement	Largely Compliant
C.4	Rights and safeguards	In place	Compliant
C.5	Effective exchange of information	Not applicable	Largely Compliant
	Overall rating	Largely Compliant	

Note: The three-scale determinations for the legal and regulatory framework are In place, In place but needs improvement, Not in place. The four-scale ratings for the legal and regulatory framework and its implementation in practice are Compliant, Largely Compliant, Partially Compliant and Non-Compliant.

Transparency framework

2. Namibia has a comprehensive legal and regulatory framework in place to ensure the availability of ownership, accounting and banking information, although some deficiencies have been identified.

3. Namibian commercial and tax legislation establish broad obligations that ensure the availability of information on the identity and legal ownership of domestic legal entities and arrangements. These entities are required to submit ownership and identity information to the relevant registrars and/or to the Namibian Revenue Agency as part of their tax-compliance obligations, while also maintaining information on their legal ownership. In addition, commercial and tax laws mandate entities to maintain comprehensive accounting records. The legal and regulatory framework further provides mechanisms to ensure the availability of legal ownership, identity and accounting information for relevant foreign legal entities and arrangements.

4. Regarding the availability of beneficial ownership information, since August 2023, companies, close corporations and trusts are required to submit beneficial ownership information to their respective registrars at the time of incorporation, whenever there is a change and annually. Consequently, the reporting of beneficial ownership information is ongoing, and the authorities have already started implementing various oversight activities to ensure that the reported information is accurate, adequate and up to date. These obligations complement the already existing anti-money laundering laws to require the availability of beneficial ownership information for all relevant entities and arrangements. In terms of banking information, banking and anti-money laundering laws contain obligations for banks to keep transactional as well as identity and beneficial ownership information of their clients.

Key recommendations

5. The key recommendations in this report relate to recent reforms undertaken by Namibia in putting in place a comprehensive system for the availability of beneficial ownership information. The reforms being recent, have not yet been fully implemented and their supervision is nascent. In addition, areas for improvement have been identified in the supervision and enforcement of the obligations that require the availability of accounting information. Additional recommendations have been made regarding deficiencies in the legal framework regarding the need to identify the owners of companies when nominee arrangements are used and the retention of records when banks cease to exist or otherwise cease to operate in Namibia.

6. In 2023, Namibia introduced obligations requiring all companies, close corporations and trusts to identify their beneficial owners, maintain beneficial ownership registers, and submit this information to the Registrar at the Business and Intellectual Property Authority or, in the case of trusts, to the Master of the High Court (Element A.1). Both the registrar and the master have undertaken awareness-raising, sensitisation and enforcement activities to support compliance with these requirements. As a result, 54% of companies, 44% of close corporations and 63% of trusts have submitted their beneficial ownership information, while the remaining entities or trusts that are yet to submit their beneficial ownership information are currently classified as inactive. In addition, although the authorities already conduct quality and completeness checks on the submitted data, they plan to introduce further verification measures and additional sanctions to strengthen compliance. Namibia is recommended to strengthen its supervision and enforcement.

7. In addition, the 2015 binding guideline on the identification and verification of beneficial ownership information was replaced by a more comprehensive version in 2025. The changes explain several aspects relating to the newly introduced obligation for legal entities and legal arrangements to identify their beneficial owners and further enhance the guidance on conducting customer due diligence, which is especially helpful for non-financial sector AML-obliged persons. Particularly, it aligns the ownership-interest threshold with that set out in the Financial Intelligence Act (25%), clarifies on the method to identify beneficial ownership and offers more detailed explanations regarding customer due diligence obligations under the AML/CFT framework (Element A.1). Since these changes are recent, Namibia is recommended to monitor their implementation.

8. Nominee arrangements may be used to hold ownership in Namibian companies. The Companies Act does not require nominee shareholders to disclose their nominee status or the identity of the persons on whose behalf they act to either the company or the authorities. This gap is partially mitigated by the obligation for companies to identify their beneficial owners. However, the existing obligations to identify beneficial ownership do not extend to situations where an individual holds less than 25% of the ownership interest (Element A.1).

9. Entities are required to submit accounting information through periodic tax returns. The Namibia Revenue Agency has undertaken a range of monitoring, supervisory and enforcement activities to promote compliance with these obligations. Nonetheless, some entities, particularly small and medium taxpayers,

remain non-compliant with their tax filing requirements (Element A.2). Namibia should strengthen its supervision.

10. Regarding availability of banking information, there is no obligation to ensure that the records of a bank that ceases to exist or otherwise ceases its operations in Namibia, will be maintained for at least five years. Namibia is recommended to address this gap.

Exchange of information in practice

11. Namibia has a wide network of EOI relationships covering 157 jurisdictions, and the underlying EOI agreements enable the exchange of information in line with the standard. Namibia's competent authority has adequate powers, supported by sanctions to enforce compliance, that allow it to access information for the purposes of exchange of information.

12. During the review period, Namibia received 22 requests and ultimately provided full responses to most of them, except for 2 bulk requests that have only been partially answered so far.

Key recommendations

13. While Namibia's legal and regulatory framework broadly ensures the confidentiality of exchanged information, there are situations where information may be disclosed to persons who are not envisaged under the standard. Namibia is recommended to address this gap.

14. At the beginning of the review period, the competent authority had a limited understanding of the procedures required to efficiently collect requested information and respond to its peers. This significantly impeded Namibia's ability to provide timely responses. Namibia has strengthened the operations of the competent authority office by providing staff training and formalising robust operational processes. These improvements became evident in the final quarter of the period, during which substantial progress in the handling of EOI requests was observed. Namibia should continue to monitor its activities to ensure that requested information is provided in a timely manner.

Overall rating

15. Namibia is rated Compliant on Elements B.1, B.2, C.1, C.2 and C.4, Largely Compliant on Elements A.1, A.2, A.3, C.3 and C.5. Namibia is therefore rated overall Largely Compliant with the EOIR standard on a global consideration of its compliance with the individual Elements.

16. This report was approved at the Peer Review and Monitoring Group of the Global Forum on 22 June 2026 and was adopted by the Global Forum on 23 July 2026. A self-assessment on the steps undertaken by Namibia to address the recommendations made in this report should be provided to the Peer Review and Monitoring Group in accordance with the methodology for enhanced monitoring.

Summary of determinations, ratings and recommendations

Determinations and ratings	Factors underlying Recommendations	Recommendations
Jurisdictions should ensure that ownership and identity information, including information on legal and beneficial owners, for all relevant entities and arrangements is available to their competent authorities (Element A.1)		
The legal and regulatory framework is in place but needs improvement	The anti-money laundering (AML) framework is the only source of beneficial ownership information for partnerships. However, there is no obligation for a partnership to engage an AML-obliged person in an ongoing business relationship.	Namibia is recommended to ensure that adequate, accurate and up-to-date beneficial ownership information of partnerships is available in all cases, in line with the standard.
	Nominee arrangements can be used to hold ownership in Namibian companies. There are no requirements under the Companies Act for nominee shareholders to disclose their nominee status and identity information of the persons whom they represent, to the company or to the authorities. This gap is partly mitigated by the requirements for companies to identify their beneficial owners which require that both nominees and nominators should be identified. Moreover, trust and company service providers are obliged, when they provide or arrange for nominee shareholding, to conduct customer due diligence under the anti-money laundering laws. Binding guidance issued by the Financial Intelligence Centre mandates that both formal and informal nominee arrangements should be looked through. However, the obligations requiring the identification of beneficial ownership in companies do not cover situations where shareholding is below the ownership threshold of 25%.	Namibia is recommended to ensure that nominees declare their status to the company and that identity information on the nominators is available to the company and/or any relevant public authority in all cases, in line with the standard.
EOIR Rating: Largely Compliant	The binding guideline on identification and verification of beneficial ownership information was replaced by a more comprehensive version in 2025. The changes explain several aspects relating to the newly introduced obligation for legal entities and legal arrangements to identify their beneficial owners and further enhance the guidance on conducting customer due diligence, which is especially helpful for non-financial sector anti-money laundering obliged persons. It provides guidance for legal entities to rely on for identification of their beneficial owners, aligns the threshold of ownership interests to the one used in the Financial Intelligence Act (25%), clarifies on the method to identify beneficial ownership and provides more explanations on customer due diligence conducted under the anti-money laundering framework. The authorities reported that they have already started supervising the implementation of the changes contained in the guidance. However, since the changes are recent, their implementation should be supervised further.	Namibia is recommended to continue to monitor the implementation of recent changes in the guidance for identification of beneficial owners to ensure that adequate, accurate and up-to-date beneficial ownership information of all legal entities and arrangements is available in all cases.
	Namibia introduced obligations on all companies, close corporations and trusts to identify their beneficial owners, maintain registers of their beneficial ownership information and submit such information to the registrar at the Business and	Namibia is recommended to strengthen its supervision and enforcement actions to ensure the availability of adequate, accurate and up-to-date beneficial ownership

	Intellectual Property Authority or the Master of the High Court (for trusts). The registrar and the Master of the High Court have conducted awareness raising, sensitisation and enforcement of the obligations. These measures have led to 54% of companies, 44% of close corporations and 63% of trusts submitting their beneficial ownership information, while the remaining non-compliant ones are classified as inactive. Additionally, while the authorities already conduct quality and completeness checks on the submitted beneficial ownership information, these checks are limited and recent and Namibia is planning to roll out more comprehensive checks and sanctioning measures.	information of legal entities and arrangements (including inactive ones) in all cases, in line with the standard.
Jurisdictions should ensure that reliable accounting records are kept for all relevant entities and arrangements (Element A.2)		
The legal and regulatory framework is in place		
EOIR Rating: Largely Compliant	Entities are required to submit accounting information through periodic tax returns. The Namibia Revenue Agency has carried out various monitoring, supervisory and enforcement activities to ensure compliance with these obligations. However, there are still many entities (mainly small and medium taxpayers) that are not compliant with their tax filing obligations.	Namibia is recommended to strengthen its supervision and enforcement mechanisms to ensure that accounting records and underlying documentation are available for all relevant legal entities and arrangements in all cases.
Banking information and beneficial ownership information should be available for all account-holders (Element A.3)		
The legal and regulatory framework is in place but needs improvement	There are no stipulated record retention requirements for banking information after a bank ceases to exist or ceases to operate in Namibia.	Namibia is recommended to ensure that banking information is available for the minimum period of five years, in all cases after a bank ceases to exist or ceases its operations in Namibia.
EOIR Rating: Largely Compliant		
Competent authorities should have the power to obtain and provide information that is the subject of a request under an exchange of information arrangement from any person within their territorial jurisdiction who is in possession or control of such information (irrespective of any legal obligation on such person to maintain the secrecy of the information) (Element B.1)		
The legal and regulatory framework is in place		
EOIR Rating: Compliant		
The rights and safeguards (e.g. notification, appeal rights) that apply to persons in the requested jurisdiction should be compatible with effective exchange of information (Element B.2)		
The legal and regulatory framework is in place		
EOIR Rating: Compliant		
Exchange of information mechanisms should provide for effective exchange of information (Element C.1)		
The legal and regulatory framework is in place		
EOIR Rating: Compliant		
The jurisdictions' network of information exchange mechanisms should cover all relevant partners (Element C.2)		
The legal and regulatory framework is in place		
EOIR Rating: Compliant		
The jurisdictions' mechanisms for exchange of information should have adequate provisions to ensure the confidentiality of information received (Element C.3)		
The legal and regulatory framework is in place but needs improvement	The domestic legal and regulatory framework in Namibia is not consistent with the standard as information received may be disclosed beyond what is envisaged in the standard.	Namibia is recommended to ensure that the disclosure of information received pursuant to its exchange of information agreements is consistent with the standard.
EOIR Rating: Largely Compliant		
The exchange of information mechanisms should respect the rights and safeguards of taxpayers and third parties (Element C.4)		
The legal and regulatory framework is in place		
EOIR Rating: Compliant		

The jurisdiction should request and provide information under its network of agreements in an effective manner (Element C.5)		
Legal and regulatory framework:	This element involves issues of practice. Accordingly, no determination on the legal and regulatory framework has been made.	
EOIR Rating: Largely Compliant	At the beginning of the period under review, the competent authority had a limited understanding of the procedures required to efficiently collect requested information and respond to EOI requests, including on the provision of status updates. This significantly affected Namibia's ability to provide information to its peers in a timely manner. During the review period, Namibia strengthened the operations of the competent authority by providing staff training and documenting robust operational processes. These improvements are reflected in the final quarter of the period, where considerable progress was observed.	Namibia is recommended to continue monitoring the improved operations of the competent authority office to ensure that requested information is provided in a timely manner in line with the standard.

Overview of Namibia

17. This overview provides some basic information about Namibia that serves as context for understanding the analysis in the main body of the report.

18. Namibia was established as a republic after gaining independence from South Africa in March 1990. Namibia is located in Southern Africa and borders the Atlantic Ocean to the west, Angola and Zambia to the North, Botswana to the East and South Africa to the south. Its capital is Windhoek. Namibia has a population of approximately 3.4 million people.

19. Namibia's GDP in 2024 was estimated to be United States Dollars 13.37 billion, translating into a per capita GDP of about United States Dollars 4 413.¹ The main sectors driving Namibia's economy are mining, agriculture, fisheries and tourism. Namibia's currency is the Namibian Dollar (NAD), and its exchange rate is pegged on a ratio of one to one to the South African Rand.²

Legal system

20. Namibia has a hybrid legal system that combines common and civil law traditions. The sources of Namibian law in their hierarchical order are the Constitution, statutes enacted by parliament,³ international law, regulations, common law, customary law, and the doctrine of precedent. EOI instruments that have been ratified and domesticated form part of the domestic legal framework and are categorised under international law. Therefore, the Constitution and statutes prevail in the event of a conflict with an international agreement such as an EOI instrument.

21. Namibia is a unitary state with a centralised system of government where all legislative, executive and judicial authority is vested in the relevant three arms of government, i.e. the executive, legislature and judiciary. Executive authority lies with the president and the cabinet. To ease administration, decentralised administrative structures have been created, and they divide Namibia into 14 regions, each led by a governor appointed by the president and elected councillors. Regional and local governments do not have constitutional autonomy and operate only through powers delegated by the central government. All laws and policies are made by the National Assembly (the legislature) and implemented uniformly across the country.

22. Judicial authority is exercised through independent courts. The structure of the court system starts with lower or Community Courts that primarily operate under customary laws, and next in line are Specialised Courts specific to areas such as tax or labour. Magistrates' Courts handle most civil and

¹ World bank Group data <https://data.worldbank.org/indicator/NY.GDP.MKTP.CD?locations=NA>, accessed on 13 January 2026

² As per the Bank of Namibia, the exchange rate of the NAD against the EUR is 1 EUR=22.096 NAD, <https://www.bon.com.na/>, accessed on 13 January 2026.

³ Regulations and ordinances are statutory laws (bylaws). Thus, they fall within the ambits of statutory law.

criminal cases at the regional and district levels. The High Court acts as an appellate court for decisions from lower courts and presides over serious civil and criminal matters. The highest court in Namibia, serving as both the court of final appeal and the Constitutional Court, is the Supreme Court.

23. Regarding tax disputes, a person dissatisfied with a tax decision must first seek redress from the objections unit of the Namibia Revenue Agency. If dissatisfied with the outcomes of the objection, the matter must be filed with the Tax Tribunal. Appeals from the Tax Tribunal are handled by the High Court, and thereafter the decision of the High Court can be appealed to the Supreme Court. In practice, no EOI matters have progressed to objections or to the court system in Namibia.

Tax system

24. Broadly, Namibia has a territorial tax system where mainly only income from Namibian sources is taxable, although in a wide range of circumstances, income earned from a non-Namibian source is deemed as if it is from a Namibian source and is also taxable. The Income Tax Act (ITA) provides two broad principles for deeming foreign earned income as income from a Namibian source, i.e. i) based on residence (e.g. any interest or management fee from a source outside Namibia received or accrued to a Namibia resident person) and ii) based on any connection with Namibia (e.g. an income received or accrued from an agreement made in Namibia of the sale of goods, whether such goods have been delivered or to be delivered in or out of Namibia) (s. 15, ITA).

25. The main taxes levied in Namibia are corporate and personal income taxes with progressive rates that range from 18% to 55%. The highest tax rates are applied to mining income. Incomes from diamond mining and related services are taxed at 55%, while incomes generated from non-diamond mining are taxed at 37.5%. The rate for Value Added Tax is 15%. Other duties and levies include export levies (especially on minerals, gas and crude oil, fish and forestry products), stamp duties and duties on transfer of properties (including shares in a company).

26. The concept of residence is not explicitly defined in Namibia's tax laws. The terms "domestic entity", to mean a Namibian entity or entity controlled or managed in Namibia, and "ordinarily resident", in reference to natural persons, are used. Non-residents who earn income from Namibian source are taxed through withholding tax mechanisms executed by the Namibian payers.

27. The Namibia Revenue Agency (NamRA) was established in 2017 as an autonomous agency responsible for administering Namibian tax laws and customs and excise services. Regarding EOI matters, the Minister of Finance is the competent authority for all exchange of information. However, the powers have been delegated to the Commissioner of NamRA, who in turn has delegated the powers to an operational office. Apart from the Exchange of Information on Request (EOIR), Namibia engages in spontaneous exchanges, and it does not engage in Automatic Exchange of Information.

Financial services sector

28. Namibia's financial sector is moderately developed and is mainly focused on the domestic market. The Namibian Statistics Agency estimated that in 2025, the financial sector's contribution to the GDP ranged between 7% to 8%. The combined banking and non-banking financial institutions' assets totalled approximately NAD 660.7 billion (EUR 29.9 billion) in 2025, representing about 254% of Namibia's GDP.

29. The banking sector is the most developed and comprises five commercial banks, a branch of a foreign bank and one representative office.⁴ The five commercial banks are classified as "domestic systemically important banks" while the foreign branch and the representative office are classified as

⁴ A foreign bank that has been licensed to only undertake non-banking liaison and marketing functions.

“non-domestic systemically important banks”. As of June 2025, the total banking assets were NAD 179.1 billion (EUR 8.1 billion). The main contributors were negotiable securities, mortgage lending and consumer credit. The banking sector is regulated by the Bank of Namibia.

30. The non-banking sector comprises 1 126 regulated entities and 14 761 intermediaries, accounting for 72% of the total financial sector assets. Main sub-sectors include insurance, retirement funds, microlenders, collective investment schemes and capital markets. The non-banking financial sector is regulated by the Namibia Financial Institutions Supervisory Authority (NAMFISA).

Anti-money laundering framework

31. The Financial Intelligence Act (FIA) is the primary law providing anti-money laundering (AML) requirements in Namibia. Section 2 and schedule 1 of the FIA create AML obligations to different categories of obliged persons termed as accountable institutions, who include financial institutions and a wide range of professional service providers where they perform specified functions, such as legal practitioners and trust company service providers, attorneys at law, notaries, accountants, and independent legal professionals. The regulation of AML obligations is carried out by the Financial Intelligence Centre (FIC). The FIA also mandates the FIC and the NAMFISA, as supervisory authorities towards combating money laundering. The FIA is complemented by regulations and binding guidance.

32. Namibia is a member of the Financial Action Task Force (FATF) style regional body, the Eastern and Southern Africa Anti-Money Laundering Group. Namibia’s last Mutual Evaluation Report on the implementation of the FATF standard, conducted by this FATF style regional body, was published in September 2022.⁵ The report rated Recommendation 10 (financial institutions customer due diligence) as Largely Compliant, while Recommendations 22 (Designated Non-Financial Business and Professions customer due diligence), 24 and 25 (transparency of legal persons and arrangements) were rated as Partially Compliant. The level of effectiveness on Immediate Outcomes 3 (Supervision), 4 (Preventive Measures) and 5 (Legal persons and arrangements) was rated as Low. Owing to the identified deficiencies, Namibia was given a 12-month observation period to address those deficiencies. Despite the progress made in addressing legal and regulatory framework gaps, in February 2024, Namibia was added to the FATF list of jurisdictions with strategic deficiencies (grey list).

33. Namibia continues to address the deficiencies identified, and in Namibia’s latest enhanced follow-up and technical re-rating report in April 2025, Recommendations 22 and 25 have been upgraded to Largely Compliant.⁶ The major pending gaps relate to demonstrating a sustained increase in investigations of money laundering and demonstrating the competencies of the authorities to identify and investigate financing of terrorism.

Recent developments

34. Key recent developments in Namibia relate to the availability of beneficial ownership information. Since 2023, companies, close corporations and trusts are required to report beneficial ownership information to their respective registrars. Consequently, the reporting of beneficial ownership information is ongoing, and the authorities have already started implementing various oversight activities to ensure that the reported information is accurate, adequate and up to date.

⁵ https://www.esaamlg.org/index.php/Mutual_Evaluations_Second- Namibia Mutual Evaluation Report (2022)

⁶ https://www.esaamlg.org/index.php/Mutual_Evaluations_Followup_Reports - NAMIBIA third Enhanced Follow-up report and second technical compliance re-rating- April 2025.

35. In 2025, the Financial Intelligence Centre replaced the Industry Guidance Note No. 01 of 2015 on Identification and verification of beneficial ownership information with a new and enhanced version. The 2025 guidance note references the definition and methods of identification of beneficial owners contained in the Financial Intelligence Act and improves the guidance on the identification of beneficial owner(s) by entities and AML-obliged persons. The authorities reported that inspections to ascertain whether AML-obliged persons aligned their internal policies and procedures accordingly are being conducted and where non-compliance is detected, sanctions are imposed accordingly.

36. Regarding the progress being made to address the deficiencies in its mutual evaluation report, Namibia has made significant progress in addressing its deficiencies. In this regard, the FATF Plenary held in Mexico during February 2026 recommended Namibia for an on-site assessment which was conducted in April 2026 to verify the progress achieved. The resultant report was discussed during the FATF meetings in June 2026, following which Namibia was removed from the list of jurisdictions under increased monitoring.

A Availability of information

37. Sections A.1, A.2 and A.3 evaluate the availability of ownership and identity information for relevant entities and arrangements, the availability of accounting information and the availability of banking information.

A.1 Legal and beneficial ownership and identity information

Jurisdictions should ensure that legal and beneficial ownership and identity information for all relevant entities and arrangements is available to their competent authorities.

38. The availability of legal and beneficial ownership information in Namibia is broadly ensured through a combination of commercial, tax and anti-money laundering laws for all relevant entities and arrangements (companies, close corporations, partnerships, trusts and co-operatives), although there is some scope for improvement, particularly in respect of beneficial ownership information.

39. Companies and close corporations must be registered by the registrar at the Business and Intellectual Property Authority before they come into existence. Co-operatives are registered by the Registrar of Co-operatives, while trusts must register with the Master of the High Court. Partnerships are registered with the Namibia Revenue Agency for tax purposes. The information identifying the legal owners of these entities and participants in these arrangements is maintained by the public registration authorities, the entities themselves or a combination of both.

40. Regarding the availability of beneficial ownership information, Namibia has adopted a multi-pronged approach to ensure the availability of beneficial ownership information, requiring companies, close corporations and trusts to maintain and report beneficial ownership information to their relevant registration authorities and requiring AML-obliged persons to keep beneficial ownership information on their customers. Some gaps exist in both the legal and regulatory framework and in practice.

41. For partnerships and co-operatives, the anti-money laundering (AML) framework is the only source of beneficial ownership information. While co-operatives have an obligation to have a local bank account, partnerships have no obligation to engage an AML-obliged person in an ongoing business relationship. Namibia is recommended to address this gap.

42. Namibia permits the use of nominee arrangements to hold shares in companies. The Companies Act does not impose obligations on nominee shareholders to disclose their nominee status or to provide information on the persons on whose behalf they act, either to the company or to any public authorities. Therefore, the availability of information identifying the persons for whom nominee shareholders act is not always ensured. A recommendation is made in this regard.

43. The industry guidance on the identification and verification of beneficial ownership information was revised in 2025. The updates clarified several elements related to identifying beneficial owners of legal entities and legal arrangements, including providing more detailed instructions for entities on determining beneficial owners, aligning the ownership threshold with the 25% threshold set under the Financial Intelligence Act, and offering additional explanations on customer due diligence obligations under the

AML framework. Authorities indicated that they have already begun supervising compliance with the revised guidance. Nevertheless, given the recent nature of these amendments, continued supervisory follow-up is required to ensure their effective implementation.

44. Namibia has introduced obligations requiring all companies, close corporations and trusts to identify their beneficial owners, maintain internal beneficial ownership registers, and submit this information to their respective registrars. The registrars have conducted awareness-raising, sensitisation and enforcement activities to support compliance. These efforts have led to 54% of companies, 44% of close corporations and 63% of trusts submitting their beneficial ownership information. While the registrars currently conduct checks on the quality and completeness of the information submitted, these checks are limited and recent and Namibia is planning to expand on these verification processes and implement additional sanctioning measures to strengthen compliance going forward. Namibia should strengthen its supervision and enforcement activities.

45. Namibia received 13 requests for identity, legal ownership and beneficial information on companies and trusts, and the requested information was provided in all cases.

46. The conclusions are as follows:

Legal and regulatory framework: In place, but certain aspects of the legal implementation of the element need improvement

Deficiencies identified/ Underlying Factor	Recommendations
The anti-money laundering (AML) framework is the only source of beneficial ownership information for partnerships . However, there is no obligation for a partnership to engage an AML-obliged person in an ongoing business relationship.	Namibia is recommended to ensure that adequate, accurate and up-to-date beneficial ownership information of partnerships is available in all cases, in line with the standard.
Nominee arrangements can be used to hold ownership in Namibian companies. There are no requirements under the Companies Act for nominee shareholders to disclose their nominee status and identity information of the persons whom they represent, to the company or to the authorities. This gap is partly mitigated by the requirements for companies to identify their beneficial owners which require that both nominees and nominators should be identified. Moreover, trust and company service providers are obliged, when they provide or arrange for nominee shareholding, to conduct customer due diligence under the anti-money laundering laws. Binding guidance issued by the Financial Intelligence Centre mandates that both formal and informal nominee arrangements should be looked through. However, the obligations requiring the identification of beneficial ownership in companies do not cover situations where shareholding is below the ownership threshold of 25%.	Namibia is recommended to ensure that nominees declare their status to the company and that identity information on the nominators is available to the company and/or any relevant public authority in all cases, in line with the standard.

Practical Implementation of the Standard: Largely Compliant

Deficiencies identified/ Underlying Factor	Recommendations
The binding guideline on identification and verification of beneficial ownership information was replaced by a more comprehensive version in 2025. The changes explain several aspects relating to the newly introduced obligation for legal entities and legal arrangements to identify their beneficial owners and further enhance the guidance on conducting customer due diligence, which is especially helpful for non-financial sector anti-money laundering obliged persons. It provides guidance for legal entities to rely on for identification of their beneficial owners, aligns the threshold of ownership interests to the one used in the Financial Intelligence Act (25%), clarifies on the method to identify beneficial ownership and provides more explanations on customer due diligence conducted under the anti-money laundering framework. The authorities reported that they have already started supervising the implementation of the changes contained in the guidance. However, since the changes are recent, their implementation should be supervised further.	Namibia is recommended to continue to monitor the implementation of recent changes in the guidance for identification of beneficial owners to ensure that accurate, adequate and up-to-date beneficial ownership information of all legal entities and arrangements is available in all cases.
Namibia introduced obligations on all companies, close corporations and trusts to identify their beneficial owners , maintain registers of their beneficial ownership	Namibia is recommended to strengthen its supervision and enforcement actions to ensure the

information and submit such information to the registrar at the Business and Intellectual Property Authority or the Master of the High Court (for trusts). The registrar and the Master of the High Court have conducted awareness raising, sensitisation and enforcement of the obligations. These measures have led to 54% of companies, 44% of close corporations and 63% of trusts submitting their beneficial ownership information, while the remaining non-compliant ones are classified as inactive. Additionally, while the authorities already conduct quality and completeness checks on the submitted beneficial ownership information, these checks are limited and recent and Namibia is planning to roll out more comprehensive checks and sanctioning measures.

availability of adequate, accurate and up-to-date beneficial ownership information of legal entities and arrangements (including inactive ones) in all cases, in line with the standard.

A.1.1 Availability of legal and beneficial ownership information for companies

Types of legal entities - companies and close corporations

47. The legal framework in Namibia provides for the creation of two main categories of legal entities, i.e. companies and close corporations. The formation and regulation of companies is governed by the Companies Act, while the formation and regulation of close corporations is governed by the Close Corporations Act (CC Act).

48. The Companies Act enables the creation of three types of companies.

- **Companies with share capital.** A company having share capital may either be a public company or a private company having shares of par value or shares of no-par value. If it is a public company, it must have seven or more members, while a private company may have two or more members unless it is a single-member company. There were 28 033 companies with share capital registered in Namibia as of 30 September 2025.
- **Companies limited by guarantee.** These are companies that do not have a share capital and have the liability of their members limited by the memorandum. All companies limited by guarantee are deemed to be public companies. There were 3 642 companies limited by guarantee registered in Namibia as of 30 September 2025.
- **Non-profit companies.** These are companies whose objectives include charitable purposes and the promotion of arts and culture. The company must intend to apply its income to a charitable cause and should prohibit the payment of any dividend to its members. Such a company is incorporated as a company limited by guarantee. There were 3 590 non-profit companies registered in Namibia as of 30 September 2025.

49. **Close corporations formed under the CC Act** are entities with legal personality that are formed by a minimum of one and a maximum of 10 natural persons. Each member contributes either money, property or services to the corporation and receives a certificate stating the percentage of such member's interest in the corporation. A close corporation has simplified formation and compliance requirements and is usually used for small and medium enterprises. The members have limited liability. There were 206 736 close corporations registered in Namibia as of 30 September 2025.

50. **Foreign companies** can carry on business in Namibia after being registered in the Commercial Registry as external companies. The Companies Act defines external companies as a company or other association of persons, incorporated outside Namibia, which has a place of business in Namibia. There were 428 external companies registered in Namibia as of 30 September 2025 (see detailed discussion on foreign companies below).

Legal ownership and identity information requirements

51. The legal ownership and identity requirements for companies and close corporations are found mainly in the Companies Act and the CC Act, respectively. These are complemented by the provisions of

tax law and the AML framework. The following table shows a summary of the legal requirements to maintain legal ownership information in respect of companies and close corporations:

Companies covered by legislation regulating legal ownership information⁷

Type	Commercial Law*	Tax Law	AML Law ⁸
Companies with share capital	All	Some	Some
Companies limited by guarantee	All	Some	Some
Non-profit companies	All	Some	Some
Close corporations	All	Some	Some
Foreign companies (tax resident) known as external companies	All	Some	Some

*Comprising the Companies Act and the Close Corporations Act.

Commercial Company law requirements – information held by the commercial registrar and the entities

52. Companies and close corporations must be incorporated and registered with the Business and Intellectual Property Authority (BIPA). The chief executive officer of BIPA serves as their registrar (s.1, BIPA Act). BIPA is mandated to supervise all commercial registration processes and to regulate legal entities in Namibia, through administering the Companies Act and the CC Act.

53. The information identifying the members of a company or a close corporation must be submitted to BIPA at the time of incorporation and periodically or maintained by the entities themselves. The sections below analyse the obligations for the different categories of entities.

Companies and the commercial registrar

54. Chapter 4 of the Companies Act regulates the incorporation of companies. The process of incorporation requires the interested person(s) to submit a memorandum and articles of association to BIPA, using prescribed forms.

55. The memorandum of association sets out the proposed name of the company, a relevant statement if the company is to have share capital, the amount and division of the share capital and the number of shares. Further, the memorandum states the name of each subscriber and the number of shares allotted to each of the subscribers. For companies limited by guarantee, the memorandum contains the names of the members and the amount each member undertakes to contribute to the assets of the company. The Companies Administrative Regulations prescribe the registration forms, which require for each subscribing member, to record their full names, occupation, residential address, business address, postal address, and email address (Regulation 8 and annexure 2).

⁷ The table shows each type of entity and whether the various rules applicable require availability of information for “all” such entities, “some” or “none”. “All” means that the legislation, whether or not it meets the standard, contains requirements on the availability of ownership information for every entity of this type. “Some” means that an entity will be covered by these requirements if certain conditions are met.

⁸ The AML framework is only a subsidiary and partial source of legal ownership information in Namibia and is therefore not discussed in this section of the report. There are no requirements under Namibian law for companies to engage an AML-obliged person in an ongoing business relationship, even though most entities provide bank accounts to NamRA for VAT administration purposes. In these instances, some legal ownership information will be available with the AML-obliged persons as part of their Know Your Customer and Customer Due diligence (CDD) obligations. These obligations are discussed in more detail in the dedicated sections on the availability of beneficial ownership information, below.

56. A company is considered established upon the registration of the memorandum and articles of association with BIPA. The company is then issued a registration number and entered onto the register of companies. Therefore, the information identifying the founding members of a company is submitted to BIPA at the time of registration of a newly incorporated company.

57. Further, Section 112 of the Companies Act obliges all companies to maintain a register of their members. The register should contain, in respect of each member, i) the name and address of the member, ii) the shares issued to each member (for companies with share capital), and iii) the date on which the person became/ceased to be a member. The register of members of a company must be kept at the company's registered office in Namibia or at the office of the company's agent in Namibia (s. 117, Companies Act). If the register is kept at the office of the company's agent, the company is required to notify BIPA of the place where the register is kept.

58. Any changes in the ownership of a company must be registered with the company by entering it in the register of members. The instrument of transfer is required to be signed by both the transferor and transferee. The transferor is deemed to be the holder of the share until the name of the transferee has been added to the register of members. Therefore, ownership rights in a company are only triggered once the name of the acquiring member has been entered onto the register of members. Thus, only the persons entered into the register of members can exercise their rights as shareholders, including participating in the annual general meeting of the company or receiving dividends. These obligations imply that a person acquiring shares in a company only has title of ownership once the transfer has been completed and accordingly, it is incumbent upon the member acquiring shares in a company, to ensure that their name has been entered onto the register of members in a timely manner. The Companies Act allows any aggrieved person to petition the court if the person's name is not entered into the register of members or if there are undue delays. The court may issue penalties against the company and its directors. These self-enforcing mechanisms ensure that the register of members is kept up to date.

59. The changes in ownership of a company are reported to BIPA through annual returns (s. 181 and 182, Companies Act). The Companies Administrative Regulations (Regulation 39) mandate that the annual returns should be made using a prescribed form, that requires the reporting of shareholder details that include i) the full name of the shareholder, ii) date of birth or identity number or passport number or entity registration number, iii) residential, business and postal addresses, iv) telephone contacts, and v) nationality or place of incorporation.

60. Consequently, the obligations of the Companies Act, as complemented by the Companies Administrative Regulations, provide for the availability of accurate, adequate and up-to-date legal ownership information on companies established under the Companies Act.

Close corporations and the commercial registrar

61. A close corporation is a simplified structure whose members have an equal right to manage and represent the corporation, unless there is an association agreement concluded that states otherwise. There is no joint holding of members' interests. As discussed in paragraph 49, a close corporation can only be formed by 1 to 10 natural persons.⁹

62. The CC Act provides that persons intending to establish a close corporation must draw up a founding statement which contains the name of the corporation, its postal and physical address. The founding statement must also contain the full names, residential address and identity number of each member. If the person does not have an identity number, his/her date of birth is captured (s. 12, CC Act).

⁹ No corporate body or trustee can directly or indirectly hold a member's interest in a close corporation except if the existing member dies, is insolvent, mentally incapacitated or otherwise incapable of managing his/her affairs (s. 29, CC Act).

The founding statement is then filed with the registrar at BIPA, following which a certificate of incorporation is issued. Therefore, the information identifying the founding members of a close corporation is available at BIPA.

63. A close corporation is mandated to keep a copy of its founding statement at its registered office in Namibia. Any changes to the founding statement must be filed with the registrar at BIPA before such changes take any effect. Section 15 of the CC Act states that a change in the founding statement (except for the residential address) must be reported within 28 days of any change. Therefore, a change in the membership of a close corporation takes effect only if registered at BIPA. Moreover, all close corporations must confirm their membership information during the process of paying their annual fees.

64. Consequently, the information identifying the members of a close corporation held by BIPA is always accurate, adequate and up to date.

Retention period and entities that cease to exist

65. The Companies Act and CC Act do not explicitly indicate the period for which the legal ownership information submitted to BIPA should be maintained. Namibian authorities explained that in practice, BIPA keeps any information, including the ownership information received from companies and close corporations, as long as the related entity exists and for 15 years if the entity ceases to exist, and thereafter transfers it to a government archive, where it is maintained indefinitely.

66. Companies and close corporations keep their ownership information throughout their existence since such information confers ownership rights to the legal owners of the companies and members of the close corporation. Namibia's legal and regulatory framework provides for specific arrangements when such entities cease to exist.

67. Companies cease to exist through i) deregistration and ii) winding up and dissolution processes.

68. The **registration** of a company may be cancelled where the company fails to lodge annual returns for more than two years or where there is reasonable cause to believe that a company has ceased operations (s. 74, Companies Act). The registrar is obliged to contact the company and inquire whether such a company is in business or not. If the company does not respond or responds indicating that it is not conducting any business and does not have any assets or liabilities, the registrar will deregister the company. Additionally, entities may be deregistered for failing to comply with statutory obligations (see paragraph 175). The memorandum and articles of a deregistered company are cancelled, and the company ceases to exist.

69. Regarding the records of a de-registered company, the registrar may direct the way such records shall be disposed of. Namibian authorities explained that the directors of the company are usually appointed to be the custodians of the records. The person appointed must maintain the records for at least five years.

70. The **winding up** process is conducted either voluntarily (initiated by the creditors or members) or through liquidation procedures initiated by a Court. In all cases, liquidators are formally appointed by the Court. For a voluntary winding-up process, the members or creditors are obliged to nominate a liquidator who is then formally appointed by the Court (s. 375 and 376, Companies Act). Liquidators must be individuals who reside in Namibia (s. 379), and they are issued certificates of appointment by the Master of the High Court.

71. During the liquidation process, the liquidator is obliged to maintain a record of the process through keeping books and accounts of the company, which are subject to supervision by the Master of the High Court. When the affairs of a company have been completely wound up, the liquidator must submit a return of the audited account of the winding-up process to the Master of the High Court. Thereafter, the Master will send a certificate to the registrar, who records the dissolution of the company.

72. Regarding the records of a company that has been wound up and is about to be dissolved, section 428 of the Companies Act requires that, depending on the type of winding up, the Master of the High Court or the company or the creditors will appoint the liquidator or any other person to maintain the records of the company for five years. Namibian authorities explained that in practice, the ownership records are usually maintained by liquidators or former directors of the company in Namibia.

73. The CC Act (s. 66) states that the provisions of the Companies Act, regarding winding up, also apply to close corporations with the requisite modifications. Therefore, the retention of ownership records of a close corporation that ceases to exist shall be maintained accordingly. In any case, the legal ownership information of a close corporation held by BIPA, which is maintained indefinitely, must be up-to-date as discussed in paragraphs 62 and 63.

Foreign companies

74. Foreign companies (termed as external companies in the Companies Act) that establish a place of business in Namibia must register with BIPA within 21 days.

75. The company is required to submit a certified copy of its memorandum, notice of its address in Namibia, the name and consent of its Namibian auditor, and notice of its financial year. The company must also submit detailed information about its directors, local manager and secretary, including their full names, nationalities, occupations, addresses and dates of appointment (Companies Act, s. 328).

76. Whereas there is no explicit requirement for the external company to submit its ownership information to BIPA at the time of registration, to the extent that the information identifying the legal owners of a company is contained in the memorandum of the company, the ownership information is submitted to BIPA. In addition, Section 334 of the Companies Act requires that any change in the memorandum of the external company be reported to BIPA. The availability of legal ownership information through the registration of the memorandum of the company does not ensure that such information would be available for all external companies, since the inclusion of ownership information in the memorandum is not a uniform requirement in all jurisdictions where such companies may be incorporated.

77. However, the potential gap is fully mitigated by the requirement for all external companies to submit to BIPA an annual return that contains adequate information on their legal owners. The return must be filed using Form CM 23, which captures details of members of the company (see paragraph 59). As of December 2025, 387 foreign companies (90%) were compliant with filing their annual returns and Namibian authorities are following up with the remaining 10%.

78. Consequently, the information identifying the owners of an external company is available at BIPA. This is complemented by the tax obligations on such companies to register for taxes and undergo an audit.

Tax law requirements

79. Entities established under Namibian law or otherwise having taxable income in Namibia are required to register with the Namibia Revenue Agency (NamRA). Pursuant to these requirements, NamRA maintains some identity and legal ownership information of companies and close corporations.

80. Persons may register through the electronic Integrated Tax Administration System by directly using the online application form or submitting manual forms at a NamRA office that are then captured into the System.

81. At the time of registration, companies must submit copies of their memorandum of association, and close corporations must submit copies of their founding statements. These documents contain information identifying the members of the company or the close corporation, respectively. While there is no obligation for entities to file changes in their legal ownership information with NamRA, Namibian authorities explained that when a taxpayer is under audit or investigation, the legal ownership and identity

information is verified for correctness. Further, as part of NamRA's general compliance procedures, tax officers are also required to review and update taxpayer details, including the ownership information held in the Integrated Tax Administration System, during every interaction with a taxpayer.

82. The tax laws oblige taxpayers to retain all records and documents for five years from the date of first creation of the records (s. 65, ITA) or for five years after the end of the tax period to which the records relate (s. 48, VAT Act).

Nominees

83. The standard requires that identity information be available on persons who act as legal owners on behalf of other persons as nominees or under similar arrangements, including the identity information of the persons on whose behalf such arrangements have been established.

84. The CC Act prohibits nominee arrangements. The Companies Act does not explicitly provide for nominee arrangements, although there are conditions under which the voting rights associated with the shares may be exercised by nominees. The Companies Act provides that voting rights held by a person as nominee for another person are treated as if they were held by that other person, and voting rights must be deemed to be held by a nominee for another person if they are exercisable only on the instructions or with the consent or concurrence of that other person (nominator) (s. 2(4)(c)).

85. There is no specific legal requirement for a shareholder to disclose its status as a nominee and the identity of the nominator(s) to the company or any public authority. However, under the beneficial ownership obligations contained in the Companies Act, for each of the shareholders who is a nominee, the information identifying that shareholder must be recorded in the same manner as the information identifying beneficial owners of the company (see paragraph 127). Additionally, Trust and Company Service Providers (TCSPs) are obliged to conduct CDD for AML purposes when they act as nominees or when they arrange for another person to act as a nominee shareholder.

86. The FIC guidance note (see paragraph 117) stipulates that nominators should be considered as beneficial owners. The guidance note contains extensive explanations and examples on how to look through both formal and informal nominee arrangements. Taken together, the beneficial ownership obligations contained in the Companies Act, FIA and FIC guidance should lead to the identification of nominees and nominators, where such arrangements are used in formal or informal (non-professional) arrangements.

87. However, the above-mentioned requirements relate to the identification of beneficial ownership in companies and thus they may not cover situations where shareholding is below the ownership threshold of 25%. As such, there may be instances where the information identifying persons acting in a nominee capacity and those for whom they act (nominators) will not be available. Consequently, **Namibia is recommended to ensure that nominees declare their status to the company and that identity information on the nominators is available to the company and/or any relevant public authority in all cases, in line with the standard.**

Legal ownership information – available sanctions

88. The self-enforcing mechanisms contained in the Companies Act and the CC Act (see paragraphs 57 and 63) ensure the availability of accurate, adequate and up-to-date legal ownership information on close corporations in all cases and for companies that comply with their annual filing obligations, at BIPA.

89. Moreover, the legal and regulatory framework contains sanctions that complement these self-enforcing mechanisms. Any company that fails to maintain a register of its members in the proper form commits an offence and is liable to a fine which does not exceed NAD 800 (EUR 39.8). Where a company refuses to register a transfer of shares, it is required to notify both the transferor and transferee within

30 days of the lodgement of the transfer instrument. Failure to issue such notification constitutes an offence, subject to a monetary penalty of NAD 40 (EUR 2) for every day that the non-compliance continues (s. 146, Companies Act). A similar offence exists for close corporations where a sanction of NAD 10 (EUR 0.5) is applicable for every day that the non-compliance remains unrectified (s. 15(5), CC Act). The duty to execute transfers, or to justify refusal within a prescribed timeframe, helps prevent undue delays or obstructions in updating ownership records. Whereas the associated penalties are of low value, the application of those sanctions daily, complemented by the possibility for the transferee to seek Court intervention, becomes dissuasive.

90. Regarding companies, the annual filing of prescribed returns is the primary mechanism through which changes in ownership information become available to BIPA. Any company that does not submit its annual return is liable to a fine not exceeding NAD 40 (EUR 2) for every day during which the non-compliance continues (s. 181(6)), Companies Act). Additionally, the Companies Administrative Regulations (Annexure 1) prescribe a penalty of NAD 300 (EUR 13.6) for each return form that is delayed or not lodged. The annual return is also linked with the payment of annual fees and, consequently, some of BIPA's key monitoring and oversight activities to ensure compliance with the obligations relating to the availability of legal ownership information for companies, derive primarily from the monitoring of payment of the annual fees.

Oversight activities by the Business and Intellectual Property Authority

91. To strengthen compliance with the obligations to file annual returns and payment of annual fees, BIPA conducts various activities that are mainly focused on creating awareness and supporting entities to meet their obligations. Additionally, a penalty waiver program has been implemented to encourage voluntary compliance. Since the expiry of the penalty waiver programme, BIPA has also imposed monetary fines.

Awareness, outreach and the annual fees penalty waiver programme

92. Owing to low compliance levels in the past, BIPA has implemented targeted communication campaigns to improve awareness on the obligations related to payment of annual fees and filing of annual returns. Between 2022 and 2025, a total of 184 radio campaigns, 4 television campaigns and 73 newspaper publications were conducted. Moreover, entities that delay submitting their returns are sent reminders through direct emails and SMS notifications and are prompted to take corrective action.

93. In addition, BIPA conducted outreach programmes and regional engagements in different parts of Namibia, where BIPA officials sensitise different categories of persons and supported such persons to file any missing information.

Activity	2023	2024	2025
Activations	0	3	1
Regional engagements	0	6	3
Trade fairs	3	3	2

94. Through activations, BIPA officials offer direct support to persons wishing to file the required returns and information. Namibian authorities reported that on average, between 40 to 50 entities, are assisted per day. Further, the authorities reported that on average, regional engagements attracted between 220-300 participants.¹⁰

¹⁰ Activations are mainly pop-ups that focus on offering a wide range of BIPA services while engagements are more targeted to a specific audience, mostly spreading awareness on a key issue requiring compliance improvement.

95. A penalty waiver programme was instituted covering the period from 2012 to 2022. This waiver applied to all entities that had accumulated penalties arising from failure to pay their annual fees and to submit annual returns. To benefit from the waiver, the entity concerned was required to submit the detailed annual report forms for all the missing years that contain legal ownership information. Although the penalties were waived, the entity was still liable to pay the principal fees.

96. Namibian authorities reported that since the inception of the waiver program, 8 002 companies and 35 000 close corporations applied to benefit from the waiver, and have all updated their records by filing annual returns at BIPA.

Inactivity and improving compliance

97. There is no legal definition of inactive entities. However, entities that have not submitted their annual returns or paid their annual fees or that are not conducting any business activities are deemed to be inactive. As explained in paragraph 68, where it has come to the attention of the registrar in the normal course of business that certain entities were not conducting business and when contacted, such entities have confirmed that they are no longer conducting business activities, the entities were deregistered. Between April 2022 and March 2025, 2 324 entities were deregistered. In addition, other entities are in the process of being deregistered owing to non-compliance with submitting beneficial ownership information (see paragraph 175).

98. Further, entities that are inactive due to non-compliance are liable to monetary penalties for delayed filing (see paragraph 90). Historically, most of the inactive entities (due to non-compliance) have been close corporations.

99. **Close Corporations** make up to 85% of all registered entities in Namibia. Namibian authorities explained that the registration of close corporations has largely been influenced by prevailing social and economic trends. Periodically, the Namibian government adopts financial empowerment initiatives where citizens are required to form organised legal structures to benefit. As a result, many of the entities appearing on the register are corporations that never became operational and were created merely in anticipation of potential opportunities, often with the hope of securing tenders or benefiting from emerging government initiatives. Major developments such as the allocation of fishing quotas, the introduction of youth development fund grants, green hydrogen initiatives, and oil and gas sector initiatives have all driven increases in new close corporation registrations. Traditionally, these trends have contributed significantly to the high volume of entities currently recorded and not complying with their annual obligations (hence inactive).

100. Even though the deregistration process engaged by BIPA led to the deregistration of only 1% of entities, the awareness-raising campaigns have improved compliance and by December 2025, the number of close corporations that have filed their annual returns for each year continues to improve.

	2022/2023	2023/2024	2024/2025
No of close corporations that submitted annual returns	51 105	116 423	131 405
No of registered close corporations	182 071	191 823	206 736
Percentage of close corporations that filed returns	28%	60.6%	63.6%

101. Concerning the availability of legal ownership information, there is no risk posed by inactive close corporations since only the members registered with BIPA have any ownership rights in the corporation (see paragraph 63). Therefore, the membership information registered with BIPA is always accurate and up to date.

102. Regarding **companies**, on the other hand, the availability of up-to-date legal ownership information on inactive companies may be affected, since the information available at BIPA may not always be up to date. Although the up-to-date legal ownership information is maintained by the companies in their

registers of members, the availability of such information to the public authorities may be compromised in some cases, for example, where inactive companies change addresses and cannot be easily contacted by the authorities (see paragraph 106).

103. Namibian authorities explained that the awareness and outreach activities described above together with the waiver programme have contributed to improved filing of annual returns by companies, from 64% in financial year 2022/2023 to 84% in 2024-2025.

	2022/2023	2023/2024	2024/2025
No of companies that submitted annual returns	15 193	15 080	24 041
No of registered companies	23 903	25 181	28 454
Percentage of companies that filed returns	64%	60%	84%

104. Namibia explained that the main driver of the improved compliance was the penalty waiver programme that has seen many entities update the records at BIPA.

105. Currently, no monetary sanctions have been applied due to the ongoing penalty waiver program. However, entities that have not complied with the submission of annual returns and payment of annual fees face restrictions at BIPA, including the rejection of amendments or any filing of resolutions until the required information is submitted. Additionally, BIPA does not issue certificates of good standing for such companies.

106. In conclusion, the awareness and outreach programs coupled with the penalty waiver scheme and restrictions have improved the rate of filing of annual returns for entities, as a source of legal ownership information available to the authorities. Namibia should continue to implement oversight activities and monitor the compliance of companies with their annual reporting obligations with BIPA (see Annex 1).

Availability of legal ownership information in EOIR practice

107. Namibia received nine requests for legal ownership information of companies and successfully provided the requested information. Peers were satisfied with the responses obtained.

Availability of beneficial ownership information

108. The standard requires that beneficial ownership information be available on companies. In Namibia, this aspect of the standard was initially partially met through the AML requirements contained primarily in the Financial Intelligence Act (FIA), complemented by regulations and binding guidance. Further, in 2023, Namibia introduced obligations in the Companies Act and the CC Act requiring all companies and close corporations to obtain and report beneficial ownership information to BIPA. The beneficial ownership information submitted to BIPA is now the primary source of beneficial ownership information for the competent authority, although the AML framework remains an important source too. Each of these legal regimes is analysed below.

Companies covered by legislation regulating beneficial ownership information

Type	Commercial Law	Tax Law	AML Law
Companies with share capital	All	None	Some
Companies limited by guarantee	All	None	Some
Non-profit companies	All	None	Some
Close corporations	All	None	Some
Foreign companies (tax resident) known as external companies	All	None	All ¹¹

Definition and methodology for identification of beneficial owners

109. The definition of beneficial owner applicable under the AML requirements and the entity obligations (under the Companies Act and the CC Act) is the same. The definition is contained in Section 1 of the FIA and states as follows:

“beneficial owner” means a natural person referred to in Schedule 5 who -

(a) for the purposes of this Act, ultimately owns or controls -

(i) a client or natural person; or

(ii) a natural person on whose behalf a transaction is being concluded; or

(b) exercises ultimate effective ownership or control over -

(i) a legal person;

where such ultimate ownership or ultimate effective control may be exercised directly or indirectly or through a chain of ownership or control other than direct control.

110. The definition requires the identification of beneficial owners based on direct or indirect ownership or control, in compliance with the standard.

111. Schedule 5 of FIA elaborates on categories of natural persons that can be regarded as beneficial owners. Through this process, the schedule provides additional explanations on the application of the method of identification of beneficial owner(s).

112. The FIC guidance note (see paragraph 117) has clarified that a simultaneous approach should be used to identify beneficial owners using the test for control through both ownership and means other than ownership.

113. On control through ownership, schedule 5 explains that the threshold for ownership is set at 25% of the shares, voting rights or any other ownership interest in a legal person, whether held directly or indirectly. It further explains that a natural person who holds a combination of 25% of ownership through several legal persons should be identified as a beneficial owner, further cementing the need to look out for direct or indirect ownership.

114. On control through means other than ownership, schedule 5 lists aspects such as i) the right, whether directly or indirectly, to appoint or remove majority of the board in the legal person, ii) power to materially influence the decision making or policy of the legal person, and iii) deriving substantive economic benefit from the legal person, including through dividends, profits or enjoyment of assets, even if the person

¹¹ Where a foreign company has a sufficient nexus, then the availability of beneficial ownership information is required to the extent the company has a relationship with an AML-obligated service provider that is relevant for the purposes of EOIR. (Terms of Reference A.1.1 Footnote 9)

has no formal link to the company, and iv) having influence or ultimate control on the legal person, through any other means.

115. The schedule notes that beneficial owners are natural persons who jointly control a legal person either directly or indirectly through a chain of other legal persons or arrangements.

116. Lastly, the schedule explains that where beneficial owner cannot be identified using the criteria of control through ownership or control through other means, then a natural person who holds a position of senior management should be recorded, and the record should also reflect that the person has been identified as holding such a senior management position. The legal and regulatory framework contains appropriate guidance and mechanism on the application of this backstop option. The FIC guidance note gives examples under which circumstances legal entities may not identify beneficial owners using ownership and control criteria, such as in the cases of public companies. On the other hand, the FIA notes that for CDD purposes, if an AML-obliged person cannot complete CDD, the relationship cannot be created or transaction completed (see paragraph 181).

117. The FIA provisions are further explained in a binding Guidance Note No. 01 of 2015 on identification and verification of beneficial ownership information, issued by the Namibian Financial Intelligence Centre (FIC) – hereafter referred to as the FIC guidance note.¹² The note has been in operation since 2015 and was replaced by a more comprehensive version in 2025. The revisions have improved the explanations on the identification of beneficial owner(s) by entities and AML-obliged persons. Most importantly, the revised guidance clarifies that for legal persons, the beneficial owner(s) are the natural person(s) who have control through ownership or other means. This clarificatory emphasis avoids any potential confusion that legal persons may face whilst identifying their beneficial owners due to the use of the term “client” in the main definition as discussed in the paragraph 109. The guidance further confirms that a simultaneous approach should be taken to identify beneficial owners taking the criteria for ownership and control together, thereby increasing the number of persons that can be identified as beneficial owners.

118. The revised FIC guidance note also provides a diagrammatic example of scenarios where beneficial ownership may be exercised through interposed legal persons and arrangements and through indirect control. It also provides additional examples of control through other means, such as using debt instruments and personal connections. The guidance note further explains the practical terms of joint control through ownership, using an example of family relationships. It explains that if no one family member owns or controls 25% of the legal person, then, where applicable, ownership interests of individual family members should be evaluated together. The FIC guidance note requires that the entities or AML-obliged persons should undertake efforts to understand the ownership and control structure of the entity.

119. Additionally, the 2015 version of the guidance note, while explaining control through ownership, used a 20% threshold contrary to the 25% threshold indicated in the FIA. While a 20% threshold does not contravene the standard definition of beneficial owner, the disparity between the FIA and the guidance note may have brought confusion. The 2025 revision has now aligned the threshold to 25%.

120. Another important example is that the 2025 revision explains that where a senior managing official is recorded (see paragraph 116), the CDD files or the register data should clearly specify the actions taken, why it was decided to identify the senior manager and that the individual identified is not a real beneficial owner, but a senior manager.

¹² The FIC guidance note is issued pursuant to Section 9 of the FIA which gives the FIC overall mandate to coordinate all the activities of Namibian authorities involved in combatting AML/CFT risks. The guidance note serves as a national beneficial ownership guidance instrument. Item 1.1.2 of the note states that its binding on AML-obliged persons, the registrars (BIPA and MOHC), legal persons and legal arrangements.

121. In conclusion, the definition and methods for identifying beneficial owner as contained in the FIA and explained further in the FIC guidance note are comprehensive enough to facilitate the identification of beneficial owner(s) by legal persons and AML-obliged persons.

Implementation of the methods of identifying beneficial owners

122. Regarding the practical implementation of the definition and method to identify beneficial owners, the provisions of the FIA and the FIC guidance note provide direction to companies and close corporations for the identification of their beneficial owners and AML-obliged persons for conducting CDD.

123. The FIC guidance note of 2025 updates the guidance hitherto issued for CDD purposes, while the note provides first time guidance for companies and close corporations.

124. Namibian authorities charged with supervision of AML obligations reported that they have supervised the implementation of the amended guidance. The authorities explained that after the change in guidance, the supervisory authorities held industry engagements to promote the common understanding of the revisions. Further inspections were conducted to ascertain whether AML-obliged persons aligned their internal policies and procedures accordingly, and whether there was effective implementation of these policies and procedures. Where non-compliance was detected, sanctions were imposed accordingly. Further, the representatives of the AML-obliged persons (mainly banks) interviewed during the on-site visit demonstrated clear understanding of the concept of beneficial owner for each type of legal person and explained that the new amendments to the guidance note merely highlighted aspects that are already elaborated in the FIA and are being practiced.

125. However, the AML-obliged persons that are not banks did not express the same level of comfort. Moreover, for companies and close corporations the 2025 note contains the first detailed guidance to explain beneficial ownership identification in more detail. Considering the references added for companies and close corporations, clarification of the method to identify beneficial ownership and the alignment of the threshold of 25% with the FIA, there is a need to continue monitoring the implementation of the changes in the guidance note. Consequently, **Namibia is recommended to continue to monitor the implementation of recent changes in the guidance for identification of beneficial owners to ensure that adequate, accurate and up-to-date beneficial ownership information is available in all cases.**

Obligations for legal entities to maintain a register of beneficial owners

126. Since August 2023, both the Companies Act (s. 122A) and the CC Act (s. 16A) require all companies (including foreign companies registered in Namibia) and close corporations to maintain an accurate and up-to-date register of their beneficial owners, in Namibia. The beneficial ownership register should be kept at the same place where the register of members or the founding statement (in the case of close corporations) is kept.

127. The information to be maintained in the register of beneficial owners, for each beneficial owner includes:

- the first name and surname, and any former first names and surnames
- the date of birth and identification number appearing on the identity document
- full particulars of residential address, business address, email address and postal address
- nationality
- the nature and extent of beneficial ownership.

128. Where a shareholder of a company or member of a close corporation¹³ is holding the ownership interest as a nominee, then the identity details (as explained in the preceding paragraph) of the nominee must also be recorded.

129. The Companies Act (s. 122A(5)) and the CC Act (s. 16A(5)) mandate that the legal entity appoint a person residing in Namibia who is responsible for the safekeeping of its register of beneficial owners and responsible for making such information available upon request by competent authorities that include NamRA.

130. Companies and close corporations must keep the information contained in the register of beneficial owners, including the nature and extent of beneficial ownership, for at least five years from the date of creation of the record. This obligation is transferred to the administrator or liquidator of a company or close corporation after the entity is dissolved or otherwise ceases to exist.

Submission of beneficial ownership information to the registrar and updates

131. Since August 2023, all companies (including foreign companies registered in Namibia) and close corporations are obliged to submit the information listed in paragraphs 127 and 128 to the registrar at BIPA, at the time of registration. For existing companies and close corporations, the registrar issued its first directive on 24 July 2023, requiring all existing entities to submit their beneficial ownership information by i) 7 September 2024 or at ii) the time of submitting any amendments pertaining to their registration, such as allotment of shares or iii) or at the time of submitting their next annual return. More directives were issued to improve compliance (see paragraphs 155). By 31 March 2026, the number of entities that have submitted their beneficial ownership information has risen to 110 691 (45%) owing to a combination of awareness raising, supervision and enforcement.

132. The information submitted to BIPA can be accessed by members of the public upon request. The information shared with the public is limited to the full names of the beneficial owner(s) and the extent of beneficial ownership held.

133. To facilitate the reporting of beneficial ownership information, BIPA has prescribed the use of a beneficial ownership declaration form. In addition to the information described at paragraphs 127 and 128, the declaration form requires the submission of the date when beneficial ownership commenced or ceased.

134. Regarding updates to the submitted information, entities are obliged to report any changes to beneficial ownership information within seven days (s. 122A(3), Companies Act and s. 16A(3), CC Act) (see paragraph 135). If the registrar has any reasonable grounds to believe that an entity has not updated its beneficial ownership information within this prescribed time frame, the registrar may issue a directive for the correction of the non-compliance, failure of which would lead to imposition of administrative penalties on the entity (see paragraph 141).

135. Additionally, Section 4 of the FIA obliges entities to collect the beneficial ownership information annually. Accordingly, BIPA prescribed an annual beneficial ownership confirmatory form in 2024. Through this form, entities are obliged to declare that the information previously submitted “remains the same and is accurate, adequate and up to date”, or otherwise file changes to the information.

136. Intermediate entities in the ownership chain or natural persons that do not facilitate the reporting of changes, including responding to the entity when asked for purposes of reporting changes in beneficial ownership or submitting the annual confirmatory form, are liable to the penalties listed at paragraph 144.

¹³ Nominee arrangements are prohibited by the CC Act. However, the act (s. 63) further states that where a person purports to hold interest in a close corporation notwithstanding the invalidity of such an arrangement, such a person is solely liable.

137. From 1 April 2024 to 31 March 2025, 8 360 entities submitted changes to their beneficial ownership information.

138. The framework for entities to submit beneficial ownership information at the time of registration, directives issued for existing entities and the requirements to update beneficial ownership information have put in place a system that would enable the availability of accurate, adequate and up-to-date beneficial ownership information, if implemented fully.

Beneficial ownership obligations on entities – enforcement measures and oversight

139. BIPA is the main supervisory agency tasked with the oversight and enforcement of the obligations on companies and close corporations. In practice, BIPA collaborates with the FIC and other government agencies to execute its supervisory mandate. Despite this collaboration, there are no formal or informal discrepancy reporting requirements on AML-obliged persons, regarding the beneficial ownership information reported to BIPA.

140. BIPA has a multi-faceted approach to oversight and enforcement. Firstly, they have put in place a mechanism to conduct verification and quality checks on the submitted information. Secondly, the other category of activities is geared towards improving compliance with the reporting obligations. This second category involves awareness, outreach programmes to promote compliance, generating and publishing lists of non-compliant entities and collaborating with law enforcement agencies. Thirdly, the last category involves the issuance of sanctions against non-compliance.

Applicable sanctions

141. If the registrar has reasonable grounds to believe that an entity or person (including the person appointed as explained at paragraph 129) has failed to maintain a register of beneficial owners or has not complied with the statutory deadlines for submitting beneficial ownership information, the registrar is required to issue a written directive instructing the entity to rectify the non-compliance within seven days. If the entity does not comply with this directive, the registrar may impose administrative sanctions. In determining the appropriate sanction, the registrar considers several factors, including the seriousness, duration and extent of the non-compliance, any history of previous breaches, and any remedial steps taken to prevent recurrence (s. 122A(11-14), Companies Act and s. 16A(11-14), CC Act).

142. Following this assessment, the registrar may impose a financial penalty of up to NAD 50 000 (EUR 2 263) against an entity for failure to maintain its register of beneficial owners or meet reporting deadlines, and, where a directive has been ignored, an additional penalty of up to NAD 1 000 (EUR 45.3) per day of continued non-compliance.

143. The registrar must notify sanctioned entities in writing, outlining the decision, reasons, penalty amount, applicable interest, and payment timelines, with all penalties payable directly to the registrar.

144. In addition to these administrative sanctions, there is criminal liability for entities or individuals who fail to comply with beneficial ownership requirements, provide false or misleading information, withhold required information that should have been entered into the entity's register of beneficial owners, or make false entries in the register. These offences carry penalties of up to NAD 10 million (EUR 452 571), imprisonment of up to 10 years upon conviction, or both. Administrative penalties may be imposed irrespective of criminal proceedings, although any criminal fines already imposed must be considered when assessing administrative sanctions.

145. Lastly, entities that persistently fail to comply are placed on an inactive list and subject to deregistration (see paragraph 173).

Verification and quality checks

146. BIPA has 8 to 12 staff allocated to manage beneficial ownership-related workload. The staff were initially deployed in project format to manage the initial stages of the obligations, and they have now been mainstreamed to manage all related tasks, ensuring that adequate resources are deployed to manage associated workloads including oversight functions related with beneficial ownership submissions.

147. All submissions are made by physically submitting the completed beneficial ownership declaration forms and supporting identity documents to client service officials at BIPA. All copies of identity documents submitted must be certified by the issuing agency or notarised. The submitted information undergoes two levels of verification and checks. In the first one, the client service official checks the completeness of the form and that supporting identity documents are certified or notarised.

148. If the form is complete and the identity documents are in order, the client service official enters the submitted information into an electronic database. If there are any deficiencies in the submitted information, the form is rejected, and the submitting person is asked to correct any identified anomalies. BIPA officials explained that the common anomalies identified include uncertified identity documents, incomplete addresses, and failure to capture the extent and nature of beneficial ownership.

149. Once the submitted form has been successfully uploaded onto the electronic database, such a form is marked as “submitted pending approval” and must undergo the next category of verification checks.

150. Under this second category of checks, the verification focuses on the accuracy of the information submitted. The main verification carried out is a comparison with the legal ownership information of the entity. For companies, this involves determining whether the ownership structure of the entity conforms to the information submitted, such as ownership percentages of individual shareholders. The majority of companies have simple ownership structures. For close corporations, the checks involve verification against the founding statement.

151. If any information recorded on the form clearly deviates from the legal ownership information without a plausible explanation, a query is sent to the submitting person. Namibian authorities explained that for example if a shareholder (individual) of a company or a member of a close corporation who meets the requisite threshold of ownership is not included on the beneficial ownership form, such a gap would be queried. Only the forms that have no queries or where the queries have been successfully answered are approved. On average, 3% of the submissions are rejected owing to all the verification checks and must be corrected before full submission is achieved.

152. Further, in March 2026, BIPA started sectoral based field on-site inspections to verify compliance with beneficial ownership obligations. The inspections are guided by a risk-based approach that considers the national risk assessment (see paragraph 162). This initial phase of inspections covered 57 entities from the mining and fishing sectors, and covered persons who are appointed to keep beneficial ownership registers on behalf of entities (see paragraph 129). During these visits, BIPA officials physically verify the beneficial ownership records and the adequacy, accuracy and up-to-datedness of the beneficial ownership information maintained. Namibia reported that all the entities inspected exhibited a clear understanding of the beneficial ownership obligations and were maintaining adequate, accurate and up-to-date information.

153. The Namibian authorities also reported that BIPA is in the process of further strengthening their verification and qualitative inspections in collaboration with the FIC, Bank of Namibia, and NamRA.

Directives and outreach programmes

154. To date, BIPA’s approach to improving compliance with the obligations on entities to submit beneficial ownership information mainly includes issuance of directives to entities, conducting outreach programmes and collaborating with other government agencies to enforce compliance.

155. Following the gazetting of the amendments in the Companies Act and CC Act in July 2023, BIPA issued its first directive on 24 July 2023. The directive broadly explained the obligations on entities and required all existing entities to submit their beneficial ownership information to BIPA by 7 September 2024. It also mentioned that BIPA would visit all regions to engage with businesses, and it provided links to relevant submission forms.

156. Initially, compliance was very low. Only a few entities had filed beneficial ownership information for tax year 2023/2024. BIPA thus conducted outreach programmes and regional engagements in different parts of Namibia, where BIPA officials sensitised different entities and supported them to file their beneficial ownership information (see paragraph 93).

157. In most cases, these outreach programmes cover a comprehensive list of obligations that entities must fulfil, including annual reports, payment of annual fees and submission of beneficial ownership information. Namibian authorities reported that on average, between 40 to 50 entities per day are assisted during the outreach programmes and that regional engagements attracted between 220-300 participants.

158. In addition, BIPA sent out bulk emails and ran social media campaigns to sensitise entities and communicate the new obligations in the Companies Act and CC Act concerning the availability of beneficial ownership information.

159. In 2024, BIPA issued additional directives whereby the deadlines for submission were extended and the obligations of entities explained further. On 7 January 2024 and 1 February 2024, the registrar issued new directives explaining the obligations and requiring the submission of beneficial ownership information. The February directive required all existing entities to submit beneficial ownership information by 29 February 2024, requiring all entities to submit their beneficial ownership information within seven days. Following delayed compliance (see paragraph 169), the directives also communicated that all entities that had not submitted their beneficial ownership information would be placed on an inactive list (see paragraphs 173 to 179). The directive also mentioned the possibility of administrative and criminal sanctions. Compliance rate slowly but steadily raised over years.

160. These directives and outreach programmes, complemented by enforcement action have improved the rate of compliance to 45% of entities, with the obligations to submit beneficial ownership information by entities, although the submission rate is still average (see paragraphs 170 and 171).

Enforcement action undertaken and results

161. As discussed in paragraphs 141 to 144, the Companies Act and CC Act contain administrative (monetary penalties, publishing of non-compliant entities and deregistration) and criminal sanctions to target non-compliance with the obligations to keep registers of beneficial ownership information and to submit such information to BIPA.

162. Concerning monetary and criminal sanctions, BIPA is in the process of finalising a sanctions matrix to be relied upon in the issuance of sanctions. This is because the sanctions contained in the legal and regulatory framework must be implemented in varying forms depending on the severity of the offence or related considerations. The authorities explained that the sanctions matrix explores the application of monetary sanctions in line with Namibia's national risk assessment. This is intended to guide BIPA to vary the value of monetary penalties with the possibility of issuing higher sanctions against entities that operate in sectors that present higher AML risks. To this end, BIPA, in collaboration with the FIC, has conducted a risk assessment of legal persons in Namibia and identified the key sectors where potential risks are prevalent (see paragraph 152). BIPA has not yet started utilising the sanctions matrix or issued any monetary or criminal sanctions yet.

163. So far, Namibia has used the approach of denial and restriction of services, including banking services and publication of inactive entities, to compel compliance.

Denial and restriction of services

164. Entities that have not submitted their beneficial ownership information are restricted from accessing services such as filing of amendments or any resolutions at BIPA. In addition, such entities cannot be issued certificates of good standing.

165. Secondly, BIPA has collaborated with the Financial Intelligence Centre (FIC) and Bank of Namibia to restrict banking services to non-compliant entities.

166. In April 2024, the FIC issued Directive 01 of 2024, under its powers contained in the FIA, to strengthen national efforts to increase the submission of beneficial ownership information to BIPA. This intervention followed concerns regarding the low rate of beneficial ownership filings with BIPA. The FIC directive was to complement the efforts being undertaken by BIPA. Further, the FIC directive specifically sought to leverage the banking sector as part of a broader, multifaceted national strategy to increase beneficial ownership compliance.

167. The aim of this collaborative measure was to incentivise compliance by linking beneficial ownership compliance to continued access to banking services. Banks were instructed to obtain the periodically updated beneficial ownership-inactive list published by BIPA (see paragraph 173) and identify any of their clients appearing on this list. Banks were required to notify and remind such clients to submit their outstanding beneficial ownership information to BIPA and provide proof of filing to their bank. In cases where companies or close corporations failed to update their beneficial ownership information as required by law, banks were directed to restrict access to banking services, including withdrawals and transfers of funds or assets, until compliance was achieved.

168. Namibia reported that these enforcement actions have improved the rate of compliance. Regarding the restriction on banking services, the FIC conducted targeted inspections of all seven banks in 2025 to assess compliance with its directive. The inspections found that banks had largely implemented the required measures, although the authorities did not confirm that any banks were sanctioned for failing to implement the directive. The representatives of banks interviewed during the on-site visit confirmed that they had implemented FIC's directive and asked their customers to present letters of good standing from BIPA, prior to accessing banking services.

169. Ultimately, the number of entities complying with their obligations to submit beneficial ownership information has increased considerably for each financial year, as shown in the table below.

	1 April 2023- 31 March 2024	1 April 2024 - 31 March 2025	1 April 2025 - December 2025
Number of entities that submitted beneficial ownership information	26 (<1%)	43 601 (18%)	83 802 (35%)

170. Namibian authorities further reported that between January and March 2026, the rate of compliance with beneficial ownership obligations continued to improve owing to the supervisory and enforcement activities conducted. About 45% of all entities have submitted their beneficial ownership information.

Entity type	Registered entities as of March 2026	Entities that have filed beneficial ownership information by March 2026	Percentage of entities that filed
Companies with shares and companies limited by guarantee	28 463	15 451	54%
Non-profit companies	3 642	1 756	48%
Close corporations	210 811	93 305	44%
Foreign companies termed as external companies	432	179	41%
Total	243 348	110 691	45%

171. Regarding the compliance rate of the different categories of entities, companies with shares and companies limited by guarantee have the highest rate of compliance at 54%.

172. The entities that have not yet complied are included on the list of inactive entities that is published every six months on the BIPA website.

Publishing of inactive entities

173. Companies and close corporations that persistently fail to comply with the beneficial ownership requirements are placed on an inactive list and are subsequently subject to deregistration after six months (s. 122A(15), Companies Act and s. 16A(15), CC Act). This list is published on the BIPA website.¹⁴ The list published as of 6 February 2025 contains 144 576 entities, most of which are close corporations. The risk posed to availability of beneficial ownership information by inactive close corporations is of reduced materiality (see paragraph 178).

174. The Namibian authorities explained that the inactive list is useful for reference purposes by the competent authority, in EOIR cases. When a request for beneficial ownership information is received, the competent authority first checks to determine whether the entity subject to the request is published on the inactive list, before proceeding to send the notice for collection of the requested information to BIPA or to an AML-obliged person (see further discussions under Element B.1).

175. Namibia has categorised such listed entities for deregistration, although this has not been carried out yet. BIPA has issued notices to the effect that such entities would be de-registered starting 16 May 2025, although this deadline was further extended until early 2026. De-registrations are now set to commence. As of 16 February 2026, BIPA issued a notice of deregistration for the first tranche of 699 close corporations that have since been deregistered. Deregistered entities cease to exist (see paragraphs 67 and 68).

176. Namibian authorities explained that most of these entities are close corporations that have not yet commenced any business operations. As discussed in the paragraph 99, the Namibian authorities explained that the government of Namibia periodically introduces financial empowerment initiatives that encourage citizens to create formal legal entities. However, many of these entities never become operational and were established to position themselves to secure tenders or other government-supported opportunities.

177. The authorities further reported that during the inspections on the implementation of FIC Directive 01 of 2024 (see paragraph 168), an estimated 14 384 entities on the inactive list (representing about 10% of the inactive population) were identified as having bank accounts in Namibia and the majority of these have since complied. It was further established that the remaining 130 782 entities (around 90%), most of which are close corporations, did not have bank accounts in Namibian banks. BIPA additionally noted that 70 to 80% of these non-compliant entities did not have any recent filings with the registrar,

¹⁴ <https://www.bipa.na/beneficial-ownership/inactive-beneficial-ownership-list/>

further confirming the possibility that such entities may not have ongoing business transactions. However, there is still the possibility that such entities may conduct business outside of Namibia.

178. The risk to the availability of beneficial ownership information posed by inactive close corporations is mitigated by the fact that, as per the provisions of the CC Act, all members of the close corporation must be natural persons, joint holding of members' interests is prohibited, and all members have equal management and representation rights, unless otherwise specified. All these aspects are contained in the legal ownership information submitted to BIPA (see paragraphs 61 to 64).

179. In conclusion, since the introduction of obligations on companies and close corporations to keep a register of their beneficial owners and to report beneficial ownership information to BIPA in 2023, Namibia has conducted outreach and awareness programmes and applied some administrative sanctions. These activities have improved the rate of filing of beneficial ownership information to BIPA. Moreover, Namibia conducts completeness and qualitative checks on the submitted information and has commenced field inspections to verify the beneficial ownership information maintained by the entities. Nevertheless, the number of entities that have submitted their beneficial ownership is about 45%. Moreover, Namibia is in the process of increasing the range of sanctions (monetary penalties and deregistration) and conducting further quality checks to increase the submission rate and further ensure quality information. **Namibia is recommended to strengthen its supervision and enforcement actions to ensure the availability of adequate, accurate and up-to-date beneficial ownership information of legal entities (including inactive ones) in all cases, in line with the standard.**

Anti-money laundering law – Accountable institutions (AML-obliged persons) and customer due diligence

180. The AML framework (see paragraph 31) requires AML-obliged persons, termed as accountable institutions, to identify and verify the identity of their clients, identify the beneficial owners of such clients and take reasonable measures to verify the identity of the beneficial owners using reliable source documents (FIA, s. 21(2)). This obligation applies before establishing a business relationship and before concluding certain transactions.

181. If the AML-obliged person is unable to verify the customer's identity or complete the CDD process, the business relationship cannot be established. If there is an already established and ongoing business relationship, the AML-obliged person must terminate the relationship and file a suspicious transaction report to the FIC.

182. The Financial Intelligence Regulations, hereafter termed as the FI Regulations, require that for the identification of beneficial owners, the AML-obliged persons must obtain the following information: i) full name and previous names if any, ii) nationality, iii) national identity number, iv) passport number or v) date of birth in case of a minor (Regulation 6). The representatives of AML-obliged persons interviewed during the on-site visit explained that the identities of individuals are cross-checked against submitted identity documents.

183. AML-obliged persons are also obliged to conduct CDD that is aligned to the risk profile of the client. Section 20A(4) of the FIA requires AML-obliged persons to develop, adopt and implement internal policies to effectively manage and mitigate risks.

184. The beneficial ownership guidance note (see paragraph 117) explains that the **risk assessment** of a client with regard to money laundering or terrorism financing is the starting point before CDD is conducted and that it should be documented in the client's file or in the relevant client onboarding systems. Depending on the risk profile of the client, the AML-obliged person may conduct simplified, standard or enhanced due diligence. **Simplified** CDD can only be conducted in circumstances where there is no suspicion of money laundering or terrorism financing. Regardless of the category of due diligence

conducted, the AML-obliged person must identify the client, its beneficial owners and maintain such information (s. 24, FIA).

185. AML-obliged persons must continuously review any complex, unusually large, or otherwise unusual transactions that have no clear lawful purpose. They must also apply **enhanced** due diligence to clients and transactions linked to higher-risk countries identified by institutional, national Financial Action Task Force (FATF) assessments.

186. Regarding the **updating** of CDD and beneficial ownership information on existing clients, AML-obliged persons are required to conduct ongoing due diligence throughout the business relationship, including maintaining up-to-date client and beneficial ownership information, and monitoring transactions to ensure they align with the customer's profile. Further, enhanced CDD should be conducted where there are doubts on the veracity of the previously obtained customer identification data or if there is suspicion of money laundering or terrorism financing, regardless of the risk posed by the client. To facilitate this approach, AML-obliged persons must develop and implement internal **policies** that are consistent with the national or sectoral money laundering or terrorism financing risk assessments (s. 20A and 24, FIA). The FIA only requires that for high-risk clients, the CDD measures should be applied more frequently to ensure that information is up to date (see paragraph 353).

187. Guidance note no. 4 of 2009 on the Implementation of a Compliance Regime requires AML-obliged persons to review CDD at least once every year for high-risk clients and at least once in two years for all other clients. This guidance is binding and enforceable by the authorities. Namibian authorities explained that in practice AML-obliged persons have adopted specified frequencies of at least every year for high-risk clients, at least every two years and at least every three to five years for medium and low risk clients, respectively. The authorities nonetheless consider the range of these frequencies to be appropriate. Moreover, the authorities can sanction an AML-obliged person if the internal policy set is deemed inappropriate. The Namibian authorities explained that in practice, all the seven banks operating in Namibia have set appropriate frequencies to update CDD and beneficial ownership information. In other cases, AML-obliged persons (mainly TCSPs) have been sanctioned for setting inappropriate frequencies or failing to adhere to the frequencies set in their internal policies (see paragraph 205). Since AML-obliged persons may set frequencies that depart from what is included in the binding guidance, there is a potential risk depending on what type of frequencies all AML-obliged persons will set.

188. Regarding the availability of beneficial ownership information on companies and close corporations, any potential gap is mitigated by the requirements to update the beneficial ownership information submitted to BIPA, at least annually. Considering that AML-obliged persons may set frequencies in their internal policies that differ from those stated in the guidance, Namibia should align the provisions of the binding guidance and the practice by AML-obliged persons to ensure that CDD and beneficial ownership information are updated appropriately for all entities and arrangements (see Annex 1).

189. AML-obliged persons are obliged to maintain detailed information concerning the CDD activities conducted, including any document obtained to verify the identity of the client or beneficial owner and the nature of transactions conducted. The records related to the establishment of a business relationship must be kept throughout the course of the business relationship and thereafter, for five years from the date the business relationship is terminated, or longer if required by the authorities.

190. If an AML-obliged person ceases to exist, the records will be maintained by the liquidator as discussed in the paragraphs 72 to 73. If a liquidator who is a natural person dies, the rules governing the administration of deceased persons as governed by the MOHC would apply in ensuring that the estate of the deceased person is properly managed.

191. An AML-obliged person may rely on a third party to carry out CDD and to introduce business to them (Regulation 5, FI regulations). In those circumstances, the AML-obliged person must satisfy itself that the third party or introducer is subject to regulation, supervision, monitoring or equivalent compliance

measures relating to CDD and record-keeping and is sufficiently knowledgeable and resourced to ensure compliance. Further, the AML-obliged person is obliged to immediately obtain the identification information of the client, which includes, at a minimum, the beneficial owners of the client. The AML-obliged person must also satisfy themselves that the third party can provide copies of all identification data and documentation without delay upon request. When an AML-obliged person relies on another institution or a third party for customer identification and verification, the ultimate responsibility for ensuring that proper CDD is conducted remains with the AML-obliged person. The representatives of the AML-obliged persons met during the on-site visit, and the supervisory agencies explained that where reliance is placed on third parties, these requirements were fully met. These conditions are in line with the standard.

Anti-money laundering law requirements – oversight and enforcement

192. The FIA contains both administrative and criminal sanctions that can be applied against non-compliant AML-obliged persons or any other persons. Any person has failed to comply with the provisions of the FIA, any regulation or directive, is liable to administrative sanctions that comprise, i) caution not to repeat the conduct, ii) reprimand, iii) directive to take remedial action, iv) restriction or suspension of certain business activities, v) suspension of licence or a financial penalty not exceeding NAD 10 million (EUR 452 570) (s. 56(3), FIA).

193. Further, an AML-obliged person who does not perform CDD and identify the beneficial owners of its clients as prescribed by the AML framework commits an offence and is liable to a fine not exceeding NAD 100 million (EUR 4.5 million), and if the commission of the offence is attributable to a representative of the AML-obliged person, then such representative is liable to a fine or imprisonment not exceeding 30 years, or to both (s. 24(3), FIA). The same penalty applies to an AML-obliged person who does not maintain CDD and beneficial ownership records as required (s. 26(4), FIA).

194. The FIC and the Namibia Financial Institutions Supervisory Authority (NAMFISA) are mandated to supervise the implementation of AML requirements by AML-obliged persons. The FIC supervises the banking sector and non-financial AML-obliged persons, while NAMFISA supervises the non-banking financial sector.

195. In executing their supervisory mandates, both the FIC and NAMFISA employ risk-based approaches. Both institutions have developed supervision methodologies that are relied upon to conduct oversight, supervision and enforcement.

Supervision by the Namibia Financial Intelligence Centre

196. As discussed at paragraphs 32 and 33, Namibia has been working to address the deficiencies identified in its 2022 FATF Mutual Evaluation Report, and to this end, the FIC has updated its supervision methodology and enhanced its supervision and sanctioning since 2023. The FIC conducts regular compliance monitoring activities, which include reviewing periodic reports submitted by AML-obliged persons, considering information received from external sources that is likely to affect the compliance behaviour of AML-obliged persons, and continuously assessing risks at the sectoral and national levels. The FIC also provides training to AML-obliged persons to ensure proper understanding and implementation of all AML obligations.

197. The FIC's compliance assessment and supervision methodology was first developed in 2016 and is regularly updated. Based on its supervision methodology, the FIC prepares an annual plan that prioritises sectors and entities with a high risk of non-compliance. The annual plan identifies sectors and AML-obliged persons scheduled for supervisory activities in the given year and outlines the type and depth of planned examinations. Coordination with other regulatory and supervisory bodies is incorporated into the planning process to avoid duplication. For example, the FIC conducts joint assessments with other prudential regulatory authorities.

198. Supervisory actions undertaken by the FIC include off-site and on-site inspections and can be thematic reviews that are focused on addressing specific risks. Off-site inspections involve desk-based assessments conducted primarily by FIC officials on relevant data and information submitted or otherwise made available to the FIC. On the other hand, on-site inspections involve the FIC officials visiting the premises of the AML-obliged person under supervision. In many cases, both types of monitoring are conducted simultaneously.

199. AML-obliged persons identified as high-risk undergo more frequent and intensive supervision. During the on-site inspections, the FIC evaluates the AML-obliged person's internal procedures, the training and competencies of relevant officials and reviews selected client files, to assess the level of compliance. The selection of client files is informed by the prevalent or determined risks. Further, the FIC follows up on findings from previous supervisory cycles and assesses whether institutions have implemented required remedial measures, including improvements in internal controls and customer due diligence measures. Regarding identification of customers and beneficial owners, the examinations assess whether AML-obliged persons implement adequate measures, including timely and reliable identification and verification of customers and beneficial owners, understanding the purpose of relationships, and applying enhanced measures for higher-risk scenarios.

200. The representatives of the AML-obliged persons met during the on-site visit reported that during on-site inspections, authorities examine the entity's internal policies, procedures followed to onboard clients and to conduct CDD. The authorities select and review sample client files. The representatives of the AML-obliged persons further stated that where deficiencies are identified, sanctions have been issued.

201. During the period 2023 to March 2026, the FIC conducted a wide range of supervisory activities targeting AML-obliged persons. A total of 480 off-site inspections targeting AML-obliged persons that are relevant for EOIR purposes were conducted.

Category of AML-obliged persons	Number of AML-obliged persons as of 2026	Number of off-site inspections				
		2023	2024	2025	January-March 2026	Total
Accountants	297	1	262	4	20	287
Banks	7	6	0	0	3	9
Legal practitioners	212	10	37	2	5	54
TCSPs	238	0	82	31	17	130
Total	754	17	381	37	45	480

202. Moreover, the off-site inspections were supplemented with 103 on-site inspections. Over the three-year period, all the banks operating in Namibia were covered by on-site inspections at least once (see additional discussions under Element A.3).

Category of AML-obliged persons	Number of AML-obliged persons	Number of on-site inspections				
		2023	2024	2025	January-March 2026	Total
Accountants	297	0	1	0	1	2
Banks	7	2	7	8	4	21
Legal practitioners	212	7	57	0	5	69
TCSPs	238	1	9	0	1	11
Total	754	10	74	8	11	103

203. Comparing the different types of inspections, accountants and Trust Company Service Providers (TCSPs) had more off-site inspections compared to on-site inspections, while banks and legal practitioners were mainly covered through on-site inspections.

204. In 2024, the inspections mainly focused on non-financial professionals, especially accountants and legal practitioners. This followed amendments made to the definition of beneficial owner in July 2023. The inspections established whether CDD measures were well implemented, ongoing CDD was conducted based on risk, beneficial owners were identified, and records were well maintained. The representatives of the non-financial professions met during the on-site visit reported that the FIC inspections have enabled them to enhance their CDD practices.

205. Any deficiencies identified are communicated to the AML-obliged person for remediation. The FIC mainly applies the administrative sanctions elaborated in paragraph 192. During the period 2023 to 2025, the FIC cautioned and directed AML-obliged persons to rectify any shortcomings identified and these were promptly addressed. Further, the licences of 139 TCSPs were suspended for continued non-compliance, including inadequate CDD measures.

206. Monetary sanctions amounting to NAD 6.55 million (EUR 296 433) were also issued, mainly to banks. The authorities explained that whereas in 2022 and 2023 they frequently identified inadequate CDD measures and failure to properly identify beneficial owners as deficiencies, by 2024 and 2025, these have not been identified (see detailed discussion on supervision of banks under Element A.3). In all instances, where deficiencies have been identified, the obliged person must also present periodic reports on the progress made to address these deficiencies.

Supervision by the Namibia Financial Institutions Supervisory Authority

207. NAMFISA follows a similar approach to conduct supervision of the non-banking financial sector AML-obliged persons. AML-obliged persons and sectors assessed as high risk undergo more frequent supervision (at least once annually, based on past compliance behaviour).

208. Some of the key categories of AML-obliged persons supervised by NAMFISA include unit trusts, microlenders, life insurers and asset managers. From 2023 to 2025, NAMFISA conducted various off-site and on-site inspections targeting these AML-obliged persons. Some of the inspections conducted were follow-up and themed inspections focused on CDD measures and identification of beneficial owners.

Category of AML-obliged person	Number of AML obliged persons as of 2026	Off-site			On-site		
		2023	2024	2025	2023	2024	2025
Unit trusts	17	2	7	5	3	3	5
Microlenders	30	1	1	18	1	1	2
Life insurers	14	1	1	12	0	2	2
Asset managers	22	1	1	16	0	1	1

209. Namibian authorities reported that early on, failure to conduct CDD measures and failure to identify beneficial owners properly were more frequent. However, with continued supervision, training and sanctioning of non-compliance, there has been improvement in these aspects. For example, between 2019 and 2020, NAMFISA issued monetary sanctions amounting to NAD 14 million (EUR 633 598) to unit trust management companies and asset managers, mainly due to failure to conduct proper CDD. The sanctions applied also included suspension of licences for specific periods. In the supervisory cycles that followed, there has been marked improvement in both sectors. In 2023, NAMFISA issued monetary penalties amounting to NAD 6.6 million (EUR 298 696), and only NAD 24 024 (EUR 1 087) in 2024.

210. In conclusion, the statistical information provided by Namibia demonstrates that the FIC and NAMFISA's supervisory activities are of wide coverage. The activities cover banks and non-financial AML-obliged persons that are relevant for EOIR purposes. In terms of examinations conducted, the authorities evaluated the AML-obliged persons' CDD and beneficial ownership identification and record-keeping practices. Where deficiencies are identified, AML-obliged persons are required to address those deficiencies and report periodic progress. Moreover, sanctions that include the suspension of licences and

monetary penalties have been issued. There is an indication that the supervisory and enforcement interventions have improved compliance. Lastly, the designed annual programmes demonstrate that supervisory activities are structured and continuous.

211. As discussed in paragraph 117, Namibia revised the FIC guidance note in 2025. The 2025 amendments include explanations and examples on the different types of CDD to be conducted. The representatives of the banks met during the on-site explained and demonstrated that they were already familiar with the new aspects, although it was not clear that the representatives of the non-financial AML-obliged persons fully understood and applied CDD measures effectively. **Namibia is recommended to continue to monitor the implementation of recent changes in the guidance for identification of beneficial owners to ensure that adequate, accurate and up-to-date beneficial ownership information of all legal entities is available in all cases.**

Availability of beneficial ownership information in EOIR practice

212. Namibia received nine requests for beneficial ownership information of companies and successfully provided the requested information. Peers were satisfied with the responses obtained.

A.1.2 Bearer shares

213. Prior to July 2023, companies could issue share warrants to bearer with respect to a registered share in the register of members. The holders of such shares could only exercise their rights in the company upon depositing the share warrant at the company's premises. On 21 July 2023, amendments to the Companies Act abolished the issuance of share warrants to bearer.

214. Section 108(4) of the Companies Act provides that where a company had issued a share warrant to a bearer before 21 July 2023, the bearer must, within 30 days, convert the share warrant into an ordinary par value share. Further, for any share warrants not converted within the prescribed timeframe, the bearer would be liable to a fine not exceeding NAD 40 (EUR 1.8) for every day that the non-compliance continues.

215. Eventually, on 7 November 2023, the registrar issued a directive indicating that any share warrant to bearer not converted by 30 November 2023 would be considered null and void and all associated rights with such warrants lost. Further, there is no possibility to revive any of such rights or otherwise seek compensation. In addition, the bearer that still holds such shares would still be liable to the daily monetary penalty stated in paragraph 214 above. The directive further instructed all financial institutions, legal practitioners and stockbrokers not to conduct any transactions that involve share warrants to bearer.

216. Since a share warrant could only be issued in respect of an already registered share, Namibian authorities reported that the data stored at BIPA does not facilitate an effective check; however, the authorities are not aware of any companies that could have issued share warrants to bearer in the past. In any case, the issuance of share warrants to bearer is now prohibited. Any share warrants to bearer that were not converted are now lost and their holders cannot exercise any rights with the company. Further, owing to the self-enforcing nature of legal ownership rights in a company, it is incumbent upon the holder of the share warrant to ensure that its right to a share has been captured in the register of members, otherwise such a right would revert to the shareholder previously listed in the register. The registers of members of companies identify all the legal owners of the company except in situations of nominee arrangements (see paragraphs 83 to 87).

A.1.3 Partnerships

Types of partnerships

217. Partnerships in Namibia are legal arrangements without legal personality. There is no legislation governing the incorporation, registration or formation of partnerships in Namibia. As such, only general partnerships created by a contractual agreement between the partners in accordance with common law principles can be formed.

218. The income of partnerships is taxed at the level of the partners, while partnerships themselves must account for VAT and/or pay as you earn deductions made on employee remunerations. Accordingly, all partnerships carrying on business in Namibia must be registered with NamRA for tax purposes. There were 1 219 partnerships registered with NamRA as of 30 September 2025. Namibia further reported that 1 098 partnerships were identified as having active bank accounts with Namibian banks. Most of the legal practice work in Namibia is conducted under partnerships. The representatives of banks and lawyers confirmed that every legal practitioner who holds or receives money on behalf of another person is obliged to open a trust banking account. This requirement has also contributed to the high prevalence of bank accounts of partnerships in Namibia. Namibian authorities explained that the remaining 121 partnerships (10%) were related to an ongoing register cleaning exercise at NamRA.

Identity information

219. Identity information of partnerships is mainly available through tax and the AML laws. Further, although partnerships themselves have no legal obligations to maintain identity information of their partners, since partnerships are contractual arrangements between two or more persons or entities involved together in a business venture, the identity of partners to the arrangement should be known to the other partner(s), through the partnership agreement or otherwise.

220. Regarding tax law obligations, persons operating under a partnership that carry on business in Namibia or otherwise become liable for any tax, must register and submit returns to NamRA. Section 56(16) of the Income Tax Act (ITA) requires partners to submit separate income tax returns for each of the partners. Moreover, to register as an individual taxpayer, copies of the Namibian national identity card, Namibian passport and a copy of the driver's licence must be submitted. For non-Namibian citizens, a certified copy of the passport or asylum permit must be submitted. Consequently, the identity information on participants in a partnership is available with NamRA.

221. Additionally, as explained in paragraph 214, 90% of the partnerships registered with NamRA have bank accounts in Namibia. The representatives of the banks met during the on-site visit explained that in practice, banks strictly require partnerships to provide copies of partnership agreements before bank accounts are opened. Therefore, the identity information of a partnership shall also be available to banks (see additional discussion on beneficial ownership).

Beneficial ownership information

222. The AML framework is the only source of beneficial ownership information on partnerships in Namibia. However, there is no obligation in the legal and regulatory framework requiring all partnerships to engage an AML-obliged person in an ongoing business relationship. In practice, most partnerships have a bank account with a Namibian bank (see paragraph 217).

223. The FIA definition of beneficial owner as discussed in paragraph 109 applies to partnerships as well, with the exception that reference to “a legal person” in clause (b)(i) is replaced with “a partnership”.

“beneficial owner” means a natural person referred to in Schedule 5 who -

(a) for the purposes of this Act, ultimately owns or controls -

(i) a client or natural person; or

(ii) a natural person on whose behalf a transaction is being concluded; or

(b) exercises ultimate effective ownership or control over -

(i) a partnership;

where such ultimate ownership or ultimate effective control may be exercised directly or indirectly or through a chain of ownership or control other than direct control.

224. Further, schedule 5 of the FIA and the guidance note issued by the FIC explain the methods for the identification of beneficial owners of a partnership:

In relation to partnership, a natural person who ultimately owns or controls the partnership by -

(a) holding 25 percent or more of the ownership interest in the partnership; or

(b) being able to exercise, directly or indirectly, 25 percent or more of the votes in decision-making on amending the agreement on which the partnership is based or regarding the performance of that agreement otherwise than by acts of management, in so far as in that agreement decision-making by majority of votes is required, and where -

(i) there is doubt as to whether the natural person identified is the beneficial owner or the natural person on whose behalf a transaction is conducted; or

(ii) a natural person cannot be identified as the beneficial owner,

the person who holds the position of senior management in the partnership and record that the person has been identified as holding that position.

225. The determination of beneficial owners for partnerships must consider the specificities of their different forms and structures. In Namibia, partnerships are legal arrangements and in such a case, the standard requires that all the parties to the partnership and any natural person(s) who exercise control over the partnership be identified. Moreover, all the partners may be involved in decision making and management of the partnership, regardless of the percentage of their capital contributions or percentage of participation in the partnership.

226. While the definition refers to a 25% threshold of ownership interest, the main part of the definition as stated in paragraph 223 requires a simultaneous application of the criteria of ownership and control, and as such, would lead to the identification of all the partners in a partnership. Additionally, the FIC guidance note explains that for general partnerships, all partners should be considered as beneficial owners due to their direct involvement in the management and control of the partnership. Consequently, the definition and method contained in the FIA and the FIC guidance note facilitate the identification of beneficial owners in line with the standard.

227. As discussed in paragraph 222, the AML-framework is the only source of beneficial ownership information for partnerships, although not all partnerships are required to engage an AML-obliged person in an ongoing business relationship. Therefore, the beneficial ownership information of partnerships may not be available in some cases. Consequently, **Namibia is recommended to ensure that adequate accurate, and up-to-date beneficial ownership of partnerships is available in all cases, in line with the standard.**

228. AML-obliged persons are required to update beneficial ownership information whenever there is a change and/or to review and update CDD and beneficial ownership information at least once every year for high-risk clients and at least one in two years for all other clients. In practice, AML-obliged persons

have set frequencies in their internal policies. Namibian authorities have sanctioned AML-obliged persons for not setting appropriate policies or not following them (see paragraphs 185 and 186). Considering that AML-obliged persons may set frequencies in their internal policies that differ from those stated in the guidance, Namibia should align the provisions of the binding guidance and the practice by AML-obliged persons to ensure that CDD and beneficial ownership information are updated appropriately for all partnerships (see Annex 1).

229. The identity information of partnerships is maintained by NamRA indefinitely, while the beneficial ownership information of partnerships that cease to exist is maintained by AML-obliged persons, if applicable, or liquidators, as discussed in the paragraphs 189 and 190.

Oversight and enforcement

230. The obligations to maintain identity information are mainly supervised through tax audits.

231. The oversight and enforcement mechanism under the AML framework and supervisory activities by the FIC and NAMFISA discussed under section A.1.1 also apply to partnerships.

232. The FIC guidance note that was revised in 2025 contains new and more detailed guidance on the determination of beneficial ownership information of partnerships. The authorities explained that the changes in the guidance note have already been integrated in their oversight and supervisory activities; however, since the changes are recent, their implementation could not be fully assessed during this review. **Namibia is recommended to continue to monitor the implementation of recent changes in the guidance for identification of beneficial owners to ensure that adequate, accurate and up-to-date beneficial ownership information of all partnerships is available in all cases.**

Availability of partnership information in EOIR practice

233. Namibia did not receive any requests for identity or beneficial ownership in relation to partnerships during the review period, and peers have not reported any issues regarding the same.

A.1.4 Trusts

234. Trusts are recognised in Namibia and can be administered under the Trust Administration Act (TAA). All trusts established in Namibia are required to register with the Master of the High Court (MOHC), trusts division and all trustees of Namibian trusts (whether acting in professional or non-professional capacity) must be authorised by and registered with the MOHC (s. 8, TAA). The MOHC is a directorate under the Ministry of Justice and Labour Relations.

235. The following types of trusts can be created in Namibia:

- Inter-vivos trusts – trusts that are established whilst the founder is still alive and assets are donated to the trust for the benefit of beneficiaries. Beneficiaries may be identified or may be discretionary. Inter-vivos trusts are further subdivided into business trusts, family trusts, non-profit trusts and special vehicle trusts. There were 9 860 inter-vivos trusts registered in Namibia as of 30 September 2025.
- Testamentary trusts – trusts established in accordance with the instructions contained in a last will and testament of a deceased person. These govern the disposition of the property of a deceased person. There were 341 testamentary trusts registered in Namibia as of 30 September 2025.

236. Foreign trusts are also required to register with the MOHC (s. 8, TAA). The TAA defines foreign trusts as trusts created or registered in another jurisdiction that contain trust property located in Namibia. In the case of these foreign trusts (with trust property located in Namibia), at least one Namibian citizen or permanent resident must be appointed as a trustee.

237. Namibia's legal and regulatory framework does not prohibit a Namibian resident from acting as a trustee of a trust established under the laws of another jurisdiction. The definition of foreign trusts contained in the TAA does not cover the situation where a foreign trust arrangement that does not contain property located in Namibia, is administered by a trustee resident in Namibia. Nevertheless, under the FIA, TCSPs acting or arranging for a person to act as a trustee are obliged to conduct CDD for AML purposes. The provisions of the FIA do not cover situations where a non-professional trustee resident in Namibia manages a foreign trust arrangement that does not contain property in Namibia. Namibia should ensure the availability of beneficial ownership information of foreign trusts with non-professional trustees resident in Namibia (Annex 1).

Requirements to maintain identity and beneficial information in relation to trusts and implementation in practice

Identity information

238. The information identifying the persons that are parties to the trust arrangement and the beneficial ownership information of the trust is available from a combination of common law obligations on trustees, tax law obligations, trust administration obligations contained in the TAA and the requirements related to the identification of beneficial ownership contained in the TAA and the AML framework.

239. Under the common law, a trust is created by a settlor who may appoint the trustees. The common law obligations require trustees to have full knowledge of all the trust documents, act in the best interests of the beneficiaries and only distribute assets to the beneficiaries of the trust. Therefore, it is expected that these obligations can result in the trustee holding identity information on all trustees, settlor and beneficial owners (e.g. settlor(s) and the beneficiaries who are natural persons) to carry out the trustee's duties.

240. Further, any trust that becomes liable for any tax or becomes liable to submit any return is required to register for tax purposes and file tax returns with NamRA (s. 1 and 56 (1), ITA); see paragraphs 24 and 291). Pursuant to this requirement, 6 205 trusts are registered with NamRA. The ITA defines a trustee in a comprehensive manner and the definition includes anyone acting in private or official capacity and as such would cover both professional and non-professional trustees resident in Namibia. Trustees are responsible for the registration and filing of tax returns with respect to trusts. In some cases, the ITA requires that trustees register for tax purposes, as employers (s. 15 and 16). The registration for tax purposes requires the submission of identity information on the parties to a trust to NamRA.

241. Regarding trust administration obligations, the TAA (s. 8) requires that trust instruments of Namibian trusts and foreign trusts that contain property located in Namibia be registered with the MOHC. The trust instrument must be notarised, and for a foreign trust, the instrument must be certified by the authority of an official authorised in the jurisdiction of establishment.

242. The trust instrument must contain the following information:

- on the trust: the type of trust, its objects and the trust property
- identity and beneficial ownership: the trustee(s), beneficial owners.

243. The instrument should be accompanied by a written acceptance from the trustee to act in such a capacity. It should also be accompanied by an undertaking from an accountant or auditor to act as the accountant or auditor of the trust.

244. In addition, the trustee is obliged to keep the trust instrument and any other document that contains the terms of trust. The trustee must also maintain up-to-date records on the founder (full names and national identification number), beneficiaries (full names, identification and passport numbers) and information identifying all trustees; s. 20(1), TAA). The identity documents of the parties, such as passports

and other identity documents for individuals, and incorporation documents where the parties are legal persons, must be submitted to the MOHC.

Beneficial ownership requirements – Trust Administration Act

245. Regarding beneficial ownership information requirements, the TAA requires a trustee of a Namibian trust or relevant foreign trust to establish and record the beneficial ownership information of the trust (s. 22, TAA). The TAA directs that the definition of beneficial owner contained in the FIA is also applicable for purposes of the TAA. The definition as captured in paragraphs 109 and 223 applies to trusts as well, with the exception that reference to “a legal person” in clause (b)(i) is replaced with “a trust or other legal arrangement”.

246. Further, schedule 5 of the FIA and the guidance note issued by the FIC explain the methods for the identification of beneficial owners of a trust or similar arrangement. It states that:

In relation to a trust -

(a) the settlor;

(b) a trustee;

(c) a protector, if any;

(d) a natural person who is a beneficiary of a trust or a class of beneficiaries if the individuals benefiting from the trust are yet to be determined;

(e) any other natural person exercising ultimate control over the trust by other means; or

(f) any other natural person exercising ultimate effective control over a trust by means of direct or indirect ownership or by other means, such that when the person acts alone or jointly with another person or with the consent of another person, the person has ultimate power to –

(i) dispose of, advance, lend, invest, pay or apply trust property;

(ii) vary or terminate the trust;

(iii) add or remove a person as a beneficiary or as a class of beneficiaries of the trust;

(iv) appoint or remove a trustee or give another person control over the trust; or

(v) direct, withhold consent or overrule the exercise of a power referred to in subparagraphs (i) to (iv).

247. The definition requires the identification of all parties to a trust in accordance with the standard. In addition, it states that any other natural person who has ultimate effective control of the trust should be identified. Moreover, it explains that direct and indirect control and whether the person is acting alone or jointly should be considered. Finally, it lists examples of control in clause (f) while clause (e) already provides that any other means of control should be considered.

248. To supplement the definition and methodology of identification of beneficial ownership of trusts as contained in the FIA, the FIC guidance note explains that for trusts, where legal persons hold the positions of the parties to a trust, then the beneficial owners of such persons must be identified. This would ensure looking through the parties of the trust.

249. Every trustee is mandated to keep a register of parties to the trust and a register of beneficial owners of the trust, and to submit such information to the MOHC. The trustee must verify that the beneficial ownership information submitted to MOHC is accurate, adequate and up to date. For each beneficial owner, the information that must be maintained includes:

- full names and any former names; for a Namibian citizen, the date of birth and national identity number; for non-citizens, the passport number
- addresses and telephone contacts – residential, business, email and postal addresses and telephone contacts
- nationality
- date indicating the beginning and conclusion of beneficial ownership and nature and extent of beneficial ownership.

250. A trustee must keep certified copies of all the identity documents (Regulation 7, TAA Regulations).

251. The trustee is obliged to submit the beneficial ownership of the trust to the MOHC at the time of registration. Any changes to the reported beneficial ownership must be reported within 14 days (s. 22, TAA). In addition, the trustee must submit annual declarations of beneficial ownership to the MOHC.

252. The identity and beneficial ownership information maintained by the trustee should be kept for at least five years from the date of termination of the trust or longer if required (s. 26, TAA).

Beneficial ownership requirements – Anti-money laundering law

253. Regarding AML obligations, trustees in Namibia have obligations to conduct CDD and identify the beneficial ownership information of the trust. The definition discussed above and the additional guidance contained in the FIC guidance note (see paragraphs 246 to 248) apply to trustees while conducting CDD and identifying the beneficial ownership information of trusts.

254. AML-obliged persons are required to update beneficial ownership information whenever there is a change and/or to review and update CDD and beneficial ownership information at least once every year for high-risk clients and at least one in two years for all other clients. In practice, AML-obliged persons have to set frequencies in their internal policies, which may slightly depart from the regulatory guidance, however, the authorities require that such frequencies still be appropriate. Namibian authorities have sanctioned AML-obliged persons for not setting appropriate policies or not following them (paragraphs 185 and 186). For trusts, any potential gap is mitigated by the requirements on trustees to update the information submitted to MOHC within 14 days of change and through annual returns. Considering that AML-obliged persons may set frequencies in their internal policies that differ from those stated in the guidance, Namibia should align the provisions of the binding guidance and the practice by AML-obliged persons to ensure that CDD and beneficial ownership information are updated appropriately for all trusts (see Annex 1).

Oversight and enforcement

255. The oversight and enforcement framework described under section A.1.1 also applies to trusts.

256. Regarding the submission of beneficial ownership information to the MOHC, awareness and sensitisation activities were conducted in tandem with BIPA. The trusts that have not submitted their beneficial ownership information are administratively classified by the MOHC as being inactive. The MOHC has issued various directives since 2023 to require the submission of beneficial ownership information, utilisation of trust practitioners that are registered and the deregistration of trusts that have not submitted beneficial ownership information. To this end, 815 trusts that were inactive have since been deregistered and 63% of all the registered trusts have submitted their beneficial ownership information. When a trust is deregistered, the trust property is distributed as per the trust deed and if no beneficiaries were identified, the trust property will vest in the government.

257. Namibian authorities reported that the MOHC conducts checks on the submitted beneficial ownership information. The MOHC checks that only notarised and certified (for non-Namibian citizens) identity information is submitted. No further qualitative or completeness checks have been performed on

the submitted information yet. **Namibia is recommended to strengthen its supervision and enforcement actions to ensure the availability of adequate, accurate and up-to-date beneficial ownership information of trusts (including inactive ones) in all cases, in line with the standard.**

258. Regarding the AML obligations, the oversight and enforcement activities conducted by the FIC and NAMFISA also cover trustees and trust practitioners (see paragraph 138). The FIC guidance note was recently improved in 2025. The authorities have already started supervising the implementation of the recent changes, although it was not clear that non-financial AML-obliged persons fully understood and applied CDD measures effectively. **Namibia is recommended to continue to monitor the implementation of recent changes in the guidance for identification of beneficial owners to ensure that adequate, accurate and up-to-date beneficial ownership information of all trusts is available in all cases.**

Availability of trust information in EOIR practice

259. Namibia received five requests on beneficial ownership information of trusts, and in all cases, the requested information was provided to the requesting jurisdictions. Peers were satisfied with the responses obtained.

A.1.5 Foundations

260. Foundations can be established in Namibia as non-profit companies under section 21 of the Companies Act, as non-profit trusts under the TAA, or as welfare organisations under the National Welfare Act. In all situations, these foundations must pursue non-profit or public interest activities of a charitable, religious, cultural, educational, political, social, fraternal purpose or any other type of welfare activity intended to benefit the public or a section of the public. No portion of the foundation's income can be paid whether directly or indirectly to its members.

261. Therefore, foundations in Namibia are not relevant for EOIR purposes. In any case, these structures are closely monitored by the FIC to ensure that they are not misused for money laundering and terrorism financing purposes.

Other relevant entities and arrangements – co-operative societies

262. The formation and regulation of co-operatives is governed by the Co-operatives Act, which is administered by the Registrar of Co-operatives. Section 5 of the Co-operatives Act requires that all co-operatives be registered with the Registrar of Co-operatives. Co-operatives obtain legal personality upon registration (s. 17(1)(a), Co-operatives Act).

263. Co-operatives are either workers' co-operatives or service co-operatives. There were 23 workers co-operatives and 211 service co-operatives registered in Namibia as of 30 September 2025. Namibia reported that most co-operatives are in the agriculture sector (84% of all registered co-operatives).

264. The objective of a co-operative in Namibia is the promotion of the economic and social interests of its members by providing effective services to its members in accordance with sound business principles. There are three categories of co-operatives. Individuals and other persons may form a primary co-operative. The individuals must be citizens or ordinary residents in Namibia, while legal persons must be Namibian entities. Two or more primary co-operatives can form a secondary co-operative. Two or more secondary co-operatives may form a co-operative that would be at a higher level than a secondary co-operative (s. 10, Co-operatives Act). All the co-operatives in Namibia are primary co-operatives except

one, which is a secondary co-operative. Once co-operatives reach a significant level of growth,¹⁵ they are required to convert or transform into other legal entities, such as companies or close corporations.

265. Foreign co-operatives are permitted to operate in Namibia, but only upon registration. The foreign co-operative can only be permitted if at least one of its members is a Namibian co-operative, no foreign co-operative can be registered as a primary co-operative. In practice, there are no foreign cooperatives registered in Namibia.

Identity information on members

266. The information identifying the founding members of a co-operative must be submitted to the Registrar of Co-operatives at the time of registration. There are no further requirements for co-operatives to submit the information of their members to the Registrar of Co-operatives, which means that the registrar may not have up-to-date information on its membership. Nevertheless, robust identity information is maintained by the co-operatives themselves.

267. Co-operatives must keep a register of their members at their offices in Namibia. For each member, the register of members must contain the full names, identity number and address details. For legal entity members, the entity registration number must be included. All the rights of membership are drawn from the register of members (s. 20, Co-operatives Act) and thus, it is incumbent upon members to pursue their rights and be included on the register.

268. Additionally, co-operatives are registered with NamRA for tax purposes and must submit information on their members through the tax registration process. All co-operatives are taxable and must register with NamRA to account for income taxes,¹⁶ VAT or pay as you earn deductions on employees. Co-operatives are required to include an updated list of their members in the financial statements submitted to NamRA for income tax reporting purposes. Therefore, the information identifying the members of a co-operative is also available at NamRA.

Beneficial ownership information

269. The beneficial ownership information of co-operatives is available through the AML framework. The Co-operative Societies Ordinance requires every co-operative to have a bank account into which all the money received by the co-operative must be deposited. The Namibian authorities confirmed that, in practice, only bank accounts from Namibian banks are accepted. Therefore, the availability of beneficial ownership information is ensured through the CDD obligations of banks.

270. The definition of beneficial owner discussed under section A.1.1 for legal entities also applies for co-operatives. As discussed in paragraphs 109 to 120, the definition and methods of identifying beneficial owners of legal entities are robust.

271. AML-obliged persons are required to update beneficial ownership information whenever there is a change and/or to review and update CDD and beneficial ownership information at least once every year for high-risk clients and at least one in two years for all other clients. In practice, AML-obliged persons have set frequencies in their internal policies. Namibian authorities have sanctioned AML-obliged persons for not setting appropriate policies or not following the internal policies (paragraphs 185 and 186). Considering that AML-obliged persons may set frequencies in their internal policies that differ from those stated in the guidance, Namibia should align the provisions of the binding guidance and the practice by

¹⁵ The determination of growth is at the discretion of the Registrar of Co-operatives. Contributing factors include: the co-operative's operational scale, the amount of member benefits, and overall sustainability.

¹⁶ Service co-operatives account for income taxes on surplus incomes left after the provision of shared services, while worker's co-operatives account for income taxes on their net profits.

AML-obliged persons to ensure that CDD and beneficial ownership information are updated appropriately for all co-operatives (see Annex 1).

272. A co-operative may cease to exist through dissolution and liquidation, amalgamation, transfer, division and conversion to other legal forms (ss. 73, 74, 76 and 77, Co-operatives Act). When a co-operative is amalgamated, transferred or converted, then the surviving or new co-operative retains the membership information of the extinguished co-operative. On the other hand, if the co-operative ceases to exist through dissolution and liquidation, the liquidator is obliged to hand over all the books and records of the co-operative to the Registrar of Co-operatives. Although the act is not explicit on how long the registrar should keep such records, Namibian authorities explained that in practice, all records submitted to the registrar are kept indefinitely.

Oversight and enforcement activities

273. The obligations to maintain identity information are mainly supervised through audits from the office of the Registrar of Co-operatives. Officers of the registrar also join the annual general meetings of co-operatives as auditors and as developmental partners to guide the members.

274. Regarding beneficial ownership information, the oversight and enforcement mechanism under the AML framework and supervisory activities discussed under section A.1.1 apply to co-operatives. The obligations concerning the identification and maintenance of beneficial ownership information on co-operatives by AML-obliged persons are supervised by the FIC and NAMFISA.

275. The FIC guidance note that was amended in 2025 contains new and more detailed guidance on the determination of beneficial ownership information of co-operatives. The authorities explained that the changes in the guidance note have already been integrated in their oversight and supervisory activities, however, since the changes are recent, their implementation could not be fully assessed during this review. **Namibia is recommended to continue to monitor the implementation of recent changes in the guidance for identification of beneficial owners to ensure that adequate, accurate and up-to-date beneficial ownership information of all co-operatives is available in all cases.**

Availability of information on co-operatives in EOIR practice

276. Namibia did not receive any requests for identity or beneficial ownership in relation to co-operatives during the review period, and peers have not reported any issues regarding the same.

A.2 Accounting records

Jurisdictions should ensure that reliable accounting records are kept for all relevant entities and arrangements.

277. The legal and regulatory framework contains sufficient obligations to maintain accounting records and underlying documentation by all relevant entities and arrangements in Namibia. These obligations are broadly set through a combination of company and tax laws. The Companies Act, Close Corporations Act, Trust Administration Act and Co-operatives Act contain obligations for the relevant entities and arrangements, while the Income Tax Act and the VAT Act contain obligations that apply to all legal entities and arrangements, including partnerships.

278. There are appropriate mechanisms to ensure that accounting records and underlying documentation are kept for at least five years, including when entities cease to exist.

279. Regarding the implementation of the legal and regulatory framework, the key supervisory functions are conducted by the Namibia Revenue Agency. These are complemented by the oversight role performed by the Public Accountants and Auditors Board and by the Registrar of Co-operatives.

280. Entities are required to submit accounting information through periodic tax returns. The Namibia Revenue Agency has carried out various monitoring, supervisory and enforcement activities to ensure compliance with these obligations. From 2023 to 2025, the rate of compliance with filing for income tax, for large taxpayers stood at an average of 85% while it was 47% for small and medium taxpayers. The rate of compliance for filing for VAT stood at an average of 96% for large taxpayers and 82% for small and medium taxpayers. When taxpayers fail to file their returns, the Namibia Revenue Agency conducts comprehensive risk-based examinations using third party information from sources such as local authority councils, ministries and other agencies such as the Financial Intelligence Centre, as well as financial institutions, to determine whether such non-compliant entities are involved in business activities. The entities conducting business activities are then selected for tax audits. From 2023 to 2025, the Namibia Revenue Agency conducted tax audits covering 12.4% of the total entities and additional tax assessments were raised.

281. Despite these supervisory efforts, there remains a concern regarding the percentage of entities (mainly small and medium taxpayers) that are not compliant with tax filing obligations. Namibia is recommended to strengthen the effectiveness of its supervisory and enforcement programmes to ensure that non-compliant entities do not affect the availability of accounting records.

282. Namibia received 20 requests for accounting information, and the requested information was provided in all cases.

283. The conclusions are as follows:

Legal and regulatory framework: In place

No material deficiencies have been identified in the legislation of Namibia in relation to the availability of accounting information.

Practical implementation of the standard: Largely Compliant

Deficiencies identified/ Underlying Factor	Recommendations
Entities are required to submit accounting information through periodic tax returns. The Namibia Revenue Agency has carried out various monitoring, supervisory and enforcement activities to ensure compliance with these obligations. However, there are still many entities (mainly small and medium taxpayers) that are not compliant with their tax filing obligations.	Namibia is recommended to strengthen its supervision and enforcement mechanisms to ensure that accounting records and underlying documentation are available for all relevant legal entities and arrangements in all cases.

A.2.1 General requirements

284. The requirements to maintain accounting records and underlying documentation for all relevant entities and arrangements in line with the standard are set out through a combination of tax and company law obligations. The Companies Act (companies), CC Act (close corporations), TAA (trusts) and Co-operatives Act (co-operatives) contain record-keeping obligations for the relevant entities and arrangements. Further, the Income Tax Act (ITA), the VAT Act and the Customs and Excise Act impose similar obligations on companies, partnerships, trusts and co-operatives. The various legal regimes and their implementation in practice are analysed below.

Companies and close corporations

285. Every company, including a foreign company that establishes business in Namibia, must keep accounting records that adequately and fairly reflect its financial position and business activities (s. 292, Companies Act). The records must contain all entries of money received or expensed and a record of all goods or services sold. The records must enable the preparation of annual financial statements that conform with generally accepted accounting practice and must contain: i) a balance sheet and any notes or documents annexed to it; ii) an income statement and any notes attached to it; iii) a cashflow statement; iv) a directors' report; and v) an auditor's report.

286. The accounting records of the company may be kept at the company's registered office in Namibia or at a place outside of Namibia. Where the records are kept outside Namibia, they must be sent to a place in Namibia at intervals not exceeding 12 months. In the latter case, the records sent to Namibia must be complete and should enable the determination of a company's financial position. The records must also be available for inspection by the directors, external auditors and enable the preparation of the company's annual financial statements. The representative of auditors and accountants met during the on-site visit confirmed that in practice, they have always found all accounting records and underlying documentation (see paragraph 305) available at the company's premises in Namibia or easily accessed through online platforms. This position was also confirmed by NamRA's tax auditors. Consequently, the accounting records available in Namibia are sufficient to disclose with reasonable accuracy the financial position of the company at any time, including when such records are kept outside and submitted to a place in Namibia annually.

287. Copies of financial statements of public companies or private companies that are subsidiaries of public companies, must be submitted to BIPA, annually. Namibia has explained that the monitoring of the submission of such statements only started recently and there are no statistics that are readily available. Further, for all public companies that are listed, the financial statements of such companies are posted on the individual company websites.

288. Close corporations are also mandated to keep accounting records and prepare annual financial statements, as discussed in paragraph 285. In addition, the accounting records of a close corporation must contain the accounting relating to the contributions of members, loans disbursed and any other payments to members (s. 56, CC Act). Further, instead of an auditor's report, the financial statements of a close corporation contain a report of the corporation's accounting officer.¹⁷ The accounting records of the close corporation must be kept at the corporation's registered office or business premises in Namibia.

289. If accounting records are not kept in bound books, the company or close corporation must take adequate measures to prevent falsification and to ensure that any falsification can be detected.

¹⁷ Every close corporation is obliged to appoint an accounting officer who is a member of a professional body (such as accountants body) and cannot be one of the members of the close corporation

Trusts and co-operatives

290. The Trust Administration Act (TAA) and Co-operatives Act contain robust obligations that require the keeping of accounting records of trusts and co-operatives in line with the standard.

291. Section 20 of the TAA requires every trustee to maintain records of the trust property that identify the assets, liabilities, income and expenses relating to the property. In addition, the trustee must maintain all transactions and advisory services related to the trust accounts, including the trust investments. The trustee must also keep a record of all payments made to themselves or any other trustees. All these records must also be submitted to the MOHC, annually. The definition of a trustee as contained in the ITA covers both professional and non-professional trustees (see paragraph 240 and below).

292. Similarly, co-operatives are obliged to keep accounting records in accordance with generally accepted accounting principles that fairly reflect the situation, business, and explain the transactions and financial position of the co-operative (s. 63, Co-operatives Act). The co-operative is also mandated to prepare annual financial statements that contain a balance sheet, an income statement, the board's report and the auditors' report.

293. The financial statements of the co-operative must be audited by an external auditor and a copy of these audited statements must be submitted to the Registrar of Co-operative, annually (s. 64, Co-operatives Act).

Tax law requirements

294. Tax law requirements provide the primary source of obligations to ensure the availability of accounting records for partnerships and provide complementary obligations for companies, close corporations, trusts and co-operatives. There are no direct obligations in the ITA requiring taxpayers to maintain accounting records. However, taxpayers must maintain and provide records to NamRA to comply with certain obligations.

295. Firstly, all companies, close corporations, partnerships, trusts and co-operatives liable to income tax in Namibia are required to submit an annual return to NamRA. The tax returns must be supported by financial statements that are certified by an accountant registered with the Institute of Chartered Accountants of Namibia (s. 62a, ITA) or a similar body. The financial statements of a close corporation must be certified by its accounting officer who must be registered with the Namibian Institute of Professional Accountants. Any person who submits such financial statements, including the auditor, must submit a statement on the scope of the examination carried out, of the books of account and of the underlying documents from which those books were prepared, and a statement, to the extent determinable from such examination, on whether the entries in those books and documents accurately reflect the true nature of any transaction, receipt, accrual, payment or debit (s. 63, ITA).

296. Secondly, taxpayers are required to produce for examination any deeds, plans, instruments, books, accounts, trade lists, stock lists, or other documents that are necessary for the administration of the ITA. This requirement facilitates tax audits and inspections.

297. The VAT Act supplements the requirements of the ITA in requiring all VAT registered taxpayers to maintain proper accounting records. The VAT Act elaborates on the situations where the accounting records of an entity may be maintained at a place outside of Namibia. It states that if the records are kept outside of Namibia, such records must be maintained in a computerised system that is linked to a registered place of business in Namibia and hence must be accessible from Namibia (s. 48, VAT Act). This requirement of the VAT Act further ensures that the system in place allows timely availability of accounting records in all cases.

298. Moreover, section 112(1)(a) of the Customs and Excise Act requires persons conducting business in Namibia to maintain the books, accounts, documents or information relating to business transactions.

This requirement extends beyond persons who import or export goods into or from Namibia. This is because section 113 of the act requires any person who sells, offers for sale, deals in, removes, or has recorded in their books any imported, excisable, or fuel-levy goods, or whose documents contain references to such goods, to be able to provide accountability of customs duties that were paid in respect of such goods.

299. Therefore, for purposes of compliance with direct and indirect tax obligations and customs duties, entities and arrangements are obliged to maintain accounting records, in line with the standard.

Retention period and entities that ceased to exist

300. The Companies Act and Co-operatives Act do not contain explicit obligations on the retention of accounting records, although both acts require that such records should always be available for inspection. On the other hand, the CC Act prescribes to retain the accounting records of a close corporation for at least 15 years (Regulation 9, General Regulations). The accounting records that are submitted to BIPA and the Registrar of co-operatives are maintained indefinitely.

301. Tax law contains more explicit obligations to maintain records for at least five years. Section 65(1)(f) of the ITA requires taxpayers to keep their accounting records for at least five years from the date of last entry of such records, while section 48(5) of the VAT Act requires the records to be kept for at least five years after the elapse of the tax period to which the records relate. The obligations of the tax laws cover all entities and arrangements (such as partnerships). In addition, the accounting records submitted to NamRA as part of tax returns and through tax audits are kept indefinitely.

302. Additionally, the accounting records of companies and close corporations that cease to exist must be maintained by appointed custodians (former directors in case of a company) or liquidators (see paragraphs 69 to 73). The accounting records of a co-operative that ceases to exist are submitted to the Registrar of Co-operatives (see paragraph 272).

303. Regarding trusts, the TAA (s. 26) mandates trustees to retain the records of a trust for five years, or longer if required by the MOHC, after the trust arrangement is terminated. If there is more than one trustee, all the trustees must comply with the obligation to maintain the accounting records.

304. Namibian authorities explained that although they have not received any requests regarding entities that ceased to exist, they have accessed such information without any challenges, for domestic cases. In conclusion, the various obligations taken together ensure the retention of accounting records, including when the entities or arrangements cease to exist, in accordance with the standard.

A.2.2 Underlying documentation

305. Entities are required to keep accounting records that are sufficient to show and explain the transactions of the entity (s. 292, Companies Act, s. 56(1), CC Act and s. 63 (1), Co-operatives Act). These records must explain the entity's transactions and financial state and must include:

- documents showing the company's assets and liabilities
- a fixed-asset register indicating the dates of acquisition, cost, depreciation (if applicable), dates and amounts of any revaluation, and the dates and proceeds of any disposals
- day-to-day records detailing all cash received and paid out, with sufficient information to identify the purpose of each transaction
- where the company deals in goods, records of all goods bought and sold. Except in ordinary retail trade, these records must identify the goods and the buyers and sellers with enough detail to determine their nature and identity
- annual stocktaking statements.

306. The ITA (s. 63(1)) further specifies that all taxpayers should maintain all books of accounts and the documents from which the books of accounts were drawn and the documents that support the true nature of any transaction, receipt accrual or payment. These comprehensive records would also cover underlying documentation. Moreover, the VAT Act (s. 48(1)) states that taxpayers should keep copies of all invoices, tax credit and debit notes, customs documentation relating to imports and exports and any other records the Commissioner may determine.

307. When entities cease to exist, or trust arrangements are terminated, the obligations discussed in paragraphs 301 to 303 also apply to ensure that the underlying documentation shall be maintained in line with the standard.

Oversight and enforcement of requirements to maintain accounting records

308. The obligations to maintain accounting records and underlying documentation are enforceable through a range of penalties that address various forms of non-compliance, including failures by legal entities or arrangements to keep proper records as required, non-submission of tax returns, and breaches of the rules governing the preparation of financial statements.

309. If a company fails to comply with the obligations to keep its accounting records and underlying documentation, every director or officer of the company responsible for that failure or who fails to rectify the non-compliance, is liable to a fine not exceeding NAD 8 000 (EUR 362) or to imprisonment for a period not exceeding two years or both (s. 292(4), Companies Act). The CC Act (s. 82) prescribes a similar offence for the members of a corporation that fail to keep proper accounting records and underlying documentation.

310. In addition, if a company fails to prepare annual financial statements, the directors and officers of the company are liable to a fine not exceeding NAD 2 000 (EUR 90.5) and imprisonment for a period not exceeding three months, or both. Moreover, if a company issues, circulates or publishes any financial statements that are materially incomplete or otherwise fail to meet the requirements of the act, every director or officer involved in such issuance is liable to a fine of up to NAD 1 000 (EUR 45), imprisonment for a period not exceeding three months, or both (s. 295, Companies Act). A similar penalty regarding close corporations exists.

311. The tax law obligations also carry sanctions for non-compliance. Section 66 of the ITA states that a taxpayer who fails to submit a tax return, omits information from a tax return, or makes an incorrect statement in the tax return, is subject to a fine equal to double the top-up tax. Moreover, the ITA contains criminal sanctions. A taxpayer who fails to file a tax return, or submits a false statement, is liable on conviction to NAD 300 (EUR 16) or imprisonment not exceeding three months or both (s. 65).

312. The VAT Act also prescribes relevant penalties. Failure to maintain proper accounting records attracts a penalty not exceeding NAD 8 000 (EUR 362) or imprisonment not exceeding two years, or both.

313. The Namibian authorities explained that in practice, the supervisory and enforcement measures related to the maintenance of accounting records and supporting documentation are typically carried out within a broader compliance monitoring and enforcement framework. These measures generally comprise a mix of preventive programmes, verification procedures and audits.

Supervision by the Namibia Revenue Agency

314. NamRA is the main supervisory agency conducting key oversight and enforcement to ensure compliance with accounting records keeping obligations. NamRA employs various mechanisms that include taxpayer education and service management to improve voluntary compliance. Further, taxpayer returns are examined for accuracy and where applicable, additional tax assessments are raised, or audits and investigations conducted.

315. The filing of income tax and VAT returns is monitored as a key indicator of an entity's tax compliance obligations. As discussed in paragraph 295, the income tax returns of entities include audited financial statements, while the VAT returns outline the entities transactions in terms of incomes and expenses. Therefore, the tax returns are a source through which some accounting information is submitted to NamRA and are also an indicator of how entities comply with their record keeping obligations. Namibian authorities reported that by the end of the 2024/2025 tax year, 199 998 (85%) entities were registered with NamRA compared to 234 000 entities registered at BIPA. The authorities explained that the difference of 15% is accounted for by data cleansing efforts that are ongoing between the two agencies, including the process of removing deregistered entities from the commercial registrar (see paragraphs 97 and 173).

316. Regarding the entities that are registered with NamRA, the rate of compliance of large taxpayers¹⁸ with their obligation to file their income tax and VAT returns is relatively high. From 2023 to 2024, 85% of the large taxpayers filed their income tax returns. The non-compliant taxpayers are pursued through targeted filing demand letters and/or audits (see paragraphs 320 to 324).

Tax year	Number of large taxpayers	Number of Income tax returns filed	Compliance rate
2023	836	697	83%
2024	853	735	86%
2025	916	779	85%

317. Namibia authorities explained that large taxpayers contribute approximately 50% of Namibia's tax revenues and are the ones likely to be engaged in transactions that are subject to EOIR. In practice most of the EOIR requests so far received by Namibia were on entities and arrangements with substantial asset bases.

318. Additionally, for VAT purposes, 96% of large taxpayers filed their monthly returns.

Tax year	Number of VAT returns expected from large taxpayers*	Number of VAT returns filed	Compliance rate
2023	5 016	4 889	97%
2024	5 118	4 873	95%
2025	5 496	5 263	96%

*This corresponds to the bi-monthly VAT returns expected from taxpayers segmented as large taxpayers.

319. However, the compliance rate for the entire taxpayer base, including medium and small taxpayers, is lower for income tax purposes. The compliance rate for the bi-monthly VAT returns¹⁹ remains relatively high at an average of 83%.

¹⁸ Taxpayers that have an annual turnover of NAD 75 million (EUR 3.4 million) and all entities in the mining, financial services, fishing, oil and gas sectors and state-owned enterprises (regardless of turnover).

¹⁹ Since 2024, the threshold for compulsory VAT registration is making taxable supplies exceeding or expected to exceed NAD 1 million (EUR 45 257) in any 12-month period. Before then, the threshold stood at NAD 500 000 (EUR 22 628). Entities whose annual turnover amounts to NAD 200 000 (EUR 9 051) may apply for voluntary registration for VAT purposes.

	2022/2023	2023/2024	2024/2025
Income tax return filing			
Income Tax returns filed	65 635	56 923	93 689
Number of registered taxpayers	190 125	197 505	199 998
Compliance rate-Income Tax	35%	29%	47%
VAT return filing			
VAT returns filed	955 178	987 010	981 190
Expected VAT returns	1 140 750	1 185 030	1 199 988
Compliance rate-VAT	84%	83%	82%

320. NamRA continually evaluates and monitors each taxpayer's compliance with filing requirements by examining their submission history to assess both timeliness and accuracy. As part of these compliance reviews, officials perform periodic reconciliations between taxpayer declarations, payments made and corresponding financial statements to detect inconsistencies or potential discrepancies. Namibian authorities explained that these compliance reviews follow a risk-based methodology in which taxpayers are classified according to their filing behaviour and overall risk profile. The insights obtained from these assessments feed into compliance actions such as tax audits.

321. For taxpayers who do not file their statutory tax returns, follow-up actions that include reminders and eventual audits are conducted (see paragraphs 323 and 324). In other cases, the audits arise out of discrepancies identified in taxpayer returns, or from information obtained through third parties, whistleblowers or intelligence.

322. NamRA conducts diverse types of audits that include comprehensive audits, transfer pricing audits, issue audits and verification audits. The most common types of audits are issue audits (focusing on particular tax types) and verification audits (focusing on taxpayer refunds).

	2022/2023	2023/2024	2024/2025	1 April-21 November 2025	Total
Number of audits	5 885	7 281	8 327	3 339	24 832
Total assessments raised (NAD)	112 835 223	1 711 983 523	2 190 125 989	1 151 343 246	5 166 287 981
Total assessments raised (EUR)	5 106 590	77 479 341	99 118 664	52 106 410	233 811 006

323. Between 2022 and 2025, NamRA conducted an average of 7 000 tax audits annually with a total of 24 832 (12.4% of entities) audits conducted overall. The audits evaluate the availability, completeness and accuracy of accounting records and underlying documentation kept by taxpayers. NamRA reported that in most cases, taxpayers kept accounting records, although there were instances of under-reported incomes and mismatches in the records. Where the taxpayers could not provide all the accounting records, additional assessments were raised and the taxpayers must submit the missing records.

324. In general, additional taxes amounting to over EUR 233 million were raised from all the tax audits conducted. During this period, Namibia was running a penalty waiver amnesty programme and as such, only principal taxes were payable. In addition, through these audits, NamRA identified 25 non-compliant taxpayers that were eventually assessed taxes amounting to NAD 123 292 936 (EUR 5 579 875).

325. The information submitted by the Namibian authorities indicates that NamRA has employed varied approaches to improve compliance, thereby ensuring that part of the accounting information is submitted to the authorities. They have supplemented this by carrying out tax audits and investigations to recover undeclared tax and consequently ensure that entities keep accounting records and underlying documents. However, there are concerns regarding non-compliant entities.

Inactive (non-compliant) entities

326. The statistics provided by Namibia demonstrate that an estimated 63% of the entities are not compliant regarding the obligation to file income tax returns to NamRA. The rate of non-compliance for VAT is much lower at 17%. Although NamRA does not have a formal categorisation for such entities, the Namibian authorities explained that most of the non-compliant entities are the same population that has been classified as inactive by BIPA as discussed in paragraphs 99 and 176 to 177. Most of the entities are close corporations that, in some cases, did not commence business operations, or entities that are classified as small taxpayers.

327. The authorities explained that the list of taxpayers who have not submitted their returns within the required timeframe (non-filers) is periodically extracted for further management. If a taxpayer does not respond to initial outreach, a demand letter is issued after 21 days. Should there still be no response, a second demand letter follows 14 days later. These steps are designed to give taxpayers multiple opportunities to file before stronger enforcement measures are considered.

328. When taxpayers fail to respond even after the demand letters, their cases are escalated for audit or investigation. At this stage, risk management, intelligence and regional teams all conduct various activities on a risk basis to identify non-filers that may be actively engaged in business activities. The risk management unit utilises data from tax filings to detect high-risk non-filers and identify patterns of non-compliance. The Intelligence unit collaborates with other agencies such as the FIC and BIPA to identify potential non-filers involved in high-risk sectors like mining. Lastly, NamRA teams and inspectors based in different regions conduct field visits to establish if the non-filers are engaged in business activities. They work closely with local councils that may have issued tenders to such entities. Where it is identified that the non-filers are engaged in business, audits are conducted.

329. Despite these coordinated efforts to manage non-filers and improve overall tax compliance, there is still an issue with non-compliant entities, especially regarding filing for income tax purposes. Notably, the rate of compliance with VAT returns is higher, implying that there are entities that are engaged in business and not complying with their obligations to file the annual income tax returns. Consequently, **Namibia is recommended to strengthen its supervision and enforcement mechanisms to ensure that accounting records and underlying documentation are available for all relevant legal entities and arrangements in all cases.**

Oversight by other agencies

330. An external auditor must audit the annual financial statements of companies and co-operatives. All registered audit firms and registered auditors or accountants accredited by the Public Accountants and Auditors Board undergo periodic quality assurance reviews, which assess both the firm's internal quality controls and the individual practitioner's adherence to auditing standards through audit file inspections. Review outcomes can be either satisfactory, indicating full compliance and resulting in the next quality assurance review being scheduled after three years, or unsatisfactory, meaning deficiencies were identified; in such cases, the firm or practitioner must implement improvements and undergo a re-review after one year.

331. The representatives of the Public Accountants and Auditors Board explained that, typically, auditors examine the accounting records of the entity, including detailed ledgers, reconciliations, and supporting schedules and underlying documents such as invoices, contracts, confirmations, or bank statements to form their professional opinions on the entity's accounts. They explained that in practice, auditors must be given access to all evidence necessary to obtain appropriate audit assurance.

332. Regarding co-operatives, the supervisory functions for accounting records maintenance are also supervised through audits conducted by officials from the office of the Registrar of co-operatives. In practice, approximately 99% of co-operatives are audited annually. These audits examine the

completeness of the annual financial statements, supporting accounting records, minutes of meetings, and any other documentation required to demonstrate compliance. Officers from the Registrar's office also attend annual general meetings of co-operatives both in their capacity as auditors and as development partners, providing guidance and support to members.

Availability of accounting information in EOIR practice

333. Namibia received 20 EOI requests for accounting information concerning 14 companies and 5 trusts and was able to provide all the information requested, including financial statements and underlying documentation to support transactions. Peers were satisfied with the responses provided by Namibia.

A.3 Banking Information

Banking information and beneficial ownership information should be available for all account holders.

334. Namibia has in place a legal and regulatory framework that broadly requires banks to identify account holders and customers, including determining and maintaining identity information on beneficial owners of accounts and specific types of information on transactions, for a minimum period of seven years. The Bank of Namibia is responsible for the licensing, regulation and prudential supervision of banks, while the Financial Intelligence Centre is responsible for the oversight and enforcement of anti-money laundering obligations.

335. The legal and regulatory framework regarding the availability of beneficial ownership information on all bank accounts is in place, but some improvement is needed on retention of records.

336. Regarding the retention of banking information when a Namibian bank ceases to exist and/or operate, or a branch of a foreign bank ceases operating in Namibia, there are no clear obligations that the records of the bank, including transactional and customer identification information, be maintained for a minimum period of five years. Accordingly, Namibia is recommended to address these gaps.

337. Namibia received 19 requests for banking information, and the requested information was provided in all cases.

338. The conclusions are as follows:

Legal and regulatory framework: In place, but certain aspects of the legal implementation of the element need improvement

Deficiencies identified/ Underlying Factor	Recommendations
There are no stipulated record retention requirements for banking information after a bank ceases to exist or ceases to operate in Namibia.	Namibia is recommended to ensure that banking information is available for the minimum period of five years, in all cases after a bank ceases to exist or ceases its operations in Namibia.

Practical implementation of the standard: Largely Compliant

No issues have been identified in the implementation of the existing legal framework on the availability of banking information. However, once the recommendations on the legal framework are addressed, Namibia should ensure that they are applied and enforced in practice.

A.3.1 Record-keeping requirements

339. The Bank of Namibia is mandated to license, regulate and supervise all banks in Namibia. Banking law is mainly laid out through the Banking Institutions Act and is complemented by the Financial Intelligence Act (FIA), in regulating the operation of banks. There are seven commercial banks currently operating in Namibia.

Availability of banking information

340. The legal obligations on banks to maintain and report all transactional information on all account holders arise from the Banking Institutions Act, as well as from the AML framework. These are further complemented by commercial law, which requires banks to maintain their accounting records.

341. Section 59 of the Banking Institutions Act requires banks to keep core banking systems that contain records and documentation covering all functional areas and other records as are necessary to

reflect the true and fair state of the affairs of the bank and explain the transactions and financial position of the bank.

342. Further, the bank is required to identify and maintain identity information, including CDD, on its clients and to maintain a record of all transactions carried out by or on behalf of each account holder (s. 21, FIA). The transactional records maintained pursuant to the AML framework should be sufficient to show the source and recipient of funds and to demonstrate an audit trail. Sections 26 and 27 of the FIA explain the transactional information that should be maintained by a bank, and it includes:

- the identity of the person conducting the transaction
- the manner in which the identity of a person was established and CDD records
- the nature and date of the transaction
- all accounts at the bank that were involved in the transaction
- the amount involved and the parties to the transaction
- client files and business correspondences
- all sufficient records that enable the reconstruction of any transaction for both clients and non-clients, whether concluded as a single transaction or during a business relationship.

343. Based on these obligations, banks are expected to maintain all account opening documents and financial transactional information on all accounts in accordance with the standard.

344. Banks must keep the information on their customers and any transactions on their accounts for at least five years from the end of a business relationship, or if the business relationship is still ongoing, from the date of the transaction (s. 27(1), FIA). The transactional information maintained under the Banking Institutions Act must also be maintained for at least five years from the date of last entry (s. 59(2), Banking Institutions Act).

345. A bank in Namibia will cease to exist either by amalgamation through a merger, consolidation or transfer of its assets to another bank or through voluntary and involuntary winding up. When the bank ceases to exist because of an amalgamation, all its records, including CDD and beneficial ownership information, will be held by the surviving bank.

346. The Banking Institution Act details procedures of winding up and liquidation of a bank and places the responsibility to supervise the liquidation process of a bank, on the Bank of Namibia. The winding up and liquidation process applies to any bank licensed in Namibia, including a branch of a foreign bank operating in Namibia. Section 72 of the Banking Institutions Act indicates that for the winding up of the affairs of the bank, the Banking Institutions Act takes precedence over the provisions in the Companies Act. At the time of the on-site visit, one bank was undergoing liquidation, and it is not ascertained that all the records of that bank will be retained for at least five years as required by the standard. Namibian authorities explained that they are in the process of updating the Banking Institutions Act to incorporate a clear and explicit bank-specific post-cessation record-retention requirement, including in respect of foreign bank branches ceasing operations in Namibia. As it stands, the Banking Institutions Act does not contain provisions on the retention of the records of the bank after the bank ceases to exist and generally, the legal and regulatory framework does not contain any obligations to require the retention of the records of a bank that ceases to exist or otherwise ceases its operations. Therefore, **Namibia is recommended to ensure that banking information is available for the minimum period of five years, in all cases after a bank ceases to exist or ceases its operations in Namibia.**

Beneficial ownership information on account holders

347. The standard requires that beneficial ownership information be available in respect of all accounts. In Namibia, this requirement is implemented through the provisions of the FIA and binding guidelines

contained in the FIC guidance note. This AML framework obliges banks to carry out CDD, identify and maintain beneficial ownership information on all account holders and on one-off transactions.

348. The definition of beneficial owners contained in the FIA and the FIC guidance note, as discussed under section A.1, allows for the identification of beneficial owners of bank accounts held by any relevant entity or arrangement, in line with the standard.

349. As discussed in paragraphs 118 to 122, the FIC guidance on the identification of beneficial owners was amended in 2025, with more examples of how to conduct CDD in complex ownership structures having been added. The representatives of the banks interviewed during the on-site visit demonstrated a clear understanding of the concept of beneficial owner for each type of legal person and explained that the amendments to the guidance note merely highlighted aspects that are already elaborated in the FIA and are being practised. The Namibian authorities explained that the 2025 amendments were mainly targeted to improve the implementation of the obligations contained in the Companies Act and the CC Act. Nevertheless, since these amendments are recent and are also applicable to banks, Namibia should monitor the implementation of recent changes in the guidance for identification of beneficial owners to ensure that accurate, adequate and up-to-date beneficial ownership information on bank accounts is available in all cases (see Annex 1).

350. The AML framework provides extensive requirements for carrying out CDD. Banks are required to identify their customers, identify their beneficial owners and take reasonable measures to verify the identity of the beneficial owners before establishing a business relationship. If a bank cannot complete CDD measures, then it cannot commence a business relationship or complete a transaction. Moreover, if there is an already established and ongoing business relationship, the AML-obliged person must terminate the relationship and file a suspicious transaction report to the FIC (see paragraph 181).

351. Banks must conduct ongoing due diligence by keeping customer and beneficial ownership information up to date, monitoring transactions for consistency with a client's profile, and scrutinising complex or unusual activities. They must also apply enhanced due diligence for high-risk clients, suspicious transactions, or cases where previously collected identification data appears unreliable or raises concerns of money laundering or terrorism financing.

352. The AML framework allows banks to apply simplified CDD measures only where there is no suspicion of money laundering or terrorism financing. Even where simplified CDD is applied, the bank is still required to identify and verify the identity of all beneficial owners of the customer.

353. Regarding the updating of CDD and beneficial ownership information on existing clients, Guidance note no. 4 of 2009 on the Implementation of a Compliance Regime requires AML-obliged persons to review CDD at least once every year for high-risk clients and at least once in two years for all other clients. Further banks are required to implement internal policies that are consistent with the national or sectoral money laundering or terrorism financing risk assessments (s. 20A, FIA). The Namibian authorities explained that such internal policies should facilitate the updating of CDD and beneficial ownership information (see paragraph 187). The representatives of the banks met during the on-site visit explained that for most of them, their internal policies required the updating of CDD based on the trigger factors explained at paragraph 185, and at least once annually for high risk clients, at least once in three years for medium-risk clients and at least once in five years for low risk clients. The representatives further explained that this specified frequency may vary, especially regarding the medium and low risk categories, although in practice they have all set frequencies under five years. The authorities can sanction a bank for setting inappropriate policies. The Namibian authorities explained that they have reviewed all the policies of the seven banks and appropriate frequencies have been set (once annually for high risk, once in three years for medium risk and once in five years for low risk). Considering that banks may set frequencies in their internal policies that differ from those stated in the guidance, Namibia should align the provisions of the binding guidance and the practice by banks to ensure that CDD and beneficial ownership information are updated appropriately for all bank accounts (see Annex 1).

354. As explained in paragraphs 191 to 191, the FIA allows banks to rely on third parties or business introducers to conduct CDD; however, the ultimate responsibility and accountability for CDD remains with the bank. The measures put in place in the FIA, including the fact that the third party itself must be subject to AML regulation and the bank should be able to obtain full CDD documentation immediately from such a third party, are in line with the standard. Moreover, banks are not permitted to rely on third parties for CDD in cases of high-risk clients such as politically exposed persons, clients from high-risk jurisdictions or clients with complex ownership structures.

Oversight and enforcement

355. The Bank of Namibia is responsible for the licensing and prudential supervision of banks in Namibia while the FIC is mandated to supervise the implementation of AML obligations. In practice, the two public authorities collaborate closely on supervision, including in monitoring record keeping practices.

356. Both the Banking Institutions Act and the FIA contain administrative and criminal sanctions applicable to non-compliance. Any intentional action by a bank to mislead through the records it maintains is an offence which is sanctionable upon conviction, to a fine not exceeding NAD 2 million (EUR 90 154) or imprisonment not exceeding 10 years or both (s. 92 and 94, Banking Institutions Act). The sanctions contained in the FIA are elaborated in paragraphs 192 and 193.

357. Regarding the Bank of Namibia's prudential supervision, comprehensive and targeted inspections were conducted across banks. Reviews covered governance and other areas. A total of 1 full-scope and 12 targeted on-site inspections were conducted between 2022 and 2025. No risks were identified regarding the maintenance of transactional records.

358. Regarding AML obligations, the oversight and supervisory mechanism conducted by the FIC, as discussed in paragraphs 196 to 206, applies to banks. Utilising its annual compliance assessment and supervision methodology, the FIC conducts risk-based supervision to examine the implementation of AML obligations, including conducting CDD and identifying beneficial owners of bank account holders.

359. From 2022 to March 2026, the FIC conducted a mixture of on-site examinations, off-site examinations, thematic reviews and sectoral engagements. The thematic reviews are targeted and the majority of them were focused on how banks were implementing AML/CFT aspects such as financial sanctions screening. In 2025, the FIC started a new supervisory initiative termed "engagements with board of directors" as part of the new stakeholder engagement strategy where the FIC directly engages the board of directors of banks on AML/CFT compliance behaviour of the respective bank. This is meant to appraise those charged with governance of banks on AML/CFT compliance behaviour and matters, with a view that they will positively influence compliance from the top.

Year	On-site inspections	Off-site inspections	Thematic reviews	Sectoral Engagements	Engagements with board of directors	Total per year
2022	5	1	74	2	0	82
2023	2	16	0	1	0	19
2024	7	5	75	1	0	88
2025	3	3	76	1	7	90
January to March 2026	4	3	6	1	0	14
Total per supervisory activity	21	28	231	6	7	293

360. Namibian authorities reported that the findings of these supervisory activities indicate that, since 2022, there have been positive improvements in the behaviour of banks. The aggregated results show that while in 2022 and 2023 some banks were found not to be implementing CDD measures effectively, such

gaps reduced, and by 2025, all inspected banks were found to be identifying the beneficial owners of bank accounts properly.

361. Banks are expected to remediate any deficiencies identified during supervision, and depending on the severity of the non-compliance, monetary and other sanctions are issued. As stated in paragraph 206, monetary penalties amounting to NAD 6.55 million (EUR 296 433) were issued against banks.

	Non-Compliance findings	Sanctions issued	Number of banks sanctioned
2022	Inadequate ML/TF risk assessment and risk management Deficiencies/failures in the identification and verification of beneficial owners Failure to conduct adequate CDD and enhanced due diligence for politically exposed persons and high-risk clients Ineffective transaction monitoring Ineffective United Nations Security Council sanctions screening mechanisms and targeted financial sanctions	Nil	none
2023	Failure to conduct adequate CDD and enhanced due diligence for politically exposed persons and high-risk clients Ineffective United Nations Security Council sanctions screening mechanisms and targeted financial sanctions	NAD 1.5 million (EUR 67 885.6)	1
2024	Ineffective United Nations Security Council sanctions screening mechanisms and targeted financial sanctions Ineffective transaction monitoring	Nil	none
2025	Failure to identify politically exposed persons and conduct enhanced due diligence measures Failure to report cash transaction (threshold) reports within the prescribed timelines	NAD 5.05 million (EUR 228 548) 1 caution 1 directive	3

362. The Namibian authorities explained that, owing to a finding in Namibia's FATF mutual evaluation report indicating that the value of sanctions issued had been low, the FIC increased the value of sanctions it was issuing since October 2022. Namibia should monitor the implementation of its revised approach, where an increased level of sanctions is issued against non-compliance (see Annex 1).

Availability of banking information in EOIR practice

363. Namibia received 19 requests for banking information and was able to provide information as requested. The requests concerned companies and trusts, and peers were satisfied with the responses received from Namibia.

B Access to information

364. Sections B.1 and B.2 evaluate whether competent authorities have the power to obtain and provide information that is the subject of a request under an EOI arrangement from any person within their territorial jurisdiction who is in possession or control of such information, and whether rights and safeguards are compatible with effective EOI.

B.1 Competent authority's ability to obtain and provide information

Competent authorities should have the power to obtain and provide information that is the subject of a request under an exchange of information arrangement from any person within their territorial jurisdiction who is in possession or control of such information (irrespective of any legal obligation on such person to maintain the secrecy of the information).

365. The Namibian competent authority has broad access powers to obtain and provide information that is in possession or control of any person within the territorial jurisdiction of Namibia. The competent authority can access information from taxpayers and third-party information holders, including persons acting in a fiduciary capacity.

366. The powers to access information enable the competent authority to obtain information from the files and databases of the Namibia Revenue Agency and to issue notices to government agencies, banks, taxpayers and any other information holders. These access powers can be used regardless of domestic tax interest. In case of failure on the part of the information holder to provide the requested information, the competent authority has adequate powers to compel the production of information. Finally, secrecy provisions contained in Namibian law and practice are broadly compatible with the effective exchange of information.

367. Namibia has already applied these access powers to provide responses to treaty partners in 22 requests.

368. The conclusions are as follows:

Legal and regulatory framework: In place

No material deficiencies have been identified in the legislation of Namibia in relation to access powers of the competent authority

Practical implementation of the standard: Compliant

No issues in the implementation of access powers have been identified that would affect EOIR in practice.

B.1.1 Ownership, identity and banking information

Accessing information generally

369. The Minister in charge of finance is Namibia's competent authority for the international exchange of information in application of EOI instruments. The Minister has delegated the operational role of the competent authority to the Commissioner of NamRA. Operationally, the role has been further delegated to the head of the EOI unit.

370. Section 64(1) of the ITA states that:

For the purpose of obtaining full information in respect of any income of any taxpayer or of any part thereof, the Minister may require any person to produce for examination by the Minister, or by any person appointed by him or her for that purpose, at such time and place as may be appointed by the Minister in that behalf, any deeds, plans, instruments, books, accounts, trade lists, stock lists or documents which the Minister may deem necessary for the purposes of this Act, and if any such deeds, plans, instruments, books, accounts, lists or documents are not in the English language the Minister may by notice in writing require the taxpayer to produce at his or her own expense and at such time and place as may be appointed, a translation in the English language prepared and certified by a sworn translator or a person other than a sworn translator approved by the Minister.

371. This power can be exercised in circumstances where information is held by any person acting in an agency or fiduciary capacity, including nominees and trustees. By its wording, the provision appears to indicate a limitation by referring to "income of any taxpayer". However, the Namibian authorities explained that the power is interpreted as enabling the Commissioner to execute all his/her functions, including the function of reciprocal assistance to treaty partners that is enshrined in section 100 of the ITA and Article 32(3)(e) of the Namibian Constitution (see B.1.3). Therefore, the power has been used to access information for EOI purposes, regardless of whether the person subject to the request is a taxpayer in Namibia or whether the requested information is subject to income taxes.

372. NamRA can exercise this power without the need to open any form of tax audit or inquiry. However, where needed, such as in the case of non-compliance by an information holder, audits or investigations may be instituted (see paragraph 392). Further, Namibian authorities have confirmed that NamRA's powers to access information are not affected by the expiration of statutory record retention periods. NamRA would still exercise its access powers and request information. However, where the information holder no longer possesses the requested information because it was lawfully disposed of following the expiry of the retention period, the information holder cannot be sanctioned for failing to produce such information.

373. The powers conferred by this section are used for obtaining all types of information, including accounting information in respect of all relevant entities and arrangements in Namibia, regardless of whether they are taxable and registered with NamRA. Further, information held by any other public authorities is obtained using the same powers conferred by the ITA.

374. The EOI unit officials have direct access to NamRA databases and access them to obtain information that is already available within the tax administration, including tax returns, financial statements and other accounting information obtained through tax audits or submitted through VAT returns. If the requested information is not available within NamRA databases, the EOI unit officials directly issue notices to any other information holders using the powers contained in section 64(1) of the ITA.

375. Namibia has used its access powers to answer 22 EOI requests already. The main sources of information for EOI purposes were NamRA records and databases, and BIPA. In other cases, banks, audit firms, trustees and taxpayers were also used to obtain the requested information. There have been no difficulties in using the access powers.

Accessing beneficial ownership information

376. The competent authority can access beneficial ownership information from various sources: BIPA for companies and close corporations, or the MOHC for trusts.

377. Additionally, beneficial ownership information is available from AML-obliged persons, particularly banks. Section 44(1) of the FIA states that no duty of secrecy or confidentiality arising from any other law or from common law can impede the disclosure of information by AML-obliged persons to the authorities that include NamRA.

378. In practice, when the competent authority receives a request for beneficial ownership information about a company, it first consults the list of inactive entities published on the BIPA website (see paragraph 173). If the entity subject of the request does not appear on this list, the competent authority issues a notice to BIPA to obtain the beneficial ownership information. If the entity is listed as inactive, meaning it has not yet submitted its beneficial ownership information to BIPA, the competent authority instead collects the required information from AML-obliged persons, primarily banks (see paragraph 381). On average, the process of obtaining beneficial ownership information from public authorities takes about 7 days, and from banks about 14 days.

379. Namibia received 13 requests for beneficial ownership information and successfully provided the requested information evenly relying on BIPA, the MOHC and the banks.

Accessing banking information

380. There are no special procedures to obtain banking information, and the competent authority uses NamRA's routine administrative powers conferred under the ITA (see paragraph 370), to send notices to produce information to banks.

381. The Namibian authorities explained that they do not have specific requirements that a requesting jurisdiction must include in its request to enable the gathering of banking information. The information included should be sufficient to identify the bank account or the account holder. If the requesting jurisdiction has only identified the account holder and the bank account number is not provided, the competent authority will send notices to all banks to check for the banking information on the person subject to the request.

382. The notice requesting information from banks usually provides for two weeks within which the bank should submit the requested information. In practice, Namibian authorities have informed that the requested information is often received within this two-week period. However, if the requested information relates to old records, the time frames may differ. Namibia obtained and provided banking information in accordance with the standard in all the 19 requests received.

B.1.2 Accounting records

383. The powers described under section B.1.1 can be used to obtain accounting records from any information holder, including the taxpayers themselves. Requested accounting records are typically already available to NamRA through financial statement filings alongside tax returns. Where additional underlying documentation is required, it is obtained by the competent authority from tax auditors and taxpayers themselves.

384. Namibia received 20 EOI requests for accounting information and provided all the requested information. In all cases, multiple sources such as NamRA databases, company auditors and taxpayers were used.

B.1.3 Use of information gathering measures absent domestic tax interest

385. The legal and regulatory framework and Namibia's practice ensure that NamRA's access powers to gather information can be used to address any incoming EOI requests, without any requirement of domestic tax interest. Moreover, when exercising its access powers, NamRA does not have to justify to the holder of the information its interest in obtaining it. Section 100 of the ITA refers to agreements entered into with a view to reciprocal assistance in the administration of and the collection of taxes under the income tax laws of Namibia and the partner country²⁰ and provides that tax secrecy does not apply in these cases. The Namibian authorities consider this sufficient to use the access powers for EOI purposes, and this has never been challenged by any information holder.

386. The Namibian competent authority confirmed that for most of the requests received, there was no immediate domestic tax interest for Namibia, although in some cases, Namibia noted some elements of potential non-compliance with Namibian tax obligations and such cases were referred for tax audit.

B.1.4 Effective enforcement provisions to compel the production of information

387. The standard requires that the jurisdictions have effective enforcement provisions, including sanctions for non-compliance to be applicable, for example, upon refusal or failure to supply the requested information. Namibia has in place effective enforcement provisions to compel the production of information.

Applicable sanctions

388. Sanctions can be applied against any person who fails to provide information requested by the competent authority. Section 65(1) of the ITA states that any person who fails to provide the requested information is liable to a penalty not exceeding NAD 300 (EUR 13.6) or imprisonment not exceeding three months, or both, upon conviction. If the person still fails to provide the requested information, a fine of NAD 30 (EUR 1.4) for each day that the request remains outstanding may be imposed.

389. Additionally, section 96 of the ITA provides that giving a false answer, whether orally or in writing, to any request for information, or preparing, maintaining or authorising false records, constitutes an offence punishable by a fine of NAD 2 000 (EUR 90) or imprisonment for up to two years, or both, upon conviction.

390. When the above-mentioned offences are committed by a body corporate, every public officer²¹ or director, manager, partner or person involved in management of the body corporate may be sanctioned, unless the person proves that the acts or omissions constituting the offence took place without their knowledge or connivance.

391. The monetary sanctions appear not to be dissuasive enough. However, they may be accompanied by imprisonment, which would be dissuasive.

392. Moreover, the competent authority has the option to apply administrative measures or to compel the production of the requested information. The competent authority may escalate the matter to the audit or investigations teams. In the context of an audit, auditors would obtain the requested information, and if applicable, a tax assessment would be raised (s. 68, ITA). The investigators have the option to use inspection, search and seizure powers (approved by the commissioner) to obtain the requested information

²⁰ Namibia interprets country to include all jurisdictions

²¹ The ITA (s. 93) requires every entity or arrangement that carrying on business in Namibia or having an office in Namibia to appoint a public officer. The public officer must be an individual resident in Namibia who is responsible for the service of documents to the entity. Where no specific appointment is made, then the director or other senior manager assumes the role of public officer.

where necessary (s. 64(3), ITA). Any person who obstructs or hinders an officer conducting an audit or search and seizure is liable to the same sanction as the one described in paragraph 388.

Implementation of sanctions in practice

393. Namibia has not used these sanctions and compulsory powers for EOI purposes. Nevertheless, the sanctions have been applied successfully within the context of domestic cases, and information holder provided information when sanctions were applied.

394. In most cases, the need to use the enforcement powers available to the competent authority did not arise in practice since the information was provided by the information holders in a timely manner. Although Namibia provided full responses to 59% of the received EOI requests after one year, the main contributing factors for the delays were not associated with failure to apply sanctions (see discussion under Element C.5).

395. However, in one case, the Namibian competent authority did not provide a copy of an income tax return of an individual director of a company, which was requested by a peer. That director was not complying with his own tax obligation in Namibia, and when requested to file his income tax return, he did not file it. The authorities explained that whereas the director responded to the notices sent by the competent authority to provide information on the relevant company, he has not provided that specific piece of information, nor has he filed the tax return with NamRA. At that point, no further action was undertaken. Namibia reported that the case has been forwarded for tax audit after the on-site visit.

396. Other detailed accounting information from the auditors of the entity which also explained the directors' earnings was obtained and shared with the requesting jurisdiction. The requesting jurisdiction reported that the obtained information was sufficient to conclude its tax inquiries. In this case, despite the information requested (tax return) not being available, Namibia exercised its access powers by contacting the director to obtain this information and obtained useful alternative information, that the peer found sufficient, in the context of its tax audit procedures. Therefore, Namibia carried out actions to mitigate the lack of availability of the information requested. Namibia has since referred the case for audit. The availability, access or exchange of ownership, accounting or banking information was not affected. Nonetheless, it remains the case that Namibia did not initially exercise its enforcement measures against the director when this was needed to make the information requested available, although the matter has since been referred to audit. Namibia has further updated its EOI manual to require competent authority officials to review cases of delay or non-compliance for potential sanctioning.

B.1.5 Secrecy provisions

397. The legal and regulatory framework in Namibia imposes secrecy obligations on banks and certain professionals. NamRA has sufficient powers to override these obligations in the case of banking information and beneficial ownership information held by lawyers.

Bank secrecy

398. Section 85 of the Banking Institutions Act establishes a strict duty of confidentiality over information held by banks. However, the act also provides exceptions when the information is required or authorised by another law, including tax legislation. This means that banks are legally obligated to disclose banking information in response to notices issued in application of section 64(1) of the ITA (see paragraph 370).

399. The obligation to provide banking information was clearly demonstrated by the representatives of banks met during the on-site visit. Besides, Namibia was able to respond to 19 requests for banking information received during the review period by utilising its access powers to obtain information from the banks. No challenges regarding access to banking information arose during the review period.

Professional secrecy

400. The Legal Practitioners Act governs the legal profession in Namibia. It does not explicitly define or provide a scope for legal professional privilege. Namibian authorities explained that the basis for legal privilege is derived from English common law and has been recognised by Namibian courts. The authorities further explained that the privilege extends to all information received by the legal practitioner apart from situations where exceptions apply.

401. There is an exception to the legal professional privilege contained in the FIA regarding AML obligations. Section 44(1) of the FIA states that no duty of secrecy or confidentiality arising from any other law or from common law can impede the disclosure of information by AML-obliged persons. The FIA further stipulates that the information provided to a legal practitioner to provide legal advice or for use in contemplated legal proceedings remains confidential. The aforementioned exceptions contained in the FIA are in line with the standard.

402. Although the FIA exception to legal professional privilege clarifies the intended scope of this privilege, the representatives of the legal practitioners met during the on-site visit appeared uncertain about how the exception contained in the FIA would apply in practice for EOIR and indicated that if requested, they may seek the consent of their clients before disclosing the information. The practitioners stated that if requested by the FIC, they would promptly respond.

403. Legal practitioners are not a common source of information for the competent authority in Namibia and as such there has not been a case in practice where NamRA sought information from legal practitioners for EOI purposes; however, in theory, legal practitioners may be a source of beneficial ownership information. Therefore, Namibia should clarify the access powers of the competent authority to all stakeholders to ensure that professional secrecy does not impede the access powers of the competent authority (see Annex 1).

404. There are no other secrecy provisions that would impede the Namibian authorities from exercising their powers to access information from any other professionals. During the review period, Namibia successfully obtained accounting information from the auditors.

B.2 Notification requirements, rights and safeguards

The rights and safeguards (e.g. notification, appeal rights) that apply to persons in the requested jurisdiction should be compatible with effective exchange of information.

B.2.1 Rights and safeguards should not unduly prevent or delay effective exchange of information

Notification

405. Namibia's legal and regulatory framework does not require NamRA to notify the persons subject of an EOI request, either before or after the information is sent to the requesting jurisdiction.

406. Moreover, when NamRA exercises its right to access information, it only quotes the legal reference as contained in the ITA, which is general in nature and does not make any reference to EOI. There is no further requirement for NamRA to inform the information holder of the purpose of its request. Therefore, the risk that the taxpayer be indirectly informed of the existence of the EOI request is limited.

407. Further, the FIA contains an anti-tipping off provision, where persons liable can be fined up to NAD 100 million (EUR 4.5 million) or imprisonment not exceeding 30 years or both (s. 46, FIA). There are no similar provisions in the tax or banking laws. Nevertheless, the representatives of the banks met during the on-site visit confirmed that they do not inform their clients when they receive notices to produce information from NamRA.

Appeal rights

408. In general, there are no appeal rights associated with information obtained by NamRA. Therefore, if the person subject to the request or any other information holder is asked to provide information, there is no provision available to such a person to appeal.

409. The ITA (s. 71 and 73) provides for appeals and objections by taxpayers to the extent that tax assessments have been issued. Therefore, if the requested information was obtained in the context of an audit, the taxpayer would have the option to appeal any tax assessment thereon. In such a case, the taxpayer or their representative would not have access to the EOI file or the EOI nature of any information generated from the audit. The Namibian authorities explained that such a taxpayer would not be made aware that any information was collected pursuant to an EOI request from another jurisdiction.

410. Peer input from the review does not indicate any cases where notification or any rights and safeguards that apply to a person in Namibia unduly prevented or delayed effective exchange of information.

411. The conclusions are as follows:

Legal and regulatory framework: In place

The rights and safeguards that apply to persons in Namibia are compatible with effective exchange of information.

Practical implementation of the standard: Compliant

The application of the rights and safeguards in Namibia is compatible with effective exchange of information.

C Exchange of information

412. Sections C.1 to C.5 evaluate the effectiveness of Namibia's network of EOI mechanisms – whether these EOI mechanisms provide for exchange of the right scope of information, cover all Namibia's relevant partners, whether there were adequate provisions to ensure the confidentiality of information received, whether Namibia's network of EOI mechanisms respects the rights and safeguards of taxpayers and whether Namibia can provide the information requested in an effective manner.

C.1 Exchange of information mechanisms

Exchange of information mechanisms should provide for effective exchange of information.

413. Namibia has an extensive EOI network covering 157 jurisdictions through the Multilateral Convention, 11 Double Taxation Conventions (DTCs) and the Southern African Development Community Agreement on Assistance in Tax Matters (SADC AATM). The Multilateral Convention was signed by Namibia on 29 September 2020 and entered into force on 1 April 2021 in Namibia. All of Namibia's DTCs are in force. On the other hand, the SADC AATM has been signed and ratified by Namibia but is not yet in force.

414. Most of Namibia's EOI relationships are based on the Multilateral Convention, except for six EOI relationships²² that are only established through the SADC AATM. Further, all the jurisdictions with which Namibia has a DTC are covered by the Multilateral Convention. Thus, the bilateral DTCs are not analysed in this report. Both the Multilateral Convention and SADC AATM provide for EOI in line with the standard and accordingly, all of Namibia's EOI relationships are in line with the standard.

415. The implementation of these instruments, particularly the interpretation of the concept of foreseeable relevance, including for group requests, complies with the standard.

416. The conclusions are as follows:

Legal and regulatory framework: In place

No material deficiencies have been identified in the EOI mechanisms of Namibia.

Practical implementation of the standard: Compliant

No issues have been identified that would affect EOIR in practice.

²² Democratic Republic of Congo, Lesotho, Malawi, Mozambique, Tanzania and Zambia

C.1.1 Requirement of foreseeable relevance

417. The standard for exchange of information envisages exchange of information to the widest possible extent but does not allow speculative requests for information that have no apparent nexus to an open inquiry or investigation. Exchange of information mechanisms should allow for exchange of information on request where it is “foreseeably relevant” to the administration and enforcement of the domestic tax laws of the requesting jurisdiction.

418. The Multilateral Convention provides for the exchange of “foreseeably relevant” information. The EOI provision of the SADC AATM (Article 4) contains the term “may be relevant”. The usage of the terms “may be relevant” is sufficient, as referenced in the commentary to Article 26(1) of the Model Tax Convention, if the parties to the EOI instruments agree on a meaning similar as “foreseeably relevant”. Namibian authorities confirmed that they interpret the terms “necessary” and “may be relevant” as having the same scope as “foreseeably relevant”.

Clarifications and foreseeable relevance in practice

419. The EOI manual provides for various aspects to be verified by the EOI unit to validate an incoming request, including the foreseeable relevance of the requested information. The manual reproduces the criteria listed in Article 5(5) of the commentary to the Model Agreement on Exchange of Information on tax matters and indicates that the foreseeable relevance must be assessed based on those criteria.

420. These criteria for determining the foreseeable relevance of the request are part of the validation checklist that the EOI official handling a request must use to validate every incoming request. The checklist is validated by the head of the EOI unit (see paragraphs 511 and 509). The EOI officials demonstrated a good understanding of the interpretation of foreseeable relevance and indicated that their approach is to share the requested information to the widest extent possible.

421. The EOI manual provides for a period of 14 days from the receipt of the request to seek clarification, if necessary, from the requesting jurisdiction. During the period under review, Namibia did not request any clarification regarding the foreseeable relevance of a request, nor did it reject any request.

Group Requests

422. The EOI standard includes a reference to group requests in accordance with paragraph 5.2 of the Commentary to Article 26 of the OECD Model Tax Convention. The foreseeable relevance of a group request must be sufficiently demonstrated, and the information requested should help to determine compliance with tax obligations by taxpayers in the group.

423. Namibia’s EOI agreements and domestic law do not contain language prohibiting group requests. The EOI manual defines group requests and explains how to consider their foreseeable relevance. The EOI unit officials demonstrated knowledge of the concept and stated that if they received a group request, they would be able to provide information in accordance with Article 26 of the OECD Model Tax Convention and its commentaries.

424. Namibia neither received nor sent any group requests during the review period.

C.1.2 Obligation to exchange information in respect of all persons

425. The standard requires that exchange of information apply in respect of all persons and should not be restricted by tax residence or tax type considerations. In this regard, Article 26(1) of the OECD Model Tax Convention states that “the exchange of information is not restricted by Article 1” which defines the scope of persons covered by the convention.

426. The Multilateral Convention allows for exchange of information in respect of all persons. The application of the SADC AATM is not restricted in respect of the persons subject to the assistance and broadly defines the term “person” as including individuals, companies and any other bodies of persons. Therefore, all of Namibia’s EOI relationships allow for exchange of information in respect of all persons, in line with the standard.

427. In practice, Namibia has not received an EOI request where the person concerned was not a resident in either Namibia or the requesting jurisdiction.

C.1.3 and C.1.4 Obligation to exchange all types of information and Absence of domestic tax interest

428. The standard requires that EOI mechanisms should not permit the requested jurisdiction to decline to supply information solely because the information is held by a financial institution, nominee or person acting in an agency or a fiduciary capacity or because it relates to ownership interests in a person. They must also allow for exchange of information without regard to whether the requested jurisdiction needs the information for its own tax purposes.

429. The Multilateral Convention and the SADC AATM contain provisions equivalent to paragraphs 4 and 5 of Article 26 of the OECD Model Tax Convention, which provide for the exchange of all types of information, including in cases where the requested jurisdiction does not need the information for its own tax purposes.

430. In practice, Namibia received 19 requests for banking information, and the fact that the information was held by a bank did not prevent it from being processed. In addition, Namibia accessed information held by persons acting in an agency or fiduciary capacity, such as auditors (in 12 cases) and trustees (in 3 cases). Moreover, although the requests received by Namibia often involve a taxpayer resident in Namibia, the exchanged information was not necessarily of immediate tax interest to Namibia. Finally, as indicated under the section B.1 (paragraph 371), Namibia’s domestic legislation provides for the possibility of exercising the competent authority’s access powers to obtain information for reciprocal assistance to its treaty partners.

C.1.5 and C.1.6 Exchange of information for civil and criminal tax matters and unnecessity of dual criminality

431. The standard requires that exchange of information mechanisms provide for exchange of information in both civil and criminal tax matters and should not apply dual criminality principles to restrict exchange of information.

432. The Multilateral Convention and the SADC AATM permit the exchange of information in both administrative (or civil) and criminal tax matters.

433. Further, the Multilateral Convention, the SADC AATM and Namibia’s domestic legal framework do not provide for the principle of dual criminality as a condition for answering an EOI request in criminal tax matters. Namibia therefore interprets these instruments and its legislation as providing for an exchange of information, including in cases where the facts under investigation would not constitute a criminal offence under Namibian law if it had occurred in Namibia.

434. In practice, Namibia did not receive any request in relation to criminal tax matters, but it indicated that it would exchange information with its partners regardless of the nature of the case in the requesting jurisdiction.

C.1.7 Provision of information in specific form requested

435. There is no restriction in Namibia's EOI instruments or in its legislation that would prevent it from providing the information requested in the form requested and specified by the requesting jurisdiction. In practice, Namibia and its peers have not encountered any difficulties regarding the form of the information exchanged, but no specific form was requested during the review period.

C.1. 8 and C.1.9 Signed agreements should be in force and be given effect through domestic law

436. The standard requires that jurisdictions take all steps necessary to bring into force signed EOI agreements expeditiously. In addition, for information exchange to be effective, the parties to an exchange of information arrangement may need to enact any legislation necessary to comply with the terms of the arrangement.

437. In Namibia, the Cabinet must grant approval for the ratification of a signed agreement. Following Cabinet approval, the agreement is submitted to the National Assembly for ratification, after which the instrument is formally incorporated into domestic law and subsequently proclaimed. The last DTC was signed in 2004 and entered into force 15 months later.

438. All of Namibia's bilateral treaties (Double Tax Conventions), the SADC AATM and the Multilateral Convention, have been ratified by Namibia. The SADC AATM has been signed and ratified by Namibia but is not yet in force because Article 15(2) of the SADC AATM provides that it will enter into force after two thirds of the member states have submitted their instruments of ratification to the Executive Secretary, and this quota has not yet been reached. The Multilateral Convention entered into force in Namibia on 1 April 2021, six months only after its signature.

439. Namibia has in place the legal and regulatory framework to give effect to its EOI mechanisms. No issues arose in practice.

EOI mechanisms

Total EOI relationships, including bilateral and multilateral or regional mechanisms			157
In force			144
	In line with the standard		144
	Not in line with the standard		0
Signed but not in force			13*
	In line with the standard		13
	Not in line with the standard		0
Total bilateral EOI relationships not supplemented with multilateral or regional mechanisms			0

Notes: *The South African Development Community Agreement on Assistance in Tax Matters has been signed and ratified by Namibia but is not yet in force. Six signatories are not covered by the Multilateral Convention or DTCs in force: Democratic Republic of Congo, Lesotho, Malawi, Mozambique, Tanzania and Zambia. The Multilateral Convention is not in force in respect of Algeria, Côte d'Ivoire, Gabon, Honduras, Togo, the United States and Zimbabwe.

C.2 Exchange of information mechanisms with all relevant partners

The jurisdiction's network of information exchange should cover all relevant partners, meaning those jurisdictions who are interested in entering into an information exchange arrangement.

440. Namibia currently has a wide EOI network covering 157 jurisdictions, owing to the Multilateral Convention. This network covers Namibia's main trade partners.

441. No Global Forum members indicated, in the preparation of this report, that Namibia refused to negotiate or sign an EOI instrument. One Global Forum member indicated that it approached Namibia to negotiate a DTC in 2010 but did not receive feedback on the same. The Namibian authorities explained that at that time, the government in Namibia had taken a decision not to enter into any negotiations for DTCs. That moratorium was lifted in 2024. Both Namibia and the member are parties to the SADC AATM and have both ratified it although the agreement is not yet in force (see Annex 2). Since the request from the Global Forum member was in the context of a DTC and not specifically an EOI instrument, and since both jurisdictions are already party to the SADC AATM, the absence of response from Namibia for the negotiation of a DTC is not considered as a material issue concerning this review.

442. More broadly, as the standard ultimately requires that jurisdictions establish an EOI relationship up to the standard with all partners who are interested in entering into such a relationship, Namibia confirmed that it would conclude EOI agreements with any new relevant partner who would so require.

443. The conclusions are as follows:

Legal and regulatory framework: In place

The network of information exchange mechanisms of Namibia covers all relevant partners.

Practical implementation of the standard: Compliant

The network of information exchange mechanisms of Namibia covers all relevant partners.

C.3 Confidentiality

The jurisdiction's information exchange mechanisms should have adequate provisions to ensure the confidentiality of information received.

444. The EOI agreements to which Namibia is a party contain confidentiality rules that are in line with the standard. Additionally, Namibian domestic legislation broadly provides for the confidentiality of tax information, including treaty-exchanged information, and the provisions apply to tax officials as well as any third-party contractors involved in handling taxpayer information. However, under the domestic legal framework, there is a possibility that information received through EOI could, in certain situations, be disclosed to persons not authorised under the applicable EOI agreements.

445. In practice, Namibia has extensive policies and measures in place to ensure the confidentiality of all exchanged information. The Namibia Revenue Agency has an active information security management team and comprehensive practices for physical and digital security to ensure confidentiality. All EOI unit staff are well-trained, experienced and aware of the aspects of confidentiality in their daily work.

EOI requests are clearly marked as treaty protected and confidential. All exchanged information, including background documents like correspondence with other competent authorities, is treated as confidential.

446. Namibia has not experienced any breaches of confidentiality with respect to exchanged information. Further, peers have not raised any concerns regarding confidentiality of exchanged information.

447. The conclusions are as follows:

Legal and regulatory framework: In place, but certain aspects of the legal implementation of the element need improvement

Deficiencies identified/ Underlying Factor	Recommendations
The domestic legal and regulatory framework in Namibia is not consistent with the standard as information received may be disclosed beyond what is envisaged in the standard.	Namibia is recommended to ensure that the disclosure of information received pursuant to its exchange of information agreements is consistent with the standard.

Practical implementation of the standard: Largely Compliant

No issues have been identified in the implementation of the existing legal framework on the confidentiality of information. However, once the recommendations on the legal framework are addressed, Namibia should ensure that they are applied and enforced in practice.

C.3.1 Information received: disclosure, use and safeguards

448. The Multilateral Convention and the SADC AATM ensure the confidentiality of information exchanged, in line with the standard. They require that the information obtained be kept secret under the same conditions as those provided for information obtained in application of Namibia's domestic legislation and is only communicated to persons or authorities concerned with the assessment or collection of taxes as well as procedures and prosecutions relating to taxes.

449. Regarding Namibia's domestic legal framework, the ITA contains provisions that ensure confidentiality of all information held by the tax administration, including information received under an EOI agreement, that comes to knowledge of any person. Section 4(1) of the act obliges every person carrying out the provisions of the act, to keep information secret. Additionally, the ITA requires such a person to take an oath of secrecy before any form of employment is commenced. The ITA creates sanctions for any breaches. A person who discloses tax information in breach of the law is liable, on conviction, to imprisonment for a period not exceeding two years (s. 4(3), ITA). The obligation is nonetheless lifted to allow for exchange of information with partners pursuant to an EOI agreement (s. 100, ITA).

450. In addition, section 35(1) of the Namibia Revenue Agency Act (NamRA Act) obliges any person employed by NamRA not to disclose tax information. Any person who violates these confidentiality obligations is liable, upon conviction, to a penalty of up to NAD 50 000 (EUR 2 262.9) or imprisonment for a period not exceeding five years, or both (s. 35(2), NamRA Act). Disciplinary sanctions such as loss of employment may also be applied in case of a breach. The Namibian authorities confirmed that the provisions of the ITA and NamRA Act apply to officials and third-party contractors and that the obligations continue to apply indefinitely after the employment or services contract ceases.

451. Exceptions to confidentiality contained in the NamRA Act may be broader than what is envisaged under Namibia's EOI agreements. The act provides an exception where a person employed by NamRA may disclose tax information if such disclosure is required for performing the person's duties under any other law or is required by order of a court of law (s. 35(1)(a) and (b)). Moreover, as discussed in paragraph 20, EOI agreements are at par with domestic statutes and as such, the provisions of Namibia's EOI agreements do not supersede provisions contained in domestic law. In practice, no situations arose

and the risk of inappropriate disclosure is mitigated by the confidentiality label placed on all exchanged information which clearly states that the disclosure of that information is governed by the provisions of the relevant international agreement (see paragraph 463). Nevertheless, the disclosures authorised by the legal framework may lead to situations where treaty-exchanged information is disclosed beyond what is envisaged under the standard. Consequently, **Namibia is recommended to ensure that the disclosure of information received pursuant to its exchange of information agreements is consistent with the standard.**

452. The Terms of Reference, as amended in 2016, clarified that although it remains the rule that information exchanged cannot be used for purposes other than tax purposes, an exception applies where the EOI agreement provides that the information may be used for such other purposes under the laws of both contracting parties and the competent authority supplying the information authorises the use of information for purposes other than tax purposes. In the period under review, Namibia reported that there were no requests where the requesting partner sought Namibia's consent to utilise the information for non-tax purposes and similarly Namibia did not request its partners to use information received for non-tax purposes, since such use was not envisaged. The authorities confirmed that if asked, Namibia would grant the authorisation to use the exchanged information for non-tax purposes, provided the scope for such use is clearly and fully explained.

C.3.2 Confidentiality of other information

453. The confidentiality provisions in Namibia's EOI agreements and its domestic legal framework do not draw a distinction between information received in response to requests or information forming part of the requests themselves. As such, these provisions apply equally to all requests for such information, background documents to such requests, and any other document reflecting such information, including communications between the requesting and requested jurisdictions and communications within the tax authorities of either jurisdiction.

454. The EOI unit is the sole repository of all correspondence with other competent authorities. It does not share the request letter outside of the unit for the collection of information. Where information needs to be collected with the help of other NamRA officials (i.e. where the EOI unit does not have access to records, such as a document that is part of an audit file), a notice listing the required information is sent to the relevant officials. In any case, all these are tax departments, and their officials are bound by the confidentiality provisions.

455. The notice for collecting information from taxpayers and third-party information holders contains only minimal information. It states the legal basis (see paragraph 406), the requested information and the timeline within which the information should be provided. Where information is collected as part of a tax audit or tax investigation, it is not revealed that the audit or investigation is carried out based on an EOI request.

456. Moreover, the Namibian authorities have indicated that audit files do not contain a copy of the EOI request letter or competent authority correspondences, and that a taxpayer would not be able to access such information when appealing the decision following a tax audit.

Confidentiality in practice

457. Namibia has established comprehensive measures and policies to safeguard the confidentiality of all information obtained through its domestic tax administration processes and EOI mechanisms. These safeguards cover key areas, including human resource controls, physical security arrangements, and Information and Communications Technology (ICT) security systems, ensuring that information is protected throughout its lifecycle.

Human resources and training

458. All officials employed by NamRA undergo a pre-vetting process before employment, and it is only after a favourable outcome that a person will be offered employment. Additionally, vetting is conducted at any point during the employee's tenure to continuously assess the employee's suitability to handle taxpayer information. For third-party contractors, the contracting firms are obliged to vet their employees.

459. The requirement to maintain secrecy is also expressly incorporated into employment contracts and extends equally to permanent employees and contract staff. Further, all employees must complete and sign an Oath of Secrecy form which explicitly outlines confidentiality obligations. For third-party contractors, the requirement to ensure confidentiality is expressed through a service level agreement that contains confidentiality and non-disclosure clauses. Development partners offering capacity building technical assistance and who are likely to encounter taxpayer information must also sign the oath of secrecy form. All contractual agreements outline the legal consequences in case of breaching confidentiality.

460. NamRA enhances its confidentiality safeguards through structured and continuous staff training. Newly recruited employees receive induction training that includes guidance on confidentiality obligations, while all staff participate in annual awareness sessions on NamRA's Ethics and Integrity Policy. These sessions include dedicated modules on confidentiality and secrecy requirements. The training programmes apply to all NamRA employees, ensuring a consistent understanding and reinforcement of confidentiality standards across the organisation. At appropriate intervals, staff are continuously sensitised about cybersecurity awareness, ensuring they remain informed of emerging threats and security best practices.

461. Regarding staff departure policies, NamRA has established a structured offboarding process to ensure the timely removal of access rights for departing or transferring employees. The human resources department initiates this process by notifying all relevant business units of an employee's exit or internal transfer. In the event of cessation of employment with NamRA, NamRA's department of internal affairs immediately terminates the individual's physical access to NamRA premises, while the ICT department revokes access to all applicable systems. If the departing official was transferring out of the EOI unit, access to the EOI generic email account and all EOI related shared folders and physical access to the EOI office are all immediately withdrawn, ensuring that only authorised personnel retain access to sensitive information.

Physical and digital security measures

462. NamRA has implemented multiple physical security layers to safeguard confidential information maintained in physical form. Access to any office is restricted through an automated access control system, permitting entry only to authorised personnel, with access logs regularly reviewed to ensure accountability and detect irregularities. For the EOI office, only EOI officials have access using fingerprints and keys. Visitors and contractors are received at the front desk by their designated hosts, and their movements are continuously monitored throughout their presence on the premises. NamRA offices are further monitored through closed circuit television and protected by interior and exterior intrusion detection systems. The building is further monitored by security personnel posted on every floor.

463. Within the EOI office, information is managed in both paper and electronic form, although most of the information is in electronic form. Regarding paper information, the EOI office maintains a clean desk policy and uses lockable desk drawers and cabinets and a safe to store physical documents. The EOI office has its own printer and paper shredder. To prevent visual observation from outside the office, all windows have been fitted with frosted glass, enhancing privacy and reducing the likelihood of inadvertent disclosure of EOI information. Further, all paper copies of information are stamped with the markings "*confidential – this information is provided under the provisions of an international tax agreement. Its use and disclosure are governed by the provisions of such tax agreement*". The same confidentiality markings are applied to information when it is received and processed in digital form.

464. Access to NamRA's ICT systems is managed through role-based access controls that give staff access based on their job roles. An active password policy ensures that staff use strong passwords, that must be changed regularly. The IT systems are continuously monitored for potential intrusion, while staff activity logs are kept and monitored.

465. Electronic information is protected through encryption, whether it is stored or in the process of being shared. The tools used to secure this information are themselves managed with strict controls, ensuring they are created, stored and updated in a secure manner. All electronic systems are regularly updated to address new risks and vulnerabilities, and safeguards are deployed to detect and block harmful software or suspicious activity.

466. EOI staff can only use official laptop computers to access their working files and folders. All media ports on these computers are blocked. Further, staff may access official emails using their personal mobile devices if they are registered with the ICT department, and access to the email server is monitored. Additional security measures include that the email application does not allow screenshots to be taken.

467. Taken together, the physical and digital security safeguards implemented by NamRA ensure that all taxpayer information remains protected.

468. NamRA's information security policy includes specific provisions governing the proper disposal of confidential information. There is no formal retention period for tax records maintained by NamRA and in practice most records are kept indefinitely. However, in case where records need to be disposed of, it is done in accordance with national record-management and disposal rules. Paper records are shredded and destroyed in a manner to prevent their reconstitution, while electronic devices that are due for decommissioning undergo a destruction protocol involving formatting and destruction of storage media.

Breach monitoring and breach response

469. In addition to the information security policy, policies on whistleblowing, security incident and internal investigation procedures, ethics and integrity, all contain procedures for monitoring confidentiality practices and detection of breaches. In practice, periodic security inspections and security risk assessments are conducted to identify vulnerabilities and ensure continuous improvement of physical and digital security controls.

470. When a breach is identified, the matter is formally submitted to NamRA's internal affairs and security department, which is mandated to conduct investigations pertaining to staff misconduct. If the breach consists of electronic information, the ICT department provides technical support to the investigation. Once the investigations are concluded, a report is submitted to the Commissioner with recommendations for disciplinary action, mitigation and preventive measures.

471. Namibian authorities reported that there have been no instances of breach of confidentiality regarding EOI information. In the last three years, there were two cases that involved confidentiality breaches on domestic tax information. The staff concerned lost their employment at NamRA.

472. The competent authority officials and other tax administration and government officials met during the on-site visit were well informed of their obligations regarding keeping information confidential. Namibia confirmed that any breach on the confidentiality of EOI information would be reported immediately to the Global Forum Secretariat and the relevant peers would be notified.

C.4 Rights and safeguards of taxpayers and third parties

The information exchange mechanisms should respect the rights and safeguards of taxpayers and third parties.

C.4.1 Exceptions to the requirement to provide information

473. The Multilateral Convention, the SADC AATM and all of Namibia's DTCs ensure that the contracting parties are not obliged to provide information which would disclose any trade, business, industrial, commercial or professional secret, information which is subject to attorney-client privilege, or information the disclosure of which would be contrary to public policy.

474. The EOI instruments do not define professional secrecy, and as described in section B.1.5 above, legal professional secrecy is derived from English common law. Despite the appropriate scoping and exceptions contained in the Financial Intelligence Act, the lack of certainty by legal practitioners in practice, on how they would handle a request from the competent authority to provide information, could delay the effective exchange of information. Namibia should clarify the access powers of the competent authority to all stakeholders to ensure that professional secrecy does not impede the access powers of the competent authority (see Annex 1).

475. In practice, Namibia has not experienced any practical difficulties in responding to EOI requests because of professional privilege. There were no cases during the review period where Namibia sought to obtain information pursuant to an EOI request from an attorney or similar professional, and peers did not raise any concerns pertaining to this aspect.

476. The conclusions are as follows:

Legal and regulatory framework: In place

No material deficiencies have been identified in the information exchange mechanisms of Namibia in respect of the rights and safeguards of taxpayers and third parties.

Practical implementation of the standard: Compliant

No material deficiencies have been identified in respect of the rights and safeguards of taxpayers and third parties.

C.5 Requesting and providing information in an effective manner

The jurisdiction should request and provide information under its network of agreements in an effective manner.

477. Having joined the Global Forum in 2019, Namibia's EOI unit was established in April 2021, and Namibia received its first EOI requests in December 2022. The annual volume of received requests is gradually rising. In total, Namibia received 22 EOI requests during the review period (1 April 2022 to 31 March 2025).

478. Namibia's EOI unit became fully operational with four dedicated staff that were deployed between September 2022 and February 2023 and is now well resourced. The EOI officials receive regular training, and the EOI manual has been updated to provide more guidance to officials.

479. At the beginning of the period under review, there was a limited understanding among the EOI unit officials on how to efficiently collect the requested information and respond to EOI requests. This initially affected Namibia's ability to provide the requested information to its peers in a timely manner. Whereas complete information was not provided in a timely manner, Namibia adopted an approach to provide multiple partial responses to the requesting jurisdiction(s) that were helpful for the jurisdictions to progress their tax audits. Further, Namibia has made changes in its operations of the competent authority office by training staff and documenting robust operational processes. The results of these are reflected towards the end of the review period, where considerable progress has been registered. Namibia should continue to monitor these new changes to ensure that the requested information is provided in a timely manner.

480. The conclusions are as follows:

Legal and regulatory framework

This element involves issues of practice. Accordingly, no determination has been made.

Practical implementation of the standard: Largely Compliant

Deficiencies identified/ Underlying Factor	Recommendations
At the beginning of the period under review, the competent authority had a limited understanding of the procedures required to efficiently collect requested information and respond to EOI requests, including on the provision of status updates. This significantly affected Namibia's ability to provide information to its peers in a timely manner. During the review period, Namibia strengthened the operations of the competent authority by providing staff training and documenting robust operational processes. These improvements are reflected in the final quarter of the period, where considerable progress was observed.	Namibia is recommended to continue monitoring the improved operations of the competent authority office to ensure that requested information is provided in a timely manner in line with the standard.

C.5.1 Timeliness of responses to requests for information

481. Namibia received 22 requests for information during the review period (1 April 2022 to 31 March 2025). The information requested is related to i) legal and beneficial ownership information, ii) accounting information, iii) banking information and iv) other types of information (tax returns and confirmation of residence). The requests were primarily in respect of companies and trusts, with some requests on individuals where the individuals' ownership and management interests in companies and trusts were sought. Namibia also received two bulk requests for residency of individuals. During the review period, Namibia's main EOI partners were South Africa and Germany.

482. The following table relates to the requests received during the period under review and gives an overview of response times of Namibia in providing a final response to these requests, together with a summary of other relevant factors affecting the effectiveness of Namibia's practice during the period reviewed.

Statistics on response time and other relevant factors

	1 April – 31 December 2022		2023		2024		1 January-31 March 2025		Total	
	Num.	%	Num.	%	Num.	%	Num.	%	Num.	%
Total number of requests received [A+B+C+D+E]	2	100	2	100	12	100	6	100	22	100
Full response:										
≤ 90 days	0	0%	0	0%	1	8%	0	0%	1	5%
≤ 180 days (cumulative)	0	0%	0	0%	1	8%	6	100%	7	32%
≤ 1 year (cumulative) [A]	0	0%	0	0%	1	8%	6	100%	7	32%
> 1 year [B]	0	0%	2	100%	11	92%	0	0%	13	59%
Declined for valid reasons	0	0%	0	0%	0	0%	0	0%	0	0%
Requests withdrawn by requesting jurisdiction [C]	0	0%	0	0%	0	0%	0	0%	0	0%
Failure to obtain and provide information requested [D]	0	0%	0	0%	0	0%	0	0%	0	0%
Requests still pending at date of review [E]	2	100%	0	0%	0	0%	0	0%	2	9%
Outstanding cases after 90 days	2		2		11		6		21	
Of these, status update provided within 90 days	0***	0%	0***	0%	11	100%	0	0%	11	52%

*Namibia counts each request with multiple taxpayers as one request, i.e. if a partner jurisdiction is requesting information about 4 persons in one request, Namibia count that as 1 request. If Namibia received a further request for information that relates to a previous request, with the original request still active, the new receipt is treated as new request.

**The time periods in this table are counted from the date of receipt of the request to the date on which the final and complete response was issued.

***The partial responses (also serving as status updates) in respect of 2022 and 2023 requests were not provided on the first instance of the 90-day mark, but they were sent regularly thereafter (see table on partial responses below).

483. Whereas the timeliness of responses was low at the beginning of the review period, it has gradually improved. The analysis of the effectiveness of exchange by Namibia takes into account several factors: the reasons for the long response times, the uniqueness of the two requests received in 2022 and still pending, and a developing culture of exchange. The analysis starts with the general situation before turning to the uniqueness of the 2022 requests.

Improving timeliness

484. Namibia fully answered 5% of the requests within 90 days and 32% within 180 days. Most of the requests (59%) were fully answered after one year. Namibia did not fail to respond to any valid EOI request, nor were any requests withdrawn by the requesting jurisdictions.

485. The Namibian authorities explained that ownership and banking information are often obtained in a short time frame. Similarly, where accounting information is readily available in the NamRA tax databases, it is obtained quickly.

486. For the requests received from 2023 to 2025, whereas the timeliness of responses was poor at the beginning of the review period, it has gradually improved.

487. The two reasons for the state of the timelines in responding to EOI requests received in 2023 and 2024 are the unique circumstances associated with some of the requests received by Namibia and the limited understanding within the competent authority officials, on the practice of EOI.

488. Firstly, most of the information that was provided after one year related to the underlying documentation as part of the requested accounting information. The Namibian authorities explained that most of the requests received in 2023 and 2024 concerned a similar group of taxpayers. From the description of the requests provided by the requesting jurisdiction and Namibian tax records, the taxpayers subject to the requests were non-compliant with tax filing obligations. Consequently, the competent authority anticipated a lack of cooperation of the non-compliant taxpayers and first sought to obtain the requested underlying documents from the external auditors of the persons' subject to the request. Some of the requested information, such as minutes of board meetings, could only be obtained from the persons themselves. The competent authority eventually obtained the information from the persons subject to the request. Additionally, some requests sought financial statements of tax years that were not yet ended as per the Namibian tax year (1 April to 31 March). In these, Namibia could only share the relevant financial statements once they were prepared as per Namibian reporting periods.

489. In contrast, all requests received between 1 January and 31 March 2025 were fully responded to within 180 days. The Namibian authorities explained that the requested information was obtained from tax databases, BIPA, banks and taxpayers themselves. While some of the requests received in 2025 had some of the characteristics of the previous requests, the response times demonstrate that the competent authority officials have improved on their efficiency.

490. Secondly, until late 2023, the Namibian competent authority was not aware that partial responses could be sent to requesting jurisdictions. The initial approach of the competent authority was to first collect all the requested information and provide complete responses, once all the information had been collected. The competent authority has since changed its approach and provided 50 partial responses to requesting peers.

Partial responses

491. In 2023, Namibia started providing the requested information in a partial manner. This approach enabled the competent authority to share the information that was already available within the NamRA databases, at BIPA and from banks as it continued to gather underlying accounting documentation from persons subject to the requests. In total, 50 partial responses (on 14 requests) were sent to the requesting jurisdiction(s).

Description	2022		2023		2024		Total	
Total number of partial responses sent	2	100%	7	100%	41	100%	50	100%
≤90 days	0	0%	0	0%	20	49%	20	40%
≤180 days (cumulative)	0	0%	3	43%	29	71%	32	64%
≤1 year (cumulative)	0	0%	7	100%	37	90%	44	88%
>1 year	2	100%	0	0%	4	10%	6	12%

492. The statistics on partial responses confirm the progressive trend of improved timeliness of partial answers over the review period. In 2023, most of the partial information was provided between 180 days and one year. This trend improved in 2024, where about half of the partial responses were provided within 90 days and a substantial part of the partial responses (71%) were provided within 180 days.

493. While the sending of partial responses does not alter the table of statistics of final responses, this practice significantly increased the efficiency of the exchange of information and the concerned peers are very satisfied with the evolution of the handling of requests by the Namibian competent authority, as the

information received through partial answers allowed progressing their cases internally, pending receipt of the remaining of the information.

494. From 1 January to 31 March 2025, all requests received were fully responded to within 180 days, so no partial information was shared.

495. Namibia has made progress to improve the timeliness and efficiency of its responses. At the beginning of the review period, it appears that there was limited understanding within the competent authority officials on how to efficiently collect the requested information and respond to EOI requests. This gradually improved and Namibia registered improvements, especially in 2025. Nevertheless, the progress made by Namibia is recent and accordingly, **Namibia is recommended to continue monitoring the improved operations of the competent authority office to ensure that requested information is provided in a timely manner in line with the standard.**

Pending cases

496. In December 2022, Namibia received two bulk requests that required Namibia to provide proof of tax residency on 6 939 individuals. The requests pertained to a bill on various matters of the financial markets including retirement funds in Namibia that was not yet passed into law. Namibia agreed with the requesting jurisdiction to put the requests on hold until 2023, in anticipation that the bill would have been passed into law by then.²³

497. In the meantime, Namibia started holding discussions with the information holders to determine how to fully identify the subject persons since the requests did not fully and adequately identify all persons in all cases. In March 2024, Namibia sent a request for clarification to the requesting jurisdiction, based on the discussions held with information holders. The requesting jurisdiction has not reported any challenges regarding the clarifications and reported they have held regular discussions with Namibia. Eventually, Namibia sent the first partial response in April 2025.

498. The Namibian authorities explained that the progress in confirming the tax residence of the individuals has been slow for various reasons. Some of the identity numbers provided by the requesting jurisdiction relate to old pre-independence identification cards while the persons concerned have since obtained Namibian national identity. In other cases, the identity numbers and tax registration numbers provided in the request do not match the tax registration records in Namibia. To date, Namibia has provided the confirmation of residence on 13% of the individuals. The peer confirmed that Namibia has provided regular updates on the status of these requests.

Status updates and communication with partners

499. Namibia's EOI manual directs that where the requested information cannot be provided within 90 days, status updates should be sent to the requesting jurisdiction(s). The manual differentiates two scenarios. First, where partial information has been gathered by the 90-day mark, a partial response is provided explaining the status of the request and providing an estimated timeline when the rest of the information shall be provided. Second, where no information has been collected yet, the status update should also be sent.

500. During the review period, Namibia mainly provided status updates as part of the partial responses sent to peers. Although no status updates were sent in 2025, this situation is acceptable in respect of the standard as the complete information was immediately sent after the lapse of 90 days. Further, although

²³ The act has not yet entered into force. However, the Namibian fund providers have started implementation of some aspects in anticipation of the act that allow Namibia to exchange information with the requesting jurisdiction.

Namibia did not send status updates at the initial 90-day mark for the requests received in 2022 and 2023, partial responses also serving as status updates were regularly sent thereafter (see paragraph 491).

501. Namibia reported that it has implemented a range of measures to establish and maintain effective communication channels with its peers. Peers did not report any difficulties in their communication with Namibia. The competent authority holds regular meetings with one of Namibia's main peers.

502. Further, Namibia reported that they have started requesting feedback on the information sent to requesting jurisdictions, and in one case, the requesting jurisdiction confirmed the usefulness of the received information.

C.5.2 Organisational processes and resources

Organisation of the competent authority

503. The Minister of Finance is designated as the competent authority under all of Namibia's EOI instruments. The Minister has delegated the competent authority role to the Commissioner, NamRA. For operational purposes, the role has further been delegated to the head of the EOI unit.

Resources and training

504. Namibia's EOI unit was established in April 2021 and was gradually staffed from September 2022 to February 2023, to reach three full-time officials who support the head of the unit. At full capacity, the unit should be staffed by six full time officials and a recruitment process is planned to fill the remaining positions.

505. The EOI unit is well-resourced and has appropriate organisational processes to support effective EOI. An EOI manual and Standard Operating Procedures set out procedures for handling incoming and outgoing requests, including the roles of both EOI staff and relevant tax offices. Since 2022, the EOI unit was relying on the Global Forum model manual on EOI and by November 2025, they customised out a NamRA version that is being implemented pending final administrative procedures. The model manual was being used to provide relevant guidance to NamRA officials, despite the delay in formal customisation.

506. An Excel-based tracking tool is utilised to keep track of all EOI requests, relevant timelines and status of responses. Moreover, the timely processing of requests forms part of the officials' annual performance agreements, with key performance indicators specifically linked to the prompt handling and completion of requests.

507. During the review period, the EOI unit officials have participated in various trainings organised by the Global Forum and other regional and international bodies. In addition, the EOI officials have trained other tax officials from the tax audit, investigations and other relevant NamRA departments.

Incoming requests

508. Namibia has detailed processes for receiving, handling and responding to incoming requests. The procedure is detailed in the EOI manual.

Competent authority's handling of the request

509. EOI requests can be received through the EOI generic email or through a courier. The officer who receives the request must immediately log the request into the tracking tool and complete all relevant fields. A case reference number must then be allocated. Once done, the officer informs the head of the EOI unit, who proceeds to allocate the request to one of the three specialist EOI officials. This process must be completed within three days.

510. The allocated official is required to send an acknowledgement to the requesting jurisdiction and ask for decryption details where relevant. Once the request has been successfully decrypted, the official must stamp all the received information using the confidentiality stamp (see paragraph 463).

511. Once the allocated official has received or decrypted the request, the request is validated using a standard checklist. The checklist requires the official to perform various checks, including completeness, by checking that the appropriate legal basis is quoted, the request is signed by the appropriate foreign competent authority and the information requested is foreseeably relevant. If the request is incomplete or the foreseeable relevance is not clear, a request for clarification must be sent within 14 days. During the review period, Namibia sent out requests for clarification in the two bulk cases (see paragraph 497). These requests for clarification were justified. If all the aspects of the request are clear, the allocated official must prepare a validation checklist within five days for review and approval by the head of the EOI unit.

512. When the request has been accepted as foreseeably relevant, the allocated EOI official works on the request. If the requested information can be gathered from the internal NamRA databases and tax files, the EOI manual recommends that the associated request be responded to within 30 days. In other instances, if the complete information has not been gathered within 60 days, partial information should be sent to the requesting jurisdiction.

Verification of the information gathered

513. The gathered information is verified by the allocated official, who prepares a verification checklist as part of the process of preparing a response to the requesting jurisdiction. The official checks that all the requested information has been provided, and copies of documents attached (where relevant).

514. The Namibian officials reported difficulties to accurately validate the information against NamRA's records in the bulk requests received in 2022. In such cases, the validation process is manual, and the requests in question involve 6 939 individuals.

515. The draft answer explains whether all the requested information has been collected or whether the current response is a partial response. The confidentiality stamp is appended to all the documents.

516. The draft answer is reviewed and signed off by the head of the EOI unit. Peers expressed satisfaction with the information received from Namibia.

Outgoing requests

517. Namibia relies on outgoing EOI requests for its own audits and tax investigations. During the review period, Namibia sent five requests for information to its treaty partners.

518. The process for initiating an EOI request begins when a tax auditor or investigator identifies the need for information from another jurisdiction during an audit or investigation into potential non-compliance or tax risk. The requesting unit then contacts the EOI unit, after which an initial meeting is convened to review the facts of the case and assess whether the request has sufficient merit.

519. Following this meeting, the requesting unit completes the standard outgoing request template provided by the EOI unit. This template requires the presentation of relevant facts, the applicable legal basis, taxpayer details, the rationale demonstrating foreseeable relevance, and confirmation that domestic means have been exhausted. The EOI unit reviews the completed template to ensure that the request is clearly articulated. Once the EOI Unit has completed its review and the request has been finalised, it is securely transmitted to the requested jurisdiction.

520. Peers have been generally satisfied with the quality of requests sent by Namibia and found them to be generally foreseeably relevant.

521. Upon receiving the requested information, the EOI unit forwards the received information securely, indicating the treaty nature of the received information, and applies the confidentiality stamp. All competent authority communications are kept securely within the EOI unit.

C.5.3 Absence of unreasonable, disproportionate or unduly restrictive conditions for EOI

522. There are no legal or practical requirements in Namibia that impose unreasonable, disproportionate or unduly restrictive conditions for EOI.

Annex 1. List of in-text recommendations

The Global Forum may identify issues that have not had and are unlikely in the current circumstances to have more than a negligible impact on EOIR in practice. Nevertheless, the circumstances may change, and the relevance of the issue may increase. In these cases, a recommendation may be made; however, it should not be placed in the same box as more substantive recommendations. Rather, these recommendations can be stated in the text of the report. A list of such recommendations is reproduced below for convenience.

- **Element A.1:**
 - Namibia should continue to implement oversight activities and monitor the compliance of companies with their annual reporting obligations with BIPA (see paragraph 106).
 - Namibia should align the provisions of the binding guidance and the practice by AML-obliged persons to ensure that CDD and beneficial ownership information are updated appropriately for all entities and arrangements (paragraphs 188, 228, 254 and 271).
 - Namibia should ensure the availability of beneficial ownership information of foreign trusts with non-professional trustees resident in Namibia (paragraph 237).
- **Element A.3:**
 - Namibia should monitor the implementation of recent changes in the guidance for identification of beneficial owners to ensure that accurate, adequate and up-to-date beneficial ownership information on bank accounts is available in all cases (paragraph 349).
 - Namibia should align the provisions of the binding guidance and the practice by banks to ensure that CDD and beneficial ownership information are updated appropriately for all bank accounts (paragraph 353).
 - Namibia should monitor the implementation of its revised approach where an increased level of sanctions is issued against non-compliance (paragraph 362).
- **Element B.1:**
 - Namibia should clarify the access powers of the competent authority to all stakeholders to ensure that professional secrecy does not impede the access powers of the competent authority (paragraph 403).
- **Element C.4:**
 - Namibia should clarify the access powers of the competent authority to all stakeholders to ensure that professional secrecy does not impede the access powers of the competent authority (paragraph 474).

Annex 2. List of Namibia's EOI mechanisms

Bilateral international agreements for the exchange of information

	EOI partner	Type of agreement	Signature	Entry into force
1.	Botswana	DTC	16-06-2004	14-10-2005
2.	France	DTC	29-05-1996	25-01-1999
3.	Germany	DTC	29-05-1996	25-01-1999
4.	India	DTC	15-02-1997	25-01-1999
5.	Malaysia	DTC	28-07-1998	24-09-2004
6.	Mauritius	DTC	04-03-1995	25-01-1999
7.	Romania	DTC	25-02-1998	25-01-1999
8.	Russia	DTC	25-02-1998	25-01-1999
9.	South Africa	DTC	18-05-1998	25-01-1999
10.	Sweden	DTC	16-07-1993	25-01-1999
11.	United Kingdom	DTC	28-05-1962	14-06-1967

Convention on Mutual Administrative Assistance in Tax Matters (as amended)

The Convention on Mutual Administrative Assistance in Tax Matters was developed jointly by the OECD and the Council of Europe in 1988 and amended in 2010 (the Multilateral Convention).²⁴ The Multilateral Convention is the most comprehensive multilateral instrument available for all forms of tax cooperation to tackle tax evasion and avoidance, a top priority for all jurisdictions.

The original 1988 Convention was amended to respond to the call of the G20 at its April 2009 London Summit to align it to the standard on exchange of information on request and to open it to all countries, in particular to ensure that developing countries could benefit from the new, more transparent environment. The Multilateral Convention was opened for signature on 1 June 2011.

The Multilateral Convention was signed by Namibia on 29 September 2020 and entered into force on 1 April 2021 in Namibia. Namibia can exchange information with all other Parties to the Multilateral Convention.

The Multilateral Convention is in force in respect of the following jurisdictions: Albania, Andorra, Anguilla (extension by the United Kingdom), Antigua and Barbuda, Argentina, Armenia, Aruba (extension by the Netherlands), Australia, Austria, Azerbaijan, Bahamas, Bahrain, Barbados, Belgium, Belize, Benin, Bermuda (extension by the United Kingdom), Bosnia and Herzegovina, Botswana, Brazil, British Virgin Islands (extension by the United Kingdom), Brunei Darussalam, Bulgaria, Burkina Faso, Cabo Verde, Cameroon, Canada, Cayman Islands (extension by the United Kingdom), Chile, People's Republic of China, Colombia, Cook Islands, Costa Rica, Croatia, Curaçao (extension by the Netherlands),

²⁴ The amendments to the 1988 Convention were embodied into two separate instruments achieving the same purpose: the amended Convention (the Multilateral Convention) which integrates the amendments into a consolidated text, and the Protocol amending the 1988 Convention which sets out the amendments separately.

Cyprus,²⁵ Czech Republic, Denmark, Dominica, Dominican Republic, Ecuador, El Salvador, Estonia, Eswatini, Faroe Islands (extension by Denmark), Fiji, Finland, France, Georgia, Germany, Ghana, Gibraltar (extension by the United Kingdom), Greece, Greenland (extension by Denmark), Grenada, Guatemala, Guernsey (extension by the United Kingdom), Hong Kong (China) (extension by China), Hungary, Iceland, India, Indonesia, Ireland, Isle of Man (extension by the United Kingdom), Israel, Italy, Jamaica, Japan, Jersey (extension by the United Kingdom), Jordan, Kazakhstan, Kenya, Korea, Kuwait, Latvia, Lebanon, Liberia, Liechtenstein, Lithuania, Luxembourg, Macau (China) (extension by China), Madagascar, Malaysia, Maldives, Malta, Marshall Islands, Mauritania, Mauritius, Mexico, Moldova, Monaco, Mongolia, Montenegro, Montserrat (extension by the United Kingdom), Morocco, Namibia, Nauru, Netherlands, New Zealand, Nigeria, Niue, Republic of North Macedonia, Norway, Oman, Pakistan, Panama, Papua New Guinea, Paraguay, Peru, Philippines, Poland, Portugal, Qatar, Romania, Russia, Rwanda, Saint Kitts and Nevis, Saint Lucia, Saint Vincent and the Grenadines, Samoa, San Marino, Saudi Arabia, Senegal, Serbia, Seychelles, Singapore, Sint Maarten (extension by the Netherlands), Slovak Republic, Slovenia, South Africa, Spain, Sweden, Switzerland, Thailand, Trinidad and Tobago, Tunisia, Türkiye, Turks and Caicos Islands (extension by the United Kingdom), Uganda, Ukraine, United Arab Emirates, United Kingdom, Uruguay, Vanuatu and Viet Nam.

In addition, the Multilateral Convention was signed by the following jurisdictions, where it is not yet in force: Algeria, Côte d'Ivoire, Gabon, Honduras, Togo, United States (the original 1988 Convention is in force since 1 April 1995, the amending Protocol was signed on 27 April 2010) and Zimbabwe.

Southern African Development Community's Agreement on Assistance in Tax Matters

The Southern African Development Community's Agreement on Assistance in Tax Matters was signed on 18 August 2012 by Botswana, Democratic Republic of Congo, Eswatini, Lesotho, Malawi, Mauritius, Mozambique, Seychelles, South Africa, Tanzania, Zambia. Namibia signed the Agreement in 2022. It provides for a framework exchange of information automatically, spontaneously or upon request between the relevant competent authorities. This agreement is not in force yet. The agreement shall enter into force 30 days after two thirds of the Member States have submitted their instrument of ratification to the Executive Secretary of SADC. Member states that have deposited their instrument of ratification are Botswana, Eswatini, Lesotho, Mauritius, Namibia, the Seychelles and South Africa.

²⁵ Note by the Republic of Türkiye (Türkiye): The information in this document with reference to "Cyprus" relates to the southern part of the Island. There is no single authority representing both Turkish and Greek Cypriot people on the Island. Türkiye recognises the Turkish Republic of Northern Cyprus (TRNC). Until a lasting and equitable solution is found within the context of the United Nations, Türkiye shall preserve its position concerning the "Cyprus issue".

Note by all the European Union Member States of the OECD and the European Union: The Republic of Cyprus is recognised by all members of the United Nations with the exception of Türkiye. The information in this document relates to the area under the effective control of the Government of the Republic of Cyprus.

Annex 3. Methodology for the review

The reviews are based on the 2016 Terms of Reference and conducted in accordance with the 2016 Methodology for peer reviews and non-member reviews, as approved by the Global Forum in October 2015 and amended in 2020 and 2021, and the Schedule of Reviews.

The evaluation is based on information available to the assessment team including the exchange of information arrangements signed, laws and regulations in force or effective as at 6 May 2026, Namibia's EOIR practice in respect of EOI requests made and received during the three year period from 1 April 2022 to 31 March 2025, Namibia's responses to the EOIR questionnaire, inputs from partner jurisdictions, as well as information provided by Namibia's authorities during the on-site visit that took place from 17 to 21 November 2025 in Windhoek, Namibia.

List of laws, regulations and other materials received

- Companies Act
- Companies Administrative Regulations, 2010
- Close corporations Act and Close corporations Act Regulations
- Co-operatives Act and Co-operative Societies Ordinance
- Income Tax Act
- Value Added Tax Act
- Namibia Revenue Agency Act
- Banking Institutions Act
- National Welfare Act
- Trust Administration Act and Trust Administration Act- Regulations
- Financial Intelligence Act and Financial Intelligence Act-Regulations
- Industry Guidance Notes No. 01 of 2015 and No. 01 of 2025 on Identification and verification of beneficial ownership information
- Guidance Note no. 4 of 2009 on the Implementation of a Compliance Regime
- Public Accountants' and Auditors' Act
- Legal Practitioners Act
- The Namibia Revenue Authority Manual for Exchange of Information for Tax Purposes

Authorities interviewed during on-site visit

- Ministry of Finance
- Namibia Revenue Authority
- Business and Intellectual Property Authority
- Financial Intelligence Centre
- Namibia Financial Institutions Supervisory Authority

- Bank of Namibia
- Master of the High Court
- Registrar of Co-operatives
- Private sector representatives of banking institutions, accountants, auditors and lawyers

Summary of reviews

Review	Assessment team	Period under Review	Legal Framework as on	Date of adoption by Global Forum
No Round 1 review				
Round 2	Mr George Emukhvari (Georgia), Mr Goerge Weru (Kenya) and Mr Alex Nuwagira (Global Forum Secretariat)	1 April 2022 to 31 March 2025	6 May 2026	23 July 2026

Annex 4. Namibia's response to the review report²⁶

Namibia extends its sincere appreciation to the Global Forum Secretariat for the technical assistance and guidance provided since Namibia became a member in 2019, including its support in preparing Namibia for the EOIR peer review process.

Namibia also expresses its appreciation to the assessment team for their expertise, commitment, cooperation and constructive engagement throughout the review. Namibia further acknowledges the constructive comments provided by members of the Peer Review and Monitoring Group.

Namibia is proud of the diligent cooperation and collaboration demonstrated by the relevant institutions and organisations involved in the process, which contributed to the positive outcome of the review.

Namibia views this peer review not merely as a compliance exercise, but as an opportunity to strengthen its institutions, promote a whole-of-government approach, and enhance efforts to combat tax evasion, tax avoidance and illicit financial flows. These efforts will further support domestic revenue mobilisation, tax transparency and international cooperation.

Namibia's successful exit from the FATF grey list of jurisdictions under enhanced monitoring on 19 June 2026 demonstrates the significant progress made in strengthening its legal and regulatory framework, as well as practical supervision and enforcement, particularly in relation to beneficial ownership. These reforms support Namibia's broader tax transparency framework and reflect its commitment to international cooperation.

Namibia welcomes the approval of this report and agrees with its overall rating, findings and recommendations. Namibia remains fully committed to addressing the recommendations identified in the report and will continue to engage constructively with the Global Forum to further strengthen tax transparency, effective exchange of information and international cooperation.

²⁶ This Annex presents the Jurisdiction's response to the review report and shall not be deemed to represent the Global Forum's views.

GLOBAL FORUM ON TRANSPARENCY AND EXCHANGE OF INFORMATION FOR TAX PURPOSES

Peer Review on Transparency and Exchange of Information on Request NAMIBIA 2026 (Second Round)

The Global Forum on Transparency and Exchange of Information for Tax Purposes is a multilateral framework within which over 170 jurisdictions participate on an equal footing.

The Global Forum monitors and peer reviews the implementation of the international standards on transparency and exchange of information on request (EOIR) and on automatic exchange of information. The EOIR provides for international exchange on request of information foreseeably relevant to the administration or enforcement of the tax laws of a requesting party. All Global Forum members have agreed to have their implementation of the EOIR standard assessed by peer review. In addition, non-members that are relevant to the Global Forum's work are also subject to review. The legal and regulatory framework of each jurisdiction is assessed, as is the implementation of that framework in practice. The final result is an overall rating of the compliance of the jurisdiction with the standard.

The first round of reviews was conducted from 2010 to 2016. A second round of reviews started in 2016. Peer reviews are generally conducted in one go, but they can be conducted in two separate reviews, with a Phase 1 reviewing the legal framework, followed by a Phase 2 focussing on practice. Reviews are phased when jurisdictions have limited EOIR experience or in exceptional circumstances, such as the COVID-19 pandemic. The review reports are published and assessed jurisdictions are expected to follow up on any recommendations made. The ultimate goal is to help jurisdictions to effectively implement the standard of transparency and exchange of information on request for tax purposes.

This peer review report analyses the practical implementation of the standard on transparency and exchange of information on request (EOIR) for Namibia, as part of the second round of reviews conducted by the Global Forum since 2016.